Part D – Development Requirements

Land Subdivision, Residential, Rural, Business, Commercial and Industrial

PART D – DEVELOPMENT REQUIREMENTS

Application of Part D

This section applies to any development applications made within Kempsey Shire which may have specific land use development requirements for one or more of the following components:

D1 - Land Subdivision

D2 - Residential Development

D3 - Rural Development

D4 – Business and Commercial Development

D5 - Industrial Development

Development applications that comply with the requirements in **Part B** need to address the applicable provisions in this section, concurrently with the applicable place-based provisions in **Part C**.

Purpose

Part D provides specific controls which apply to particular land use development types, including land subdivision, residential development, rural development, business and commercial development and industrial development. All development applications must demonstrate compliance with these development requirements, to the extent applicable.

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D1 LAND SUBDIVISION

Relationship to Other Documents

KLEP contains certain requirements for subdivision, including stipulating the minimum lot size. The development requirements of this Part should be addressed in conjunction with the subdivision requirements of the KLEP. A copy of KLEP is available on Council's website at www.kempsey.nsw.gov.au.

The issues associated with the design and construction of subdivision developments are addressed by Council Policies and Guidelines. References to Council Guidelines and Policies are made throughout this Part.

Detailed engineering design and construction requirements for subdivision are contained in the KSC Infrastructure Delivery Guide and AUS SPEC Design and Construction Specifications (available on Council's website).

Development Contributions will be triggered by development applications, through:

- Sections 7.11 and 7.12 (formerly Section 94 and 94A respectively) of the *Environmental Planning and Assessment Act 1979*; and
- Current Section 64 Development Service Plans under the *Local Government Act 1993*.

Council's Contributions Plans are available on Council's website and will need to be reviewed to determine their impact on each development application. Current fees and charges may be calculated by applying annual CPI to the listed contribution rate, or by contacting Council.

Pre-Lodgement Meetings

For large scale subdivisions (generally > 50 lots), the applicant is to have a pre-lodgement meeting with Council to come to an agreement in relation to the content and details to be included in the Development Application, including the need (or otherwise) for an Open Space Management Strategy, Landscape Plan, Street Tree Master Plan, Stormwater Quality and Quantity Strategy etc.

For smaller subdivisions, a pre-lodgement meeting may also be beneficial and can be held at Council's discretion.

Objectives

1. Give effect to the subdivision requirements contained in KLEP and other Parts of this DCP, and provide greater certainty of the subdivision requirements to be applied in Kempsey Shire.
2. Ensure that subdivision development is designed to respond by avoidance or mitigation to natural hazards and physical constraints, such as bushfire, flooding, topography, steep and unstable land etc.
3. Facilitate safe vehicular and active transport access from the public road system to and through the land development and to each new lot.
4. Ensure that the potential impacts of all subdivisions and subsequent development facilitate the principles of environmental sustainability, existing landscape preservation, minimised earthworks and energy efficient enabling infrastructure.
5. Ensure that subdivision preserves the character of the area in which it is located.
6. Ensure that subdivision development employs ameliorating measures to reduce the impact of development on the existing natural and built environments.
7. Encourage more innovative subdivision design, efficient site usage and minimise the cost of infrastructure and servicing that still maintains reasonable access to public infrastructure.
8. Facilitate different subdivision land title systems that best enable appropriate development and the management of a site's environmental characteristics and issues.

D1.1 Urban Residential Subdivision (R1 and R3 zones)

Application of Part D1.1

Part D1.1 applies to subdivision of land zoned R1 General Residential and R3 Medium Density Residential under the KLEP.

Objectives

1. Ensure urban residential subdivision design provides housing lot choice and is safe, practical, efficient and consistent with the dominant street patterns in the surrounding neighbourhood.
2. Ensure urban residential subdivision is provided with adequate services and infrastructure, including public transport access and green space connectivity, to meet the needs of residents.
3. Urban residential subdivision minimises the need for significant earthworks and is designed to be in keeping with the natural topography of the land, where possible.

The following desired outcomes and development control requirements in **Table D1.1** prescribe how the above objectives can be met.

Table D1.1 – Urban Residential Subdivision Controls (R1 and R3 zones) – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1. Site Design	
Subdivision and Street Layout 1.1 Street layout is designed and oriented to provide lot access, safe legible connections and thoroughfares to neighbouring development and the existing road network.	a. Street Layouts: i. Configure streets in a “grid-like" layout for ease of access and safe road alignment. ii. Align streets east-west and north-south wherever possible. iii. Aim for north-south streets within 20 degrees west and 30 degrees east of true north. iv. Aim for east-west streets within 30 degrees south and 20 degrees north of true east.
1.2 Street layout facilitates lot configuration to provide for a variety of lot sizes, shapes, development envelopes and orientation and views/solar access.	a. Where streets are within the acceptable orientation range, lots are to be of a regular shape and designed to provide suitable property access, including for emergency vehicles. b. Development creates as many long lot boundaries as possible within the permissible orientation range. c. Where the street is not within the orientation range, lots which are positioned to achieve the acceptable orientation relative to the street may be used. d. Corner lot design incorporates four (4) metre splays parallel of the corner allotment, and enables the construction of a future dwelling that can comply with the setback standards for both street frontages. e. Lots facing a cul-de-sac are to have a minimum frontage width of ten (10) metres.

Desired Outcome	Development Control Requirements
	f. The subdivision design provides for "shared paths" through connections at the end of the cul-de-sac, where physical connections can be made. The shared path has a minimum reserve width of four (4) metres and is sufficient to accommodate a pavement width that meets the requirements of AUS-SPEC. g. Battle-axe allotments are discouraged in greenfield development. h. Battle-axe lots are only permitted for infill sites where there is no other means of gaining access to a public road and compliance with the following is achieved: i. The lot meets the minimum lot size for the zone in KLEP, exclusive of the access handle. ii. Lots are of sufficient width to accommodate a dwelling house. i. The access handle for battle-axe shaped lots shall be in accordance with the requirements of AUS-SPEC. j. Access handles shall be sited away from noise and visually sensitive components of existing and future dwelling houses. k. Adequate provision is made for the collection of waste on the public street. l. Adequate provision is made for the manoeuvring of vehicles, including the ability to enter and exit the lot in a forward direction. m. For inaccessible infill sites, only two (2) battle-axe shaped lots are permitted.
Public Open Space 1.3 Subdivision creates a street layout which facilitates the provision of public open space (where the scale of development warrants this), including access, continuity/ connection with other landscape/open space/water courses and visibility.	a. Public open space, or public open space contributions are considered as part of the subdivision design, where the scale of development requires this (refer **Table D1.2**). b. Public open space is provided for the benefit, use and enjoyment of the immediate neighbourhood community. c. Where public open space is not provided and where required, a contribution towards its future provision is made, as agreed with Council.
Social Desired Outcomes 1.4 Development of public open spaces ensures that it can be accessed, used and enjoyed for activities by people in a range of different age groups and abilities, and is designed to take account of: i. Surveillance ii. Public safety iii. Practical visible connections	a. Development complies with Crime Prevention Through Environmental Design (CPTED) principles contained in Crime Prevention and the Assessment of Development Applications Guideline (NSW Police). b. Subdivision development provides an open space network of streetscapes that connects through the entire site with: i. Shared path connections throughout. c. Clear visibility of paths and connections.

Desired Outcome	Development Control Requirements
	d. Inclusive spaces and facilities (where these are provided) e. Street trees and associated landscape are provided where appropriate, that assists movement, navigation and passive social activities.
Allotment Design 1.5 Subdivision creates lots that are sized and shaped to provide for a serviceable street frontage, practical site building envelopes and safe physical access.	a. Subdivision design is consistent with the dominant lot size configuration along the street, or within the immediate vicinity of the development site.
Lot Size and Area 1.6 Site and lot design size complies with the relevant provisions of KLEP and other applicable standards.	a. The subdivision meets the Minimum Lot Size stated within KLEP and enables the construction of a future dwelling/s and likely outbuildings, private open space, vehicle access and parking areas.
Lot Shape & Orientation 1.7 Lots are conducive to the development of future dwelling houses on individual allotments. 1.8 Lots are oriented and sized (dimensioned) to maximise solar access.	a. Lots are regular in shape and contain a building platform (development envelope) sufficient to cater for the proposed lot size and type. **Lots facing east-west streets:** b. If the street runs east-west (so the lots face north or south): i. **North-facing lots** (street on the south side): minimum width **13.5 m**. ii. **South-facing lots** (street on the north side): minimum width **15.5 m** (wider to allow for car access to the sunny side). iii. The **narrowest lots** should be on the **north side** of the street. iv. The **south side** lots should be wider. **Lots facing north-south streets:** c. If the street runs north–south (so the lots face east or west): i. Lots should be at least **16 m wide**. ii. These lots generally need to be wider. iii. Corner or open-space lots can be narrower if they get sun from the north.
Lot aspect and site topography 1.9 Lot design works with the natural topography to optimise the aspect for views, maximising solar access, site drainage, and useability, while minimising site disturbance.	a. Sloping sites are generally suitable for medium to large lots only (refer also **Part B – B1 - Natural Hazards**). On sites of slopes >25%, subdivision is discouraged. b. Concentrate smaller lots on north facing slopes with gradients of less than 15% or adjacent to lightly treed public open space. c. Locate larger lots, non-residential uses or public open space where solar access is poorer, such as south facing slopes. d. Where significant vegetation is to be retained on the site, the size of the lot may need to be

Desired Outcome	Development Control Requirements
	increased to allow solar access.
Topography (earthworks) 1.10 Earthworks maintains the natural topography and minimises ground levels changes. Where essential earthworks are required, these are achieved through balanced cut and fill on-site. 1.11 Earthworks associated with development does not negatively impact on the surrounding streetscape, adjoining properties or public assets.	a. Street layouts and lot configuration; aspects, levels and grades are sympathetic to the natural topography of the site. b. Where possible, existing vegetation (trees) are preserved on-site. c. Development minimises the use of retaining walls, where possible. d. Cut or fill does not exceed +/- 2.0 metres from natural ground level within the development (building) envelope. e. Cut or fill does not exceed +/- 0.50 metre within two (2) metres of any external boundary. f. Cut and fill batters shall not exceed a slope of 1:3 (volume:height). g. Earthworks complies with the requirements of the KSC Infrastructure Delivery Guide and AUS-SPEC.
2. Road Design	
2.1 The road design for subdivision: i. is of sufficient width and design to safely accommodate: a. all modes of transport (vehicle, pedestrian, cycling and mobility devices where required); b. underground services; c. street trees; d. on-street parking; and e. street lighting; ii. ensures the lot layout can cater for a range of uses and occupants; iii. provides for flow of through traffic with least disruption, including access, multiple routes and connectivity; iv. establishes widths of roads in accordance with function and usage; v. provides a variation in alignment (road widths) to allow for existing natural features and to create interest in the streetscape; vi. responds to the natural topography of the land and minimises the provision of earthworks and retaining walls; vii. provides a network of safe “shared paths” (pedestrian, cycle and mobility); viii. reflects the role of the road and the needs of road users; ix. provides public roads rather than private roads.	a. The subdivision road design is in accordance with the KSC Infrastructure Delivery Guide and meets relevant KSC AUS-SPEC Design Specifications for road network hierarchy, configuration and layout. b. Roads, including all infrastructure, street trees, footpaths, cycleways and lighting are designed in accordance with KSC AUS-SPEC Design Specifications. c. Road easements provide for “shared pavements” (footpath and/or cycleways) within the road reserve (but separate to the main vehicle carriageway), to connect with existing and proposed networks, and in accordance with KSC “Active Transport” strategies and policies. d. Provide fully serviced subdivisions including sealed road system with drainage provision (such as kerb and gutter) to adequately and safely provide both vehicular and pedestrian access to each allotment. e. Road layouts should avoid downhill cul-de-sacs. f. Where access handles for battle-axe lots are permitted, these are of sufficient width to allow for the minimum driveway width and any emergency access that is required (such as rural fire service) to accommodate landscape and underground services along the driveway.

Desired Outcome	Development Control Requirements
2.2 The number of vehicle crossovers is generally limited to one (1) per residential property.	a. Vehicle crossovers are designed and constructed in accordance with KSC AUS-SPEC Design Specifications. b. Where lots have a slope of > 1 in 6 (approx. 16%), a driveway grade must be shown on the plans.
2.3 The naming of roads as part of a subdivision are compliant with the applicable NSW guidelines and policies.	a. Development Applications for subdivisions involving dedication of a public road are accompanied by a statement suggesting a minimum of three (3) names for the new road. b. Proposed street names are to be submitted with the development application and are in accordance with the NSW Address Policy and User Manual and are to be consistent with the NSW Geographical Names Board Guidelines for the Naming of Roads. c. Council reserves the right to not accept a suggested road name / change a road name, where deemed appropriate. d. The developer is responsible for the installation of street signs in accordance with the approved street name. e. Street name signs are erected at the junction of all roads in the subdivision.
3. Landscape, Open Space and Amenity	
Public Open Space 3.1 Public Open Space: a. Retains significant vegetation and important landscape features; b. Is sympathetic to the local landscape and/or neighbourhood character; c. Invites positive community social interactions, active, passive activities and safety; d. Forms part of the network of pedestrian/cycle linkages within the area; e. Integrates with Water Sensitive Urban Design treatments where possible; f. Integrates with green linear corridors, which provides multiple functions, including open space, urban cooling, vegetated habitat linkages, stormwater management, pedestrian and cycle connections and the like; and g. Provides for practical and sustainable management and maintenance. **Note:** Public open space may include reserves, local parks, playgrounds, sports fields, drainage swales, nature/green corridors, parkways and boulevards etc.	a. Public open space must be provided in a manner that: i. Is highly accessible to surrounding residential neighbourhoods (within five hundred (500) metres of all lots). ii. Has a minimum of two frontages to a public street, where possible. iii. Provides for adequate surveillance, public safety and practical, visible connections. iv. Is responsive to emerging trends and technologies (i.e. Public Wi-Fi, and digital access in public parks and recreational areas). v. Has been designed to incorporate any natural or cultural features of the land. vi. Integrates with pedestrian and cycle links, community facilities and other recreational precincts. vii. Integrates with major drainage networks and water quality facilities, where these are compatible and do not pose a public safety risk. viii. Can be maintained efficiently and effectively. ix. Complies with the requirements stipulated in **Table D1.2.**

Desired Outcome	Development Control Requirements
This is to be determined based on location, site, existing natural features and/or community requirements.	b. In special cases, where physical open space provision within the subdivision is not deemed desirable, the public open space provision may be provided in the form of a contribution to the wider neighbourhood/ area open space requirements, as determined by KSC.

Table D1.2 – Subdivision Open Space Provision

Sub-division Size	Requirement	Submission
>300 lots	Public Open Space	Pre-lodgement Meeting Open Space Strategy Management & Maintenance Strategy Staging Plan
>50 – 300 lots	To KSC discretion	TBD
<50 lots	Contribution	TBD

Open Space - Local Parks 3.2 Local parks are provided at a size, location and quality commensurate with the size and nature of the subdivision. 3.3 Local parks are provided in accordance with any approved Master Plan.	a. Local parks are designed with reference to relevant Council Strategies (e.g. Community Infrastructure Facilities, Biodiversity, Bike Plan, Sport Strategy, Sustainability and Resilience etc.). b. Where required by Council, an Open Space Management Strategy is submitted with the development application and approved by Council for any proposed local parks, which shall include the following: i. A maintenance strategy; ii. Identification of the point in the development process that the local park will be handed over to Council; and iii. Whether the local park will be developed in stages.
Open Space – Reserves and Nature Corridors etc (other than 'Local Park') 3.4 The public reserve (e.g. natural reserve, bike path, sports field or nature corridor etc.) is provided at a size, location, connection and quality commensurate with the size and nature of the development. 3.5 Public open space(s) are provided in accordance with any approved Master Plan.	a. Public open space is designed with reference to relevant Council Strategies (e.g. Community Infrastructure Facilities, Biodiversity, Bike Plan, Sport Strategy, Sustainability and Resilience etc). b. An Open Space Management Strategy is submitted with the development application and approved by Council for any proposed local parks, which shall include the following: i. A maintenance strategy; ii. Identification of the point in the development process that the public open space will be handed over to Council; and iii. Whether the public open space will be developed in stages.
Landscape 3.6 Landscape within urban residential subdivision protects, enhances and maintains key features of the natural environment.	a. Landscape is designed in accordance with a site-specific landscape plan prepared by a suitably

Desired Outcome	Development Control Requirements
3.7 Soft landscape: a. Incorporates plant selection that is sensitive to local climate, soils, topography, natural features, local environmental conditions and its intended function. b. Is an integral component of urban design. c. Establishes low maintenance species.	qualified person and prepared in accordance with KSC AUS-SPEC Design Specifications. b. A landscape masterplan is required for all subdivision where a road network is proposed. c. Street tree species are to be in accordance with Council's guidance (refer **Part E – Appendix 5**) and consultation. d. Detailed landscape plans are required prior to issue of a Subdivision Works Certificate, or with the development application, if determined by Council. e. Public reserves / open space must be maintained by the applicant for a minimum period of twelve (12) months. f. Landscape must be installed prior to the issue of a Subdivision Certificate. Works-as-Executed drawings may be requested prior to the issue of the relevant certificate or following the required maintenance period to Council's discretion.
4. Stormwater Management	
Stormwater Management 4.1 Stormwater is managed on-site to an acceptable, practical level, or otherwise properly drained to a legal point of discharge without causing adverse impacts on public drainage infrastructure, downslope properties or the quality of receiving waters.	a. Application for subdivision shall be accompanied by a Stormwater Quality and Quantity Strategy including detailed modelling outlining the flows and characteristics by a certified practicing engineer in accordance with KSC AUS-SPEC. b. The strategy shall adopt the Major/Minor Concept as well as conservation of pre-existing flows to post development flow. c. Stormwater drainage systems shall be designed using the relevant Australian Rainfall and Runoff standards, where the minor system shall be capable of carrying the controlling flows from frequent runoff events, while the major system shall provide safe, well-defined overland flow paths for rare and extreme storm runoff events. d. Stormwater management should maximise the use of natural infiltration solutions to minimise the costs of maintaining man-made systems. e. Subdivision development considers the stormwater management requirements of the whole site / stormwater drainage system, including stormwater from upslope areas in the catchment that is based on a fully developed scenario, and considers downstream and adjoining land/property impacts. f. Existing stormwater management infrastructure abutting the subdivision development, including road drainage and drainage reserves are upgraded / replaced where they do not meet the requirements of the KSC Infrastructure Delivery Guide.

Desired Outcome	Development Control Requirements
	g. Where no legal point of discharge is available the development may need to provide up infiltration design up to all events. h. All upgrading works, works in kind or contributions will be at Council's discretion, in accordance with KSC's upgrading programmes and works scheduling. i. Suitable easements are provided for public stormwater infrastructure that occur or are necessary within properties.
Water quality (>6 lots or any lot >2500m²) 4.2 Point sources of pollution in the catchment are identified and their impacts minimised. 4.3 The stormwater management system optimises the interception, retention and removal of water borne pollutants before their discharge to receiving waters. 4.4 Water quality improvement devices are provided for the treatment of stormwater run-off before discharge from the site and are located to minimise negative impacts on both the natural and built (including traffic management) environments.	a. The development shall incorporate water quality treatment mechanisms designed in accordance with AUS-SPEC to ensure targets for the following are met: i. Total Suspended Solids (TSS) ii. Total Nitrogen (TN) iii. Total Phosphorous (TP) iv. Litter b. Development complies with sediment and erosion control requirements. c. The design of any bio-swales, or similar green/blue stormwater infrastructure has regard to the ongoing operations, responsibility, maintenance and management required into the future.
5. Utilities	
5.1 Infrastructure is adequate to service the needs of the subdivision and, where required, are upgraded or provide new infrastructure to meet the increase in demand generated by the development.	a. All utilities and services are to be provided in accordance with relevant statutory requirements, including KSC Infrastructure Delivery Guide and KSC AUS-SPEC. b. Existing utilities and services infrastructure capacity is sufficient to cater for the proposed demand.
5.2 Suitable water services are provided for the development.	a. Development is connected to a reticulated water supply main where available via a minimum service to KSC requirements and KSC Water Meter. b. Suitable easements are provided for public water infrastructure within properties. c. The developer meets the full cost of water reticulations, connections to existing services, and any required alterations or extensions to Council's existing infrastructure to service the lots.
5.3 Suitable electricity services are provided for the development.	a. Electricity services are provided to the development in accordance with requirements of the relevant authority and at the full cost of the developer. b. Electricity services are provided underground wherever possible. c. Applicants provide a letter from the electricity

Desired Outcome	Development Control Requirements
	provider, stating that satisfactory arrangements have been made to service each lot, prior to the issue of a Subdivision Certificate. d. Where new roads are proposed, subdivisions are provided with street lighting in accordance with the relevant Australian Standards for Lighting for roads and public spaces.
5.4 Suitable sewerage services are provided for the development.	a. Development is connected to a reticulated sewer main where available. b. Subdivision is not permitted to rely on on-site sewage management systems. c. Suitable easements are provided forpublic sewerage infrastructure within properties. d. Development is designed to facilitate connection to existing or planned sewerage infrastructure. e. The developer meets the full cost of water reticulations, connections to existing services, and any required alterations or extensions to Council's existing infrastructure to service the lots.
5.5 Suitable telecommunication services are provided for the development.	a. Telecommunication services are provided to each lot, where available. b. Where a telecommunications network is available to the site, applicants provide written confirmation from the relevant network provider stating that satisfactory arrangements have been made for connection, prior to the lots being created.

D1.2 Village Subdivision (RU5 zone)

Application of Part D.1

Part D1.2 applies to subdivision of land zoned RU5 Village under KLEP.

Objectives

Subdivision design for residential purposes in the RU5 Village zone, provides housing choice which is suited to the village character of the zone and is consistent with the dominant street patterns in the surrounding neighbourhood.

Provide for subdivision for any other purpose in the RU5 Village zone, which meets the needs of users and is compatible with surrounding development patterns.

Ensure subdivision in the RU5 Village zone is provided with adequate services and infrastructure to meet the needs of users.

The following desired outcomes and development control requirements in **Table D1.3** prescribe how the above objectives can be met.

Table D1.3 – Village Subdivision Controls (RU5 zone) – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1. Site Design	
Subdivision and Street Layout 1.1 Street layout is designed and oriented to provide lot access, safe legible connections and thoroughfares to neighbouring development and the existing road network.	a. Street Layouts: i. Configure streets in a “grid-like" layout for ease of access and safe road alignment. ii. Align streets east-west and north-south wherever possible. iii. Aim for north-south streets within 20 degrees west and 30 degrees east of true north. iv. Aim for east-west streets within 30 degrees south and 20 degrees north of true east.
1.2 Street layout facilitates lot configuration to provide for a variety of lot sizes, shapes, development envelopes and orientation and views/solar access.	a. Where streets are within the acceptable orientation range, lots are to be of a regular shape and designed to provide suitable property access, including for emergency vehicles. b. Development creates as many long lot boundaries as possible within the permissible orientation range. c. Where the street is not within the orientation range, lots which are positioned to achieve the acceptable orientation relative to the street may be used. d. Corner lot design incorporates four (4) metre splays parallel of the corner allotment and enables the construction of a future dwelling that can comply with the setback standards for both street frontages. e. Lots facing a cul-de-sac are to have a minimum frontage width of ten (10) metres.

Desired Outcome	Development Control Requirements
	f. The subdivision design provides for "shared paths" through connections at the end of the cul-de-sac, where physical connections can be made. The shared path has a minimum reserve width of four (4) metres and is sufficient to accommodate a pavement width that meets the requirements of AUS-SPEC. g. Battle-axe allotments are discouraged in greenfield development. h. Battle-axe lots are only permitted for infill sites where there is no other means of gaining access to a public road and compliance with the following is achieved: i. The lot meets the minimum lot size for the zone in KLEP, exclusive of the access handle. ii. Lots are of sufficient width to accommodate a dwelling house. i. The access handle for battle-axe shaped lots shall be in accordance with the requirements of AUS-SPEC. j. Access handles shall be sited away from noise and visually sensitive components of existing and future dwelling houses. k. Adequate provision is made for the collection of waste on the public street. l. Adequate provision is made for the manoeuvring of vehicles, including the ability to enter and exit the lot in a forward direction. m. For inaccessible infill sites, only two (2) battle-axe shaped lots are permitted.
Public Open Space 1.3 Subdivision creates a street layout which facilitates the provision of public open space (where the scale of development warrants this), including access, continuity/ connection with other landscape/open space/water courses and visibility.	a. Public open space, or public open space contributions are considered as part of the subdivision design, where the scale of development requires this (refer **Table D1.4**). b. Public open space is provided for the benefit, use and enjoyment of the immediate neighbourhood community. c. Where public open space is not provided and where required, a contribution towards its future provision is made, as agreed with Council.
Social Desired Outcomes 1.4 Development of public open spaces ensures that it can be accessed, used and enjoyed for activities by people in a range of different age groups and abilities, and is designed to take account of: a. Surveillance b. Public safety c. Practical visible connections	a. Development complies with Crime Prevention Through Environmental Design (CPTED) principles contained in Crime Prevention and the Assessment of Development Applications Guideline (NSW Police). b. Subdivision development provides an open space network of streetscapes that connects through the entire site with: i. Shared path connections throughout. ii. Clear visibility of paths and connections. c. Inclusive spaces and facilities (where these are provided)

Desired Outcome	Development Control Requirements
	d. Street trees and associated landscape are provided where appropriate, that assists movement, navigation and passive social activities.
Allotment Design 1.5 Subdivision creates lots that are sized and shaped to provide for a serviceable street frontage, practical site building envelopes and safe physical access.	a. Subdivision design is consistent with the dominant lot size configuration along the street, or within the immediate vicinity of the development site.
Lot Size and Area 1.6 Site and lot design size complies with the relevant provisions of KLEP and other applicable standards and preserves the village character of the zone.	a. The subdivision meets the Minimum Lot Size stated within KLEP and enables the construction of a future dwelling/s and likely outbuildings, open space, vehicle access and parking areas for residential lots; and future buildings, open space, vehicle access and parking areas for non-residential lots.
Lot Shape & Orientation 1.7 Lots are conducive to the development of future dwelling houses or other non-residential development on individual allotments. 1.8 Lots are oriented and sized (dimensioned) to maximise solar access.	a. Lots are regular in shape and contain a building platform (development envelope) sufficient to cater for the proposed lot size and type. **Lots facing east-west streets:** b. If the street runs east-west (so the lots face north or south): i. **North-facing lots** (street on the south side): minimum width **13.5 m**. ii. **South-facing lots** (street on the north side): minimum width **15.5 m** (wider to allow for car access to the sunny side). iii. The **narrowest lots** should be on the **north side** of the street. iv. The **south side** lots should be wider. **Lots facing north-south streets:** c. If the street runs north–south (so the lots face east or west): i. Lots should be at least **16 m wide**. ii. These lots generally need to be wider. iii. Corner or open-space lots can be narrower if they get sun from the north.
Lot aspect and site topography 1.9 Lot design works with the natural topography to optimise the aspect for views, maximising solar access, site drainage, and useability, while minimising site disturbance.	a. Sloping sites are generally suitable for medium to large lots only (refer also **Part B – B1 - Natural Hazards**). On sites of slopes >25%, subdivision is discouraged. b. Concentrate smaller lots on north facing slopes with gradients of less than 15% or adjacent to lightly treed public open space. c. Locate larger lots, non-residential uses or public open space where solar access is poorer, such as south facing slopes. d. Where significant vegetation is to be retained on the site, the size of the lot may need to be increased to allow solar access.

Desired Outcome	Development Control Requirements
Topography (earthworks) 1.10 Earthworks maintains the natural topography and minimises ground levels changes. Where essential earthworks are required, these are achieved through balanced cut and fill on-site. 1.11 Earthworks associated with development does not negatively impact on the surrounding streetscape, adjoining properties or public assets.	a. Street layouts and lot configuration; aspects, levels and grades are sympathetic to the natural topography of the site. b. Where possible, existing vegetation (trees) are preserved on-site. c. Development minimises the use of retaining walls, where possible. d. Cut or fill does not exceed +/- 2.0 metres from natural ground level within the development (building) envelope. e. Cut or fill does not exceed +/- 0.50 metre within two (2) metres of any external boundary. f. Cut and fill batters shall not exceed a slope of 1:3 (volume: height). g. Earthworks complies with the requirements of the KSC Infrastructure Delivery Guide and AUS-SPEC.
2. Road Design	
2.1 The road design for subdivision: i. is of sufficient width and design to safely accommodate: a. all modes of transport (vehicle, pedestrian, cycling and mobility devices where required); b. underground services; c. street trees; d. on-street parking; and e. street lighting; ii. ensures the lot layout can cater for a range of uses and occupants; iii. provides for flow of through traffic with least disruption, including access, multiple routes and connectivity; iv. establishes widths of roads in accordance with function and usage; v. provides a variation in alignment (road widths) to allow for existing natural features and to create interest in the streetscape; vi. responds to the natural topography of the land and minimises the provision of earthworks and retaining walls; vii. provides a network of safe "shared paths" (pedestrian, cycle and mobility); viii. reflects the role of the road and the needs of road users; ix. provides public roads rather than private roads.	a. The subdivision road design is in accordance with the KSC Infrastructure Delivery Guide and meets relevant KSC AUS-SPEC Design Specifications for road network hierarchy, configuration and layout. b. Roads, including all infrastructure, street trees, footpaths, cycleways and lighting are designed in accordance with KSC AUS-SPEC Design Specifications. c. Road easements provide for "shared pavements" (footpath and/or cycleways) where required within the road reserve (but separate to the main vehicle carriageway), to connect with existing and proposed networks, and in accordance with KSC "Active Transport" strategies and policies. d. Provide fully serviced subdivisions including sealed road system with drainage provision (including kerb and gutter if required in the RU5 zone by KSC), to adequately and safely provide both vehicular and pedestrian access to each allotment. e. Road layouts must avoid downhill cul-de-sacs. f. Where access handles for battle-axe lots are permitted, these are of sufficient width to allow for the minimum driveway width and any emergency access that is required (such as rural fire service) to accommodate landscape and underground services along the driveway.
2.2 The number of vehicle crossovers is generally limited to one (1) per residential property. 2.3 The number of vehicle crossovers for non-	a. Vehicle crossovers are designed and constructed in accordance with KSC AUS-SPEC Design Specifications.

Desired Outcome	Development Control Requirements
residential lots will be at the discretion of Council.	b. Where lots have a slope of 1 in 6 (approx. >16%), a driveway grade must be shown on the plans.
2.4 The naming of roads as part of a subdivision are compliant with the applicable NSW guidelines and policies.	a. Development Applications for subdivisions involving dedication of a public road are accompanied by a statement suggesting a minimum of three (3) names for the new road. b. Proposed street names are to be submitted with the development application and are in accordance with the NSW Address Policy and User Manual and are to be consistent with the NSW Geographical Names Board Guidelines for the Naming of Roads. c. Council reserves the right to not accept a suggested road name / change a road name, where deemed appropriate. d. The developer is responsible for the installation of street signs in accordance with the approved street name. e. Street name signs are erected at the junction of all roads in the subdivision.
3. Landscape, Open Space and Amenity	
Public Open Space 3.1 Public Open Space: i. Retains significant vegetation and important landscape features; ii. Is sympathetic to the local landscape and/or neighbourhood character; iii. Invites positive community social interactions, active, passive activities and safety; iv. Forms part of the network of pedestrian/cycle linkages within the area; v. Integrates with Water Sensitive Urban Design treatments where possible; vi. Integrates with green linear corridors, which provides multiple functions, including open space, urban cooling, vegetated habitat linkages, stormwater management, pedestrian and cycle connections and the like; and vii. Provides for practical and sustainable management and maintenance. **Note:** Public open space may include reserves, local parks, playgrounds, sports fields, drainage swales, nature/green corridors, parkways and boulevards etc. This is to be determined based on location, site, existing natural features and/or community requirements.	a. Public open space must be provided in a manner that: i. Is highly accessible to surrounding neighbourhoods. ii. Has a minimum of two frontages to a public street, where possible. iii. Provides for adequate surveillance, public safety and practical, visible connections. iv. Is responsive to emerging trends and technologies (i.e. Public Wi-Fi, and digital access in public parks and recreational areas). v. Has been designed to incorporate any natural or cultural features of the land. vi. Integrates with pedestrian and cycle links, community facilities and other recreational precincts. vii. Integrates with major drainage networks and water quality facilities, where these are compatible and do not pose a public safety risk. viii. Can be maintained efficiently and effectively. ix. Complies with the requirements stipulated in D1.4. b. In special cases, where physical open space provision within the subdivision is not deemed desirable, the public open space provision may be provided in the form of a contribution to the wider neighbourhood/ area open space

Desired Outcome	Development Control Requirements
	requirements, as determined by KSC.

Table D1.4 – Subdivision Open Space Provision

Sub-division Size	Requirement	Submission
>300 lots	Public Open Space	Pre-lodgement Meeting Open Space Strategy Management & Maintenance Strategy Staging Plan
>50 – 300 lots	To KSC discretion	TBD
<50 lots	Contribution	TBD

Open Space - Local Parks 3.2 Local parks are provided at a size, location and quality commensurate with the size and nature of the subdivision. 3.3 Local parks are provided in accordance with any approved Master Plan.	a. Local parks are designed with reference to relevant Council Strategies (e.g. Community Infrastructure Facilities, Biodiversity, Bike Plan, Sport Strategy, Sustainability and Resilience etc.). b. Where required by Council, an Open Space Management Strategy is submitted with the development application and approved by Council for any proposed local parks, which shall include the following: i. A maintenance strategy; ii. Identification of the point in the development process that the local park will be handed over to Council; and iii. Whether the local park will be developed in stages.
Open Space – Reserves and Nature Corridors etc (other than 'Local Park') 3.4 The public reserve (e.g. natural reserve, bike path, sports field or nature corridor etc.) is provided at a size, location, connection and quality commensurate with the size and nature of the development. 3.5 Public open space(s) are provided in accordance with any approved Master Plan.	a. Public open space is designed with reference to relevant Council Strategies (e.g. Community Infrastructure Facilities, Biodiversity, Bike Plan, Sport Strategy, Sustainability and Resilience etc). b. An Open Space Management Strategy is submitted with the development application and approved by Council for any proposed local parks, which shall include the following: i. A maintenance strategy; ii. Identification of the point in the development process that the public open space will be handed over to Council; and iii. Whether the public open space will be developed in stages.
Landscape 3.6 Landscape within subdivision protects, enhances and maintains key features of the natural environment. 3.7 Soft landscape: a. Incorporates plant selection that is sensitive to local climate, soils, topography, natural features, local environmental conditions and its intended function. b. Is an integral component of urban design.	a. Landscape is designed in accordance with a site-specific landscape plan prepared by a suitably qualified person and prepared in accordance with KSC AUS-SPEC Design Specifications. b. A landscape masterplan is required for all subdivision where a road network is proposed. c. Street tree species are to be in accordance with Council's guidance (refer **Part E – Appendix 5**) and consultation.

Desired Outcome	Development Control Requirements
c. Establishes low maintenance species.	d. Detailed landscape plans are required prior to issue of a Subdivision Works Certificate, or with the development application, if determined by Council. e. Public reserves / open space must be maintained by the applicant for a minimum period of twelve (12) months. f. Landscape must be installed prior to the issue of a Subdivision Certificate. Works-as-Executed drawings may be requested prior to the issue of the relevant certificate or following the required maintenance period to Council's discretion.
4. Stormwater Management	
Stormwater Management 4.1 Stormwater is managed on-site to an acceptable, practical level, or otherwise properly drained to a legal point of discharge without causing adverse impacts on public drainage infrastructure, downslope properties or the quality of receiving waters.	a. Application for subdivision shall be accompanied by a Stormwater Quality and Quantity Strategy including detailed modelling outlining the flows and characteristics by a certified practicing engineer in accordance with KSC AUS-SPEC. b. The strategy shall adopt the Major/Minor Concept as well as conservation of pre-existing flows to post development flow. c. Stormwater drainage systems shall be designed using the relevant Australian Rainfall and Runoff standards, where the minor system shall be capable of carrying the controlling flows from frequent runoff events, while the major system shall provide safe, well-defined overland flow paths for rare and extreme storm runoff events. d. Stormwater management should maximise the use of natural infiltration solutions to minimise the costs of maintaining man-made systems. e. Subdivision development considers the stormwater management requirements of the whole site / stormwater drainage system, including stormwater from upslope areas in the catchment that is based on a fully developed scenario, and considers downstream and adjoining land/property impacts. f. Existing stormwater management infrastructure abutting the subdivision development, including road drainage and drainage reserves are upgraded / replaced where they do not meet the requirements of the KSC Infrastructure Delivery Guide. g. Where no legal point of discharge is available the development may need to provide up infiltration design up to all events. h. All upgrading works, works in kind or contributions will be at Council's discretion, in accordance with KSC's upgrading programmes and works scheduling. i. Suitable easements are provided for public stormwater infrastructure that occur or are

Desired Outcome	Development Control Requirements
	necessary within properties.
Water quality (>6 lots or any lot >2500m²) 4.2 Point sources of pollution in the catchment are identified and their impacts minimised. 4.3 The stormwater management system optimises the interception, retention and removal of water borne pollutants before their discharge to receiving waters. 4.4 Water quality improvement devices are provided for the treatment of stormwater run-off before discharge from the site and are located to minimise negative impacts on both the natural and built (including traffic management) environments.	a. The development shall incorporate water quality treatment mechanisms designed in accordance with AUS-SPEC to ensure targets for the following are met: i. Total Suspended Solids (TSS) ii. Total Nitrogen (TN) iii. Total Phosphorous (TP) iv. Litter b. Development complies with sediment and erosion control requirements. c. The design of any bio-swales, or similar green/blue stormwater infrastructure has regard to the ongoing operations, responsibility, maintenance and management required into the future.
5. Utilities	
5.1 Infrastructure is adequate to service the needs of the subdivision and, where required, are upgraded or provide new infrastructure to meet the increase in demand generated by the development.	a. All utilities and services are to be provided in accordance with relevant statutory requirements, including KSC Infrastructure Delivery Guide and KSC AUS-SPEC. b. Existing utilities and services infrastructure capacity is sufficient to cater for the proposed demand.
5.2 Suitable water services are provided for the development.	a. Development is connected to a reticulated water supply main where available via a minimum service to KSC requirements and KSC Water Meter. b. Suitable easements are provided for public water infrastructure within properties. c. The developer meets the full cost of water reticulations, connections to existing services, and any required alterations or extensions to Council's existing infrastructure to service the lots.
5.3 Suitable electricity services are provided for the development.	a. Electricity services are provided to the development in accordance with requirements of the relevant authority and at the full cost of the developer. b. Electricity services are provided underground wherever possible. c. Applicants provide a letter from the electricity provider, stating that satisfactory arrangements have been made to service each lot, prior to the issue of a Subdivision Certificate. d. Where new roads are proposed, subdivisions are provided with street lighting in accordance with the relevant Australian Standards for Lighting for roads and public spaces.
5.4 Suitable sewerage services are provided for the	a. Development is connected to a reticulated

Desired Outcome	Development Control Requirements
development.	sewer main where available. If unsewered, an on-site effluent management system is installed that complies with the following: i. Relevant Australian Standards for On-site Domestic Wastewater Management. ii. NSW Environment and Health Protection Guidelines. iii. . b. Suitable easements are provided for public sewerage infrastructure within properties. c. Where the development is in near proximity to an existing sewered area or where in the opinion of the State government or Council, the land is unsuitable for onsite disposal of effluent, connection to the existing sewerage system will be required. d. An On-site Sewage Management Assessment Report to support sewage treatment proposals is to accompany an application for this type of development (refer also **Part E – Appendix 6** and KSC policy strategies and guidelines for relevant information). e. Development is designed so that an area remote from any watercourse and downhill of potential home sites is available for effluent disposal. f. The developer meets the full cost of water reticulations, connections to existing services, and any required alterations or extensions to Council's existing infrastructure to service the lots.
5.5 Suitable telecommunication services are provided for the development.	a. Telecommunication services are provided to each lot, where available. b. Where a telecommunications network is available to the site, applicants provide written confirmation from the relevant network provider stating that satisfactory arrangements have been made for connection, prior to the lots being created.

D1.3 Large Lot Subdivision (R5 zone)

Application of Part D1.3

Part D1.3 applies to subdivision of land zoned R5 Large Lot Residential under KLEP.

Objectives

Ensure large lot residential subdivision design provides for generous lots sizes to provide for houses on smaller lots in a rural setting.
Maintain the rural landscape character of the locality.
Large lot residential subdivision is provided with adequate services and infrastructure to meet the needs of residents.

The following desired outcomes and development control requirements in Table D1.5 prescribe how the above objectives can be met.

Table D1.5 – Large Lot Residential Subdivision Controls (R5 zone) – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1. Site Design	
Subdivision and Street Layout 1.1 Street layout is designed and oriented to provide lot access, safe legible connections and thoroughfares to neighbouring development and the existing road network.	a. Street layouts: i. Configure streets in a “grid-like" layout for ease of access and safe road alignment. ii. Align streets east-west and north-south wherever possible. iii. Aim for north-south streets within 20 degrees west and 30 degrees east of true north. iv. Aim for east-west streets within 30 degrees south and 20 degrees north of true east.
1.2 Street layout facilitates lot configuration to provide for a variety of large lot sizes, shapes, development envelopes and orientation and views/solar access.	a. Where streets are within the acceptable orientation range, lots are to be of a regular shape and designed to provide suitable property access, including for emergency vehicles. b. Development creates as many long lot boundaries as possible within the permissible orientation range. c. Where the street is not within the orientation range, lots which are positioned to achieve the acceptable orientation relative to the street may be used. d. Corner lot design incorporates four (4) metre splays parallel of the corner allotment and enables the construction of a future dwelling that can comply with the setback standards for both street frontages. e. Lots facing a cul-de-sac are to have a minimum frontage width of ten (10) metres.

Desired Outcome	Development Control Requirements
	f. The subdivision design provides for "shared paths" through connections at the end of the cul-de-sac, where physical connections can be made. The shared path has a minimum reserve width of four (4) metres and is sufficient to accommodate a pavement width that meets the requirements of AUS-SPEC. g. Adequate provision is made for the collection of waste on the public street. h. Adequate provision is made for the manoeuvring of vehicles, including the ability to enter and exit the lot in a forward direction.
Allotment Design 1.3 Subdivision creates lots that are sized and shaped to provide for a serviceable street frontage, practical site building envelopes and safe physical access. 1.4 Large lot residential subdivisions are designed to provide for a range of land-use opportunities permitted in the R5 zone, without causing impacts on sensitive natural environments. 1.5 The configuration of the subdivision has consideration for natural features such as rivers, creeks, topography of the land, tree groupings/vegetation and prominent natural features.	a. Subdivision design is consistent with the dominant lot size configuration along the street, or within the immediate vicinity of the development site. b. Subdivision avoids environmentally sensitive areas, such as estuarine wetlands, rainforests, dunal areas and steep slopes. c. Development for subdivision complies with the relevant provisions of **Part B – B1-B4** for Tree Management. d. Corner allotments are designed to enable the construction of a dwelling that can comply with the required setback requirements along both frontages.
Lot Size and Area 1.6 Site and lot design size complies with the relevant provisions of KLEP and other applicable standards and preserves the rural and large lot character of the zone.	a. The subdivision meets the Minimum Lot Size stated within KLEP and enables the construction of a future dwelling/s and likely outbuildings, open space, vehicle access and parking areas. b. Allotments are to be sized and configured to accommodate a suitable front boundary setback for intended future development of allotments.
Lot Shape & Orientation 1.7 Lots are conducive to the development of future dwelling houses or other non-residential development on individual allotments. 1.8 Lots are oriented and sized (dimensioned) to maximise solar access.	a. Lots are regular in shape and contain a building platform (development envelope) sufficient to cater for the proposed lot size and type.
Lot aspect and site topography 1.9 Lot design works with the natural topography to optimise the aspect for views, maximising solar access, site drainage, and useability, while minimising site disturbance. 1.10 Lot layouts minimise adverse impacts on views and vistas from public areas, roads and from nearby properties.	a. Sloping sites are generally suitable for medium to large lots only (refer also **Part B – B1 - Natural Hazards**). On sites of slopes >25%, subdivision is discouraged. b. Concentrate smaller lots on north facing slopes with gradients of less than 15% or adjacent to lightly treed public open space. c. Locate larger lots, non-residential uses or public open space where solar access is poorer, such as south facing slopes. d. Where significant vegetation is to be retained on the site, the size of the lot may need to be

Desired Outcome	Development Control Requirements
	increased to allow solar access.
Topography (earthworks) 1.11 Earthworks maintains the natural topography and minimises ground levels changes. Where essential earthworks are required, these are achieved through balanced cut and fill on-site. 1.12 Earthworks associated with development does not negatively impact on the surrounding streetscape, adjoining properties or public assets.	a. Street layouts and lot configuration; aspects, levels and grades are sympathetic to the natural topography of the site. b. Where possible, existing vegetation (trees) are preserved on-site. c. Development minimises the use of retaining walls, where possible. d. Cut or fill does not exceed +/- 2.0 metres from natural ground level within the development (building) envelope. e. Cut or fill does not exceed +/- 0.50 metre within two (2) metres of any external boundary. f. Cut and fill batters shall not exceed a slope of 1:3 (volume:height). g. Earthworks complies with the requirements of the KSC Infrastructure Delivery Guide and AUS-SPEC.
2. Road Design	
2.1 The road design for subdivision: a. is of sufficient width and design to safely accommodate: i. all modes of transport (vehicle, pedestrian, cycling and mobility devices where required); ii. underground services; iii. street trees; and iv. on-street parking; b. ensures the lot layout can cater for a range of uses and occupants; c. provides for flow of through traffic with least disruption, including access, multiple routes and connectivity; d. establishes widths of roads in accordance with function and usage; e. provides a variation in alignment (road widths) to allow for existing natural features and to create interest in the streetscape; f. responds to the natural topography of the land and minimises the provision of earthworks and retaining walls; g. reflects the role of the road and the needs of road users; h. provides public roads rather than private roads; i. creates an all-weather road system which achieves legal, functional and safe vehicular access to each allotment. 2.2 Access to subdivisions are designed/planned to: a. Minimise future conflicts over maintenance	a. The subdivision road design is in accordance with the KSC Infrastructure Delivery Guide and meets relevant KSC AUS-SPEC Design Specifications for road network hierarchy, configuration and layout. b. Roads are designed in accordance with KSC AUS-SPEC Design Specifications, to provide safe access to each allotment. c. Road layouts must avoid downhill cul-de-sacs. d. Sealing of the road pavement is required: i. For any new road to be provided in conjunction with the proposed subdivision; and ii. For the extension of any road which will be an extension of an existing sealed road; iii. On all new roads and existing roads which will be an extension of existing sealed roads. e. Minor subdivision of less than three (3) lots require all-weather 2 wheel drive access roads suitable for all year round access for essential services (e.g. school bus, ambulance, fire vehicle etc). Each proposal will be assessed on its merits and the following guidelines: i. The status of the road; ii. Existing road surface conditions; iii. Flooding frequency and hazards of creek or river crossings; and iv. Potential population catchment.

Desired Outcome	Development Control Requirements
and access; and b. Avoid reliance on non-dedicated public roads (e.g. Crown and Forestry roads etc).	
2.3 The number of vehicle crossovers is generally limited to one (1) per large lot residential property.	a. Vehicle crossovers are designed and constructed in accordance with KSC AUS-SPEC Design Specifications. b. Where lots have a slope of 1 in 6 (approx. >16%), a driveway grade must be shown on the plans.
2.4 Battle-axe lots and access handles are discouraged in the R5 zone.	a. Council may only consider battle-axe lots and access handles where a dedicated public road is not feasible. Such a case is to be considered on its merits; only where access handles would be used to minimise the number of access points to a main or arterial road, compared to alternative access arrangements. b. Where permitted, any access handles used in large lot residential lots are to: i. Have a minimum width of 10m; ii. Meet the relevant requirements of Planning for Bushfire Protection; iii. Provide for emergency access and service vehicle access; iv. Be located to minimise impacts on the front dwelling; v. Serve no more than two (2) allotments not having dedicated road access; vi. Link directly to an existing or proposed dedicated road; vii. Ensure that the road within the access handle is constructed to the standards and requirements of the Rural Fire Service and KSC Development Specifications; viii. Ensure that stormwater drainage must not increase overland flows to affected and adjacent properties; ix. Be constructed in accordance with the minimum design requirements of KSC Development Specifications; and x. Are to be in the form of a “Right of Access”, as defined by the Conveyancing Act 1919, where the conveyance of animals is unlikely but maintenance rights need to be provided or a “Right of Carriageway”, where the conveyance of animals is likely to be required. c. Suitable arrangements are to be provided for the maintenance of the access handle (e.g. which party will maintain it). These arrangements will be included in the terms of any instruments applying to the land.

Desired Outcome	Development Control Requirements
	Note – Council has no obligation or rights for ongoing maintenance of any access handles. Any ongoing maintenance issues are to be resolved between affected land owners.
2.5 The naming of roads as part of a subdivision are compliant with the applicable NSW guidelines and policies.	a. Development Applications for subdivisions involving dedication of a public road are accompanied by a statement suggesting a minimum of three (3) names for the new road. b. Proposed street names are to be submitted with the development application and are in accordance with the NSW Address Policy and User Manual and are to be consistent with the NSW Geographical Names Board Guidelines for the Naming of Roads. c. Council reserves the right to not accept a suggested road name / change a road name, where deemed appropriate. d. The developer is responsible for the installation of street signs in accordance with the approved street name. e. Street name signs are erected at the junction of all roads in the subdivision.
3. Landscape, Open Space and Amenity	
Landscape 1.1 Landscape within subdivision protects, enhances and maintains key features of the natural environment. 1.2 Soft landscape: i. Incorporates plant selection that is sensitive to local climate, soils, topography, natural features, local environmental conditions and its intended function. ii. Is an integral component of urban design. iii. Establishes low maintenance species.	a. Landscape is designed in accordance with a site-specific landscape plan prepared by a suitably qualified person and prepared in accordance with KSC AUS-SPEC Design Specifications. b. A landscape masterplan is required for all subdivision where a road network is proposed. c. Street tree species are to be in accordance with Council's guidance (refer **Part E – Appendix 5**) and consultation. d. Detailed landscape plans are required prior to issue of a Subdivision Works Certificate, or with the development application, if determined by Council. e. Public reserves / open space must be maintained by the applicant for a minimum period of twelve (12) months. f. Landscape must be installed prior to the issue of a Subdivision Certificate. Works-as-Executed drawings may be requested prior to the issue of the relevant certificate or following the required maintenance period to Council's discretion.
4. Stormwater Management	
Stormwater Management 4.1 Stormwater is managed on-site to an acceptable, practical level, or otherwise properly drained to a legal point of discharge without causing adverse impacts on public drainage infrastructure, downslope properties or the quality of receiving	a. Application for subdivision shall be accompanied by a Stormwater Quality and Quantity Strategy including detailed modelling outlining the flows and characteristics by a certified practicing engineer in accordance with KSC AUS-SPEC.

Desired Outcome	Development Control Requirements
waters.	b. The strategy shall adopt the Major/Minor Concept as well as conservation of pre-existing flows to post development flow. c. Stormwater drainage systems shall be designed using the relevant Australian Rainfall and Runoff standards, where the minor system shall be capable of carrying the controlling flows from frequent runoff events, while the major system shall provide safe, well-defined overland flow paths for rare and extreme storm runoff events. d. Stormwater management should maximise the use of natural infiltration solutions to minimise the costs of maintaining man-made systems. e. Subdivision development considers the stormwater management requirements of the whole site / stormwater drainage system, including stormwater from upslope areas in the catchment that is based on a fully developed scenario, and considers downstream and adjoining land/property impacts. f. Existing stormwater management infrastructure abutting the subdivision development, including road drainage and drainage reserves are upgraded / replaced where they do not meet the requirements of the KSC Infrastructure Delivery Guide. g. Where no legal point of discharge is available the development may need to provide up infiltration design up to all events. h. All upgrading works, works in kind or contributions will be at Council's discretion, in accordance with KSC's upgrading programmes and works scheduling. i. Suitable easements are provided for public stormwater infrastructure that occur or are necessary within properties.
Water quality (>6 lots or any lot >2500m^2) 4.2 Point sources of pollution in the catchment are identified and their impacts minimised. 4.3 The stormwater management system optimises the interception, retention and removal of water borne pollutants before their discharge to receiving waters. 4.4 Water quality improvement devices are provided for the treatment of stormwater run-off before discharge from the site and are located to minimise negative impacts on both the natural and built (including traffic management) environments.	a. The development shall incorporate water quality treatment mechanisms designed in accordance with AUS-SPEC to ensure targets for the following are met: i. Total Suspended Solids (TSS) ii. Total Nitrogen (TN) iii. Total Phosphorous (TP) iv. Litter b. Development complies with sediment and erosion control requirements. c. The design of any bio-swales, or similar green/blue stormwater infrastructure has regard to the ongoing operations, responsibility, maintenance and management required into the future.
5. Utilities	

Desired Outcome	Development Control Requirements
5.1 Infrastructure is adequate to service the needs of the subdivision and, where required, are upgraded or provide new infrastructure to meet the increase in demand generated by the development.	a. All utilities and services are to be provided in accordance with relevant statutory requirements, including KSC Infrastructure Delivery Guide and KSC AUS-SPEC. b. Existing utilities and services infrastructure capacity is sufficient to cater for the proposed demand.
5.2 Suitable water services are provided for the development.	a. Development is connected to a reticulated water supply main where available via a minimum service to KSC requirements and KSC Water Meter. b. Suitable easements are provided forpublic water infrastructure within properties. c. The developer meets the full cost of water reticulations, connections to existing services, and any required alterations or extensions to Council's existing infrastructure to service the lots.
5.3 Suitable electricity services are provided for the development.	a. Electricity services are provided to the development in accordance with requirements of the relevant authority and at the full cost of the developer. b. Electricity services are provided underground wherever possible. c. Applicants provide a letter from the electricity provider, stating that satisfactory arrangements have been made to service each lot, prior to the issue of a Subdivision Certificate.
5.4 Suitable sewerage services are provided for the development.	a. Development is connected to a reticulated sewer main where available. If unsewered, an on-site effluent management system is installed that complies with the following: i. Relevant Australian Standards for On-site Domestic Wastewater Management. ii. NSW Environment and Health Protection Guidelines. b. Suitable easements are provided for public sewerage infrastructure within properties. c. Where the development is in near proximity to an existing sewered area or where in the opinion of the State government or Council, the land is unsuitable for onsite disposal of effluent, connection to the existing sewerage system will be required. d. An On-site Sewage Management Assessment Report to support sewage treatment proposals is to accompany an application for this type of development (refer also **Part E – Appendix 6** and KSC policy strategies and guidelines for relevant information). e. Development is designed so that an area remote from any watercourse and downhill of

Desired Outcome	Development Control Requirements
	potential home sites is available for effluent disposal. f. The developer meets the full cost of water reticulations, connections to existing services, and any required alterations or extensions to Council's existing infrastructure to service the lots.
5.5 Suitable telecommunication services are provided for the development.	a. Telecommunication services are provided to each lot, where available. b. Where a telecommunications network is available to the site, applicants provide written confirmation from the relevant network provider stating that satisfactory arrangements have been made for connection, prior to the lots being created.

D1.4 Rural Subdivision

Application of Part D1.4

Part D1.4.1 applies to subdivision of land zoned RU1 Primary Production, RU2 Rural Landscape, RU3 Forestry, RU4 Primary Production Small Lots, C2 Environmental Conservation, C3 Environmental Management and C4 Environmental Living, under KLEP.

Objectives

Ensure rural subdivision design provides for lot sizes that are appropriate to maintain the primary industry production values of the land and to maintain the rural and scenic character of rural zones.

Rural subdivision is provided with adequate services and infrastructure which is appropriate for the rural setting.

The following desired outcomes and development control requirements in **Table D1.7** prescribe how the above objectives can be met.

Table D1.7 – Rural Subdivision Controls – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1. Site Design	
Subdivision and Street Layout 1.1 Street layout is designed and oriented to provide lot access, safe legible connections and thoroughfares to neighbouring development and the existing road network.	a. Street layouts: i. Provide for efficient access and circulation, and avoid multiple single route cul-de-sacs; and ii. Align streets east-west and north-south wherever possible.
1.2 Street layout facilitates lot configuration to provide for a variety of large rural lot sizes, shapes, development envelopes and orientation and views/solar access.	a. Regular shaped lots are developed where possible. b. Adequate provision is made for the collection of waste on the public street. c. Adequate provision is made for the manoeuvring of vehicles, including the ability to enter and exit the lot in a forward direction.
Allotment Design 1.3 Subdivision creates lots that are sized and shaped to provide for a serviceable street frontage, practical site building envelopes and safe physical access. 1.4 Rural subdivisions are designed to provide for a range of land-use opportunities permitted in the rural zones, without causing impacts on sensitive agricultural sustainability and environmentally sensitive lands. 1.5 Site and lot design size preserves the rural character of the zones. 1.6 The configuration of the subdivision has consideration for natural features such as rivers, creeks, topography of the land, tree	a. Subdivision design is consistent with the dominant lot size configuration along the street, or within the immediate vicinity of the development site. b. Subdivision avoids environmentally sensitive areas, such as estuarine wetlands, rainforests, dunal areas and steep slopes. c. Development for subdivision complies with the relevant provisions of **Part B – B1-B4** for Tree Management. d. Corner allotments are designed to enable the construction of a dwelling that can comply with the required setback requirements along both frontages.

Desired Outcome	Development Control Requirements
groupings/vegetation and prominent natural features. 1.7 Rural subdivision is designed to appropriately respond to: i. Protecting the productive rural values of the rural zones; ii. Satisfactory road access; iii. Bushfire risk; iv. Flooding; v. Slope and stability of the land; vi. Adjoining land usage; vii. Mineral resources; and viii. Suitability of the land for agriculture.	e. Subdivisions do not lead to fragmentation / alienation of Important Agricultural Land (IAL) identified in the DPI Agricultural Land Use Mapping Resources in NSW - User Guide and State Environmental Planning Policy (Primary Production) 2021. f. Subdivision design minimises disturbance to the natural environment, including the preservation of scenic amenity values. g. Subdivision design protects land from inappropriate land-uses which has been identified as being environmentally sensitive in KLEP.
Lot Size and Area 1.8 Site and lot design size complies with the relevant provisions of KLEP and other applicable standards and preserves the rural and large lot character of the zone. 1.9 Adequate frontages to main or arterial roads are provided to ensure adequate separation of property accesses to minimise traffic impacts and retain rural character of the area.	a. The subdivision meets the Minimum Lot Size stated within KLEP and enables the construction of a future dwelling/s and likely outbuildings, open space, vehicle access and parking areas. b. Allotments are to be sized and configured to accommodate a suitable front boundary setback for intended future development of allotments. c. Where a lot proposed to be created by subdivision has frontage to a main or arterial road, that frontage is not less than 400 metres.
Lot Shape & Orientation 1.10 Lots are conducive to the development of future dwelling houses or other non-residential development on individual allotments. 1.11 Lots are oriented and sized (dimensioned) to maximise solar access.	a. Lots are regular in shape and contain a building platform (development envelope) sufficient to cater for the proposed lot size and type.
Lot aspect and site topography 1.12 Lot design works with the natural topography to optimise the aspect for views, maximising solar access, site drainage, and useability, while minimising site disturbance. 1.13 Lot layouts minimise adverse impacts on views and vistas from public areas, roads and from nearby properties.	a. Sloping sites are generally suitable for medium to large lots only (refer also **Part B – B1 - Natural Hazards**). On sites of slopes >25%, subdivision is discouraged. b. Concentrate smaller lots on north facing slopes with gradients of less than 15% or adjacent to lightly treed public open space. c. Locate larger lots, non-residential uses or public open space where solar access is poorer, such as south facing slopes. d. Where significant vegetation is to be retained on the site, the size of the lot may need to be increased to allow solar access.
Topography (earthworks) 1.14 Earthworks maintains the natural topography and minimises ground levels changes. Where essential earthworks are required, these are achieved through balanced cut and fill on-site. 1.15 Earthworks associated with development does not negatively impact on the surrounding streetscape, adjoining properties or public assets.	a. Street layouts and lot configuration; aspects, levels and grades are sympathetic to the natural topography of the site. b. Where possible, existing vegetation (trees) are preserved on-site. c. Development minimises the use of retaining walls, where possible.

Desired Outcome	Development Control Requirements
	d. Cut or fill does not exceed +/- 2.0 metres from natural ground level within the development (building) envelope. e. Cut or fill does not exceed +/- 0.50 metre within two (2) metres of any external boundary. f. Cut and fill batters shall not exceed a slope of 1:3 (volume: height). g. Earthworks complies with the requirements of the KSC Infrastructure Delivery Guide and AUS-SPEC.
2. Road Design	
2.1 The road design for subdivision: i. is of sufficient width and design to safely accommodate: a. all modes of transport (vehicle, pedestrian, cycling and mobility devices where required); and b. underground services. ii. ensures the lot layout can cater for a range of uses and occupants; iii. provides for flow of through traffic with least disruption, including access, multiple routes and connectivity; iv. establishes widths of roads in accordance with function and usage; v. provides a variation in alignment (road widths) to allow for existing natural features and to create interest in the streetscape; vi. responds to the natural topography of the land and minimises the provision of earthworks and retaining walls; vii. reflects the role of the road and the needs of road users; viii. provides public roads rather than private roads; ix. creates an all-weather road system which achieves legal, functional and safe vehicular access to each allotment. 2.2 Access to subdivisions are designed/planned to: i. Minimise future conflicts over maintenance and access; ii. Minimise the burden on the community (e.g. maintenance) commensurate with the number of potential new rate payers; and iii. Avoid reliance on non-dedicated public roads (e.g. Crown and Forestry roads etc).	a. The subdivision road design is in accordance with the KSC Infrastructure Delivery Guide and meets relevant KSC AUS-SPEC Design Specifications for road network hierarchy, configuration and layout. b. Roads and associated infrastructure are designed in accordance with KSC AUS-SPEC Design Specifications. c. Road layouts must avoid downhill cul-de-sacs. d. Sealing of the road pavement is required: i. For any new road to be provided in conjunction with the proposed subdivision; and ii. For the extension of any road which will be an extension of an existing sealed road; iii. On all new roads and existing roads which will be an extension of existing sealed roads. e. Minor subdivision of less than three (3) lots in isolated rural areas require all-weather 2 wheel drive access roads suitable for all year round access for essential services (e.g. school bus, ambulance, fire vehicle etc). Each proposal will be assessed on its merits and the following guidelines: i. The status of the road; ii. Existing road surface conditions; iii. Flooding frequency and hazards of creek or river crossings; and iv. Potential population catchment.
2.3 The number of vehicle crossovers is generally limited to one (1) per rural property.	a. Vehicle crossovers are designed and constructed in accordance with KSC AUS-SPEC Design Specifications.

Desired Outcome	Development Control Requirements
	b. Where lots have a slope of >1 in 6 (approx. 16%), a driveway grade must be shown on the plans.
2.4 Battle-axe lots and access handles are discouraged in the rural zones.	a. Council may only consider battle-axe lots and access handles where a dedicated public road is not feasible. Such a case is to be considered on its merits; only where access handles would be used to minimise the number of access points to a main or arterial road, compared to alternative access arrangements. b. Where permitted, any access handles used in large lot residential lots are to: i. Have a minimum width of 10m; ii. Meet the relevant requirements of Planning for Bushfire Protection; iii. Provide for emergency access and service vehicle access; iv. Be located to minimise impacts on the front dwelling; v. Serve no more than two (2) allotments not having dedicated road access; vi. Link directly to an existing or proposed dedicated road; vii. Ensure that the road within the access handle is constructed to the standards and requirements of the Rural Fire Service and KSC Development Specifications; viii. Ensure that stormwater drainage must not increase overland flows to affected and adjacent properties; ix. Be constructed in accordance with the minimum design requirements of KSC Development Specifications; and x. Are to be in the form of a "Right of Access", as defined by the Conveyancing Act 1919, where the conveyance of animals is unlikely but maintenance rights need to be provided or a "Right of Carriageway", where the conveyance of animals is likely to be required. c. Suitable arrangements are to be provided for the maintenance of the access handle (e.g. which party will maintain it). These arrangements will be included in the terms of any instruments applying to the land. **Note** – Council has no obligation or rights for ongoing maintenance of any access handles. Any ongoing maintenance issues are to be resolved between affected land owners.

Desired Outcome	Development Control Requirements
2.5 The naming of roads as part of a subdivision are compliant with the applicable NSW guidelines and policies.	a. Development Applications for subdivisions involving dedication of a public road are accompanied by a statement suggesting a minimum of three (3) names for the new road. b. Proposed street names are to be submitted with the development application and are in accordance with the NSW Address Policy and User Manual and are to be consistent with the NSW Geographical Names Board Guidelines for the Naming of Roads. c. Council reserves the right to not accept a suggested road name / change a road name, where deemed appropriate. d. The developer is responsible for the installation of street signs in accordance with the approved street name. e. Street name signs are erected at the junction of all roads in the subdivision.
3. Landscape, Open Space and Amenity	
Protection of Bushfire Prone Land 3.1 Rural subdivision appropriately mitigates the risks associated with development on bushfire prone land.	a. Subdivisions on land classified as bushfire prone on the Rural Fire Service (RFS) Bushfire Prone Land Map complies with the RFS Planning for Bushfire Protection. b. A Bushfire Risk Assessment Report is lodged with the Statement of Environmental Effects in support of the Development Application for a subdivision that relates to an existing or proposed dwelling purpose. The Bushfire Risk Assessment Report is prepared by a suitably qualified and experienced bushfire consultant and addresses the proposed development's consistency with Planning for Bushfire Protection. c. The subdivision is designed so that any bushfire protection measures necessary in accordance with Planning for Bushfire Protection are able to be implemented / placed wholly within the development site, and not on neighbouring property (including Council reserves).
Protecting Environmental Qualities 3.2 Existing vegetation and habitats are preserved as part of the rural subdivision, to protect the environmental quality, ecological and scenic amenity values of the rural zones.	a. Any clearing of native vegetation is kept to minimum levels in accordance with the recommendations of the Bushfire Risk Assessment Report and the requirements of Planning for Bushfire Protection. Native vegetation is protected under the BCA, up to the clearance thresholds of the BCA. b. Existing trees are protected on site as part of the rural subdivision, unless clearing has been undertaken in accordance with existing exemptions or approval has been granted for tree clearing under another permit.

Desired Outcome	Development Control Requirements
	c. The scenic values of the rural zone are protected through the rural subdivision.
4. Stormwater Management	
Stormwater Management 4.1 Stormwater is managed on-site, or otherwise properly drained without causing adverse impacts on downslope properties or the quality of receiving waters.	a. Application for subdivision shall be accompanied by a Stormwater Quality and Quantity Strategy including detailed modelling outlining the flows and characteristics by a certified practicing engineer in accordance with KSC AUS-SPEC. b. The strategy shall adopt the Major/Minor Concept as well as conservation of pre-existing flows to post development flow. c. Stormwater drainage systems shall be designed using the relevant Australian Rainfall and Runoff standards, where the minor system shall be capable of carrying the controlling flows from frequent runoff events, while the major system shall provide safe, well-defined overland flow paths for rare and extreme storm runoff events. d. Stormwater management should maximise the use of natural infiltration solutions to minimise the costs of maintaining man-made systems. e. Subdivision development considers the stormwater management requirements of the whole site / stormwater drainage system, including stormwater from upslope areas in the catchment that is based on a fully developed scenario, and considers downstream and adjoining land/property impacts. f. Existing stormwater management infrastructure abutting the subdivision development, including road drainage and drainage reserves are upgraded / replaced where they do not meet the requirements of the KSC Infrastructure Delivery Guide. g. Where no legal point of discharge is available the development may need to provide up infiltration design up to all events. h. All upgrading works, works in kind or contributions will be at Council's discretion, in accordance with KSC's upgrading programmes and works scheduling. i. Suitable easements are provided for public stormwater infrastructure that occur or are necessary within properties.
Water quality (>6 lots or any lot >2500m^2) 4.2 Point sources of pollution in the catchment are identified and their impacts minimised. 4.3 The stormwater management system optimises the interception, retention and removal of water borne pollutants before their discharge to receiving waters. 4.4 Water quality improvement devices are provided	a. The development shall incorporate water quality treatment mechanisms designed in accordance with AUS-SPEC to ensure targets for the following are met: i. Total Suspended Solids (TSS) ii. Total Nitrogen (TN) iii. Total Phosphorous (TP) iv. Litter

Desired Outcome	Development Control Requirements
for the treatment of stormwater run-off before discharge from the site and are located to minimise negative impacts on both the natural and built (including traffic management) environments.	b. Development complies with sediment and erosion control requirements. c. The design of any bio-swales, or similar green/blue stormwater infrastructure has regard to the ongoing operations, responsibility, maintenance and management required into the future.
5. Utilities	
5.1 Infrastructure is adequate to service the needs of the subdivision and, where required, are upgraded or provide new infrastructure to meet the increase in demand generated by the development.	a. All utilities and services are to be provided in accordance with relevant statutory requirements, including KSC Infrastructure Delivery Guide and KSC AUS-SPEC. b. Existing utilities and services infrastructure capacity is sufficient to cater for the proposed demand.
5.2 Suitable water services are provided for the development.	a. Development is connected to a reticulated water supply main where available via a minimum service to KSC requirements and KSC Water Meter. b. Suitable easements are provided for public water infrastructure within properties. c. The developer meets the full cost of water reticulations, connections to existing services, and any required alterations or extensions to Council's existing infrastructure to service the lots.
5.3 Suitable electricity services are provided for the development.	a. Electricity services are provided to the development in accordance with requirements of the relevant authority and at the full cost of the developer. b. Electricity services are provided underground wherever possible. c. Applicants provide a letter from the electricity provider, stating that satisfactory arrangements have been made to service each lot, prior to the issue of a Subdivision Certificate.
5.4 Suitable sewerage services are provided for the development.	a. Development is connected to a reticulated sewer main where available. If unsewered, an on-site effluent management system is installed that complies with the following: i. AS/NZ Relevant Australian Standards for On-site Domestic Wastewater Management. ii. NSW Environment and Health Protection Guidelines. iii. . b. Suitable easements are provided for public sewerage infrastructure within properties. c. Where the development is in near proximity to an existing sewered area or where in the opinion of the State government or Council, the land is unsuitable for onsite disposal of effluent,

Desired Outcome	Development Control Requirements
	connection to the existing sewerage system will be required. d. An On-site Sewage Management Assessment Report to support sewage treatment proposals is to accompany an application for this type of development (refer also **Part E – Appendix 6** and KSC policy strategies and guidelines for relevant information). e. Development is designed so that an area remote from any watercourse and downhill of potential home sites is available for effluent disposal. f. The developer meets the full cost of water reticulations, connections to existing services, and any required alterations or extensions to Council's existing infrastructure to service the lots.
5.5 Suitable telecommunication services are provided for the development.	a. Telecommunication services are provided to each lot, where available. b. Where a telecommunications network is available to the site, applicants provide written confirmation from the relevant network provider stating that satisfactory arrangements have been made for connection, prior to the lots being created.

D1.5 Business, Commercial and Industrial Subdivision

Application of Part D1.5

Part D1.5 applies to subdivision of land zoned E1 – Local Centre, E2 – Commercial Centre, E3 – Productivity Support, E4 – General Industrial and MU-1 Mixed Use, under KLEP.

Objectives

1. Ensure commercial and industrial subdivision design provides a range of lot sizes suited to the development of business, commercial and industrial uses and is practical, efficient and consistent with the dominant street patterns in developed surrounding areas.
2. Business, commercial and industrial subdivision is provided with adequate services and infrastructure to meet the needs of users.
3. Encourage and facilitate employment and economic activity, through the creation of lots that are fit-for-purpose and meet the specific needs of business, commercial or industrial businesses.

The following desired outcomes and development control requirements in **Table D1.8** prescribe how the above objectives can be met.

Table D1.8 – Commercial and Industrial Subdivision Controls – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1. Site Design	
Subdivision and Street Layout 1.1 Street layout is designed and oriented to provide lot access, safe legible connections and thoroughfares to neighbouring development and the existing road network.	a. Street Layouts: i. Configure streets in a “grid-like" layout for ease of access and safe road alignment.
1.2 Street layout facilitates lot configuration to provide for a variety of lot sizes, shapes, development envelopes and orientation and views/solar access.	a. Where possible streets alignment and configuration produces regular shaped lots. b. Development creates lots that are fit for the scale and purpose of business, commercial land industrial uses. c. Corner lot design incorporates four (4) metre splays parallel of the corner allotment, and enables the construction of future business, commercial or industrial buildings/structures that can comply with the setback standards for both street frontages. d. Lots facing a cul-de-sac are to have a minimum frontage width for appropriate lot and (future) building access. e. The subdivision design provides for “shared paths” connecting through the development, where physical connections can be made. The shared path has a minimum reserve width of four (4) metres and is sufficient to accommodate a pavement width that meets the requirements of AUS-SPEC. f. Battle-axe lots are only permitted for infill sites where there is no other means of gaining access

Desired Outcome	Development Control Requirements
	to a public road and compliance with the following is achieved: i. Where a minimum lot size applies, the lot meets the minimum lot size for the zone in KLEP, exclusive of the access handle. ii. Where no minimum lot size applies, the lot is of sufficient area and dimension to accommodate permissible development under the zone, having regard to any applicable floor space ratio or other relevant controls. iii. Lots are of sufficient width and configuration to accommodate permissible development under the zone. g. The access handle for battle-axe shaped lots shall be in accordance with the requirements of AUS-SPEC. h. Access handles shall be sited away from noise and visually sensitive components of any existing adjoining residential land. i. Adequate provision is made for the collection of waste on the public street. j. Adequate provision is made for the manoeuvring of vehicles, including the ability to enter and exit the lot in a forward direction. k. For infill sites, only two (2) battle-axe shaped lots are permitted.
Social Desired Outcomes 1.3 Development ensures that it can be accessed and used for related business, commercial and/or industrial activities by people and is designed to take account of: a. Surveillance b. Public safety c. Practical visible connections	a. Development complies with Crime Prevention Through Environmental Design (CPTED) principles contained in Crime Prevention and the Assessment of Development Applications Guideline (NSW Police). b. Subdivision development provides a safe street network in the public realm.
Allotment Design 1.4 Subdivision creates lots that are sized and shaped to provide for a serviceable street frontage, practical site building envelopes and safe physical access.	a. Subdivision design is consistent with the dominant lot size configuration along the street, or within the immediate vicinity of the development site. b. The subdivision design creates lots that are regular in shape and are of sufficient size and shape to enable the siting of future commercial or industrial buildings and ancillary structures, vehicle access and on-site parking. c. The subdivision design creates lots that are sized and dimensioned to accommodate the business, commercial or industrial operations and buildings envisaged for the area, allowing for possible future expansion and the proper and efficient functioning of the site, taking into account:

Desired Outcome	Development Control Requirements
	i. The need for provision of safe ingress for staff / visitors/ customer service. ii. The need for the provision of safe ingress and egress for heavy vehicles. iii. The need for efficient vehicular movement within the new commercial or industrial lots (i.e. delivery vehicles, service vehicles and customers). iv. The need to accommodate on-site car parking. v. The need to provide storage and bin areas. vi. The provision of buffer areas between future commercial or industrial activities and adjacent or nearby sensitive land-uses. vii. The need to accommodate building setback requirements.
Lot Size and Area 1.5 Site and lot design complies with the relevant provisions of KLEP and other applicable standards. 1.6 A range of lot sizes catering for the needs of development is provided. 1.7 Any lot should be large enough for parking and external space as well as the specific industrial or commercial use.	a. The subdivision meets the Floor Space Ratio (FSR) as stated within KLEP and enables the construction of a future commercial or industrial building/s and likely outbuildings, open space, vehicle access and parking areas. b. Allotments in commercial and industrial zones are designed to accommodate development that meets the requirements of: i. **Part D4** – Commercial Development; and ii. **Part D5** – Industrial Development.
Topography (earthworks) 1.8 Earthworks maintains the natural topography and minimises ground levels changes. Where essential earthworks are required, these are achieved through balanced cut and fill on-site. 1.9 Earthworks associated with development does not negatively impact on the surrounding streetscape, adjoining properties or public assets.	a. Street layouts and lot configuration; aspects, levels and grades are sympathetic to the natural topography of the site. b. Where possible, existing vegetation (trees) are preserved on-site. c. Development minimises the use of retaining walls, where possible. d. Cut or fill does not exceed +/- 2.0 metres from natural ground level within the development (building) envelope. e. Cut or fill does not exceed +/- 0.50 metre within two (2) metres of any external boundary. f. Cut and fill batters shall not exceed a slope of 1:3 (volume: height). g. Earthworks complies with the requirements of the KSC Infrastructure Delivery Guide and AUS-SPEC.
2. Road Design	
2.1 The street network has been designed to facilitate the safe movement of all road users, particularly heavy vehicle traffic	a. The road system that is required to service the proposed subdivision is designed to respond to the appropriate road hierarchy (e.g. arterial, collector, local road or minor access road) as outlined in KSC Infrastructure Delivery Guide and KSC AUS_SPECs. b. Subdivisions involving the creation of new public

Desired Outcome	Development Control Requirements
	roads, or the extension of an existing public road, comply with KSC Development Specifications. c. Kerb and gutter are provided to all classes of roads. d. Public roads, street lights, street trees, street signs and other road furniture are accommodated within existing / proposed road reserves in accordance with KSC Development Specifications.
2.2 The road design for subdivision: i. is of sufficient width and design to safely accommodate: a. all modes of transport (vehicle, pedestrian, cycling and mobility devices where required); b. underground services; c. street trees; d. on-street parking; and e. street lighting; ii. ensures the lot layout can cater for a range of uses, occupants and vehicles; iii. provides for flow of through traffic with least disruption, including access, multiple routes and connectivity; iv. establishes widths of roads in accordance with function and usage; v. provides a variation in alignment (road widths) to allow for existing natural features and to create interest in the streetscape vi. responds to the natural topography of the land and minimises the provision of earthworks and retaining walls; vii. provides a network of safe "shared paths" (pedestrian, cycle and mobility); viii. reflects the role of the road and the needs of road users; ix. provides public roads rather than private roads.	a. The subdivision road design including all infrastructure, street trees, footpaths, cycleways and lighting are designed in accordance with the KSC Infrastructure Delivery Guide and meets relevant KSC AUS-SPEC Design Specifications for road network hierarchy, configuration and layout. b. Road easements provide for "shared pavements" (footpath and/or cycleways) within the road reserve (but separate to the main vehicle carriageway), to connect with existing and proposed networks, and in accordance with KSC "Active Transport" strategies and policies. c. Provide fully serviced subdivisions including sealed road system with drainage provision (such as kerb and gutter) to adequately and safely provide both vehicular and pedestrian access to each allotment. d. The subdivision minimises the amount of new access points to the public road system by combining entrances where possible. e. Roads provide for safe turning and manoeuvring, taking account of projected traffic patterns. f. Where cul-de-sacs are permitted road layouts must avoid downhill cul-de-sacs. g. Where access handles for battle-axe lots are permitted, these are of sufficient width to allow for the minimum driveway width and any emergency access that is required (such as rural fire service) to accommodate and underground services and stormwater drainage along the driveway.
2.3 Road design and pavement design caters for heavy vehicle conditions, as relevant. 2.4 Roads are designed to minimise the impact of business, commercial and industrial traffic on the new and existing constructed road pavements.	a. The road system that is required to service the proposed subdivision is designed to the appropriate speed limit for the area (e.g. 40km/hr, 50km/hr or 60km/hr) in accordance with KSC AUS-SPECs and Infrastructure Delivery Guide. a. Existing roads, kerb and gutter and concrete footpaths abutting the subdivision are to be upgraded / replaced where they are assessed to be in poor condition, or do not meet KSC Infrastructure Delivery Guide, and AUS-SPEC Specifications.
2.5 The street network has been designed to facilitate the safe movement of all road users, particularly	a. The road system that is required to service the proposed subdivision is designed to respond to

Desired Outcome	Development Control Requirements
heavy vehicle traffic.	the appropriate road hierarchy (e.g. arterial, collector, local road or minor access road) as outlined in KSC Infrastructure Delivery Guide and KSC Development Specifications. b. Subdivisions involving the creation of new public roads, or the extension of an existing public road, comply with KSC Development Specifications. c. Kerb and gutter is provided to all classes of roads. d. Public roads, street lights, street trees, street signs and other road furniture are accommodated within existing / proposed road reserves in accordance with KSC Development Specifications.
2.6 The number of vehicle crossovers is generally limited to one (1) per residential property.	a. Vehicle crossovers are designed and constructed in accordance with KSC AUS-SPEC Design Specifications.
2.7 The naming of roads as part of a subdivision are compliant with the applicable NSW guidelines and policies.	a. Development Applications for subdivisions involving dedication of a public road are accompanied by a statement suggesting a minimum of three (3) names for the new road. b. Proposed street names are to be submitted with the development application and are in accordance with the NSW Address Policy and User Manual and are to be consistent with the NSW Geographical Names Board Guidelines for the Naming of Roads. c. Council reserves the right to not accept a suggested road name / change a road name, where deemed appropriate. d. The developer is responsible for the installation of street signs in accordance with the approved street name. e. Street name signs are erected at the junction of all roads in the subdivision.
3. Landscape, Open Space and Amenity	
3.1 Development: i. Retains significant vegetation and important landscape features; ii. Is sympathetic to the local landscape iii. Forms part of the network of pedestrian/cycle linkages within the area; iv. Integrates with Water Sensitive Urban Design treatments where possible; v. Integrates with green linear corridors, which provides multiple functions, including open space, urban cooling, vegetated habitat linkages, stormwater management, pedestrian and cycle connections and the like; and vi. Provides for practical and sustainable management and maintenance.	a. Development must be provided in a manner that: i. Is highly accessible to surrounding neighbourhoods. ii. Provides for adequate surveillance, public safety and practical, visible connections. iii. Is responsive to emerging trends and technologies (i.e. Public Wi-Fi, and digital access in public areas). iv. Has been designed to incorporate any natural or cultural features of the land. v. Integrates with pedestrian and cycle links, to community facilities or adjoining neighbourhoods. vi. Integrates with major drainage networks and water quality facilities, where these

Desired Outcome	Development Control Requirements
	are compatible and do not pose a public safety risk. vii. Can be maintained efficiently and effectively.
3.2 Development integrates stormwater and environmental management wherever possible and enhances the visual and environmental quality of the whole subdivision.	a. Street landscape must contribute to stormwater management.
Landscape 3.3 Landscape protects, enhances and maintains key features of the natural environment. 3.4 Soft landscape: i. Incorporates plant selection that is sensitive to local climate, soils, topography, natural features, local environmental conditions and its intended function. ii. Is an integral component of urban design. iii. Establishes low maintenance species.	a. Landscape is designed in accordance with a site-specific landscape plan prepared by a suitably qualified person and prepared in accordance with KSC AUS-SPEC Design Specifications. b. A landscape masterplan is required for all subdivision where a road network is proposed. c. Street tree species are to be in accordance with Council's guidance (refer **Part E – Appendix 5**) and consultation. d. Detailed landscape plans are required prior to issue of a Subdivision Works Certificate, or with the development application, if determined by Council. e. Public reserves / open space must be maintained by the applicant for a minimum period of twelve (12) months. f. Landscape must be installed prior to the issue of a Subdivision Certificate. Works-as-Executed drawings may be requested prior to the issue of the relevant certificate or following the required maintenance period to Council's discretion.
4. *Stormwater Management*	
Stormwater Management 4.1 Stormwater is managed on-site to an acceptable, practical level, or otherwise properly drained to a legal point of discharge without causing adverse impacts on public drainage infrastructure, downslope properties or the quality of receiving waters.	a. Application for subdivision shall be accompanied by a Stormwater Quality and Quantity Strategy including detailed modelling outlining the flows and characteristics by a certified practicing engineer in accordance with KSC AUS-SPEC. b. The strategy shall adopt the Major/Minor Concept as well as conservation of pre-existing flows to post development flow. c. Stormwater drainage systems shall be designed using the relevant Australian Rainfall and Runoff standards, where the minor system shall be capable of carrying the controlling flows from frequent runoff events, while the major system shall provide safe, well-defined overland flow paths for rare and extreme storm runoff events. d. Stormwater management should maximise the use of natural infiltration solutions to minimise the costs of maintaining man-made systems. e. Subdivision development considers the stormwater management requirements of the

Desired Outcome	Development Control Requirements
	whole site / stormwater drainage system, including stormwater from upslope areas in the catchment that is based on a fully developed scenario, and considers downstream and adjoining land/property impacts. f. Existing stormwater management infrastructure abutting the subdivision development, including road drainage and drainage reserves are upgraded / replaced where they do not meet the requirements of the KSC Infrastructure Delivery Guide. g. Where no legal point of discharge is available the development may need to provide up infiltration design up to all events. h. All upgrading works, works in kind or contributions will be at Council's discretion, in accordance with KSC's upgrading programmes and works scheduling. i. Suitable easements are provided for public stormwater infrastructure that occur or are necessary within properties.
Water quality (>6 lots or any lot >2500m^2) 4.2 Point sources of pollution in the catchment are identified and their impacts minimised. 4.3 The stormwater management system optimises the interception, retention and removal of water borne pollutants before their discharge to receiving waters. 4.4 Water quality improvement devices are provided for the treatment of stormwater run-off before discharge from the site and are located to minimise negative impacts on both the natural and built (including traffic management) environments.	a. The development shall incorporate water quality treatment mechanisms designed in accordance with AUS-SPEC to ensure targets for the following are met: i. Total Suspended Solids (TSS) ii. Total Nitrogen (TN) iii. Total Phosphorous (TP) iv. Litter b. Development complies with sediment and erosion control requirements. c. The design of any bio-swales, or similar green/blue stormwater infrastructure has regard to the ongoing operations, responsibility, maintenance and management required into the future.
5. Utilities	
5.1 Infrastructure is adequate to service the needs of the subdivision and, where required, are upgraded or provide new infrastructure to meet the increase in demand generated by the development.	a. All utilities and services are to be provided in accordance with relevant statutory requirements, including KSC Infrastructure Delivery Guide and KSC AUS-SPECs. b. Existing utilities and services infrastructure capacity is sufficient to cater for the proposed demand.
5.2 Suitable water services are provided for the development.	a. Development is connected to a reticulated water supply main where available via a minimum service to KSC requirements and KSC Water Meter. b. Suitable easements are provided for public water infrastructure within properties. c. The developer meets the full cost of water reticulations, connections to existing services,

Desired Outcome	Development Control Requirements
	and any required alterations or extensions to Council's existing infrastructure to service the lots.
5.3 Suitable electricity services are provided for the development.	a. Electricity services are provided to the development in accordance with requirements of the relevant authority and at the full cost of the developer. b. Electricity services are provided underground wherever possible. c. Applicants provide a letter from the electricity provider, stating that satisfactory arrangements have been made to service each lot, prior to the issue of a Subdivision Certificate. d. Where new roads are proposed, subdivisions are provided with street lighting in accordance with the relevant Australian Standards for Lighting for roads and public spaces.
5.4 Suitable sewerage services are provided for the development.	a. Development is connected to a reticulated sewer main where available. If unsewered, an on-site effluent management system is installed that complies with the following: i. Relevant Australian Standards for On-site Domestic Wastewater Management. ii. NSW Environment and Health Protection Guidelines iii. . b. Suitable easements are provided for public sewerage infrastructure within properties. c. Where the development is in near proximity to an existing sewered area or where in the opinion of the State government or Council, the land is unsuitable for onsite disposal of effluent, connection to the existing sewerage system will be required. d. An On-site Sewage Management Assessment Report to support sewage treatment proposals is to accompany an application for this type of development (refer also **Part E – Appendix 6** and KSC policy strategies and guidelines for relevant information). e. Development is designed so that an area remote from any watercourse and downhill of potential home sites is available for effluent disposal. d. The developer meets the full cost of water reticulations, connections to existing services, and any required alterations or extensions to Council's existing infrastructure to service the lots.
5.5 Suitable telecommunication services are provided for the development.	a. Telecommunication services are provided to each lot, where available. b. Where a telecommunications network is available to the site, applicants provide written

Desired Outcome	Development Control Requirements
	confirmation from the relevant network provider stating that satisfactory arrangements have been made for connection, prior to the lots being created.

D1.6 Strata and Community Title Subdivision

Application of Part D1.6

Part D1.6 applies to strata and community title subdivision of land in any zone where such development is permitted under KLEP.

Objectives

1. To ensure strata and community title subdivisions comply with relevant building codes and other relevant legislation, *including the Strata Schemes Development Act 2015* and *Community Land Development Act 2021*.
2. Ensure land is not fragmented by subdivisions that would create additional dwelling entitlements.
3. Subdivision design for residential, commercial and/or industrial purposes provides development choice which is suited to the purpose of the zone and is consistent with the dominant landscape, street and/or lot patterns in the surrounding area.
4. Ensure strata and community title subdivision complies with the requirements of KLEP.
5. Ensure strata and community title subdivision is provided with adequate services and infrastructure to meet the needs of users.
6. Provide for the effective and efficient management of common or shared facilities.
7. Allow separate titles to be created for parts of a development, where not otherwise provided for as complying development by *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

The following desired outcomes and development control requirements in **Table D1.9** prescribe how the above objectives can be met.

Table D1.9 – Strata and Community Subdivision Controls (zone) – desired outcomes and development control requirements

Desired Outcome	*Development Control Requirements*
1.Site Design	
Lot Design 1.1 Strata and community title subdivisions comply with relevant building codes.	a. The strata or community title subdivision will not result in an existing building contravening the provisions of the Building Code of Australia.
1.2 Subdivision layout responds to the natural site features including topography, vegetation, and watercourses.	a. Subdivision must identify and protect significant environmental features. b. Bushfire Asset Protection Zones must be incorporated as applicable. c. Earthworks should be integrated with the natural landform and minimised.
Lot Size and Area 1.3 Lots maintain and enhance the character of the surrounding locality/neighbourhood.	a. Lot sizes comply with the requirements of KLEP. b. Land is not fragmented by subdivisions that would create additional dwelling entitlements.
Lot Orientation 1.4 Development promotes energy-efficient lot orientation and passive solar design.	a. Building envelopes must be located to maximise solar access and privacy.
Topography (earthworks) 1.5 Earthworks maintains the natural topography and minimises ground levels changes. Where essential	a. Street layouts and lot configuration; aspects, levels and grades are sympathetic to the natural topography of the site.

Desired Outcome	*Development Control Requirements*
earthworks are required, these are achieved through balanced cut and fill on-site. 1.6 Earthworks associated with development does not negatively impact on the surrounding streetscape, adjoining properties or public assets.	b. Where possible, existing vegetation (trees) are preserved on-site. c. Cut or fill does not exceed +/- 2.0 metres from natural ground level within the development (building) envelope. d. Cut or fill does not exceed +/- 0.50 metre within two (2) metres of any external boundary. e. Cut and fill batters shall not exceed a slope of 1:3 (volume: height). f. Earthworks complies with the requirements of the KSC Infrastructure Delivery Guide and AUS-SPEC.
2. Road Design	
2.1 The development road network provides safe, legible, and efficient access and circulation for vehicles, pedestrians and cyclists. 2.2 Development roads are designed to accommodate emergency and service vehicles. 2.3 Minimise infrastructure costs through efficient layout and connectivity.	a. Practical, legal and safe access is provided to each strata or community title lot in accordance with Kempsey Infrastructure Delivery Guide. b. The road layout must connect logically to existing networks and support future development. c. Shared driveways and internal roads must be designed for safe access and turning movements. d. "Shared pathways" (pedestrian and/or cycleways) must be provided where appropriate, with lighting for safety. e. Roads must comply with Council's AUS-SPEC engineering specifications and Austroads Guide to Road Design.
3. Landscape Open Space and Amenity	
Landscape 3.1 Landscape protects, enhances and maintains key features of the natural environment. 3.2 Soft landscape: a. Incorporates plant selection that is sensitive to local climate, soils, topography, natural features, local environmental conditions and its intended function. b. Is an integral component of urban design. c. Establishes low maintenance species.	a. Landscape is designed in accordance with a site-specific landscape plan prepared by a suitably qualified person and prepared in accordance with KSC AUS SPEC Design Specifications. b. Detailed landscape plans are to be provided with the development application or, where required, prior to issue of a Subdivision Certificate.
3.3 Development preserves vegetation and is designed to retain and/or protect the natural topography, geographical features, water courses and riparian zones by being sited away from such elements on the site.	a. Development retains existing trees, vegetation and other environmental features such as natural watercourses etc. on site.
3.4 Communal open space is accessible and usable to support recreation and community interaction.	a. Communal open space must be centrally located, accessible, and designed for both passive and active use. b. A minimum of 10% of the site area should be dedicated to communal open space. c. Shared facilities (e.g. BBQ areas, playgrounds) must be designed for durability and safety.

Desired Outcome	*Development Control Requirements*
3.5 Open space integrates stormwater and environmental management wherever possible and enhances the visual and environmental quality of the whole subdivision.	a. Open space and street landscaping must include hardy native species to contribute to biodiversity and urban cooling.
4. Stormwater Management	
Stormwater Management 4.1 Stormwater is managed on-site to an acceptable, practical level, or otherwise properly drained to a legal point of discharge without causing adverse impacts on public drainage infrastructure, downslope properties or the quality of receiving waters.	a. Application for subdivision shall be accompanied by a Stormwater Quality and Quantity Strategy including detailed modelling outlining the flows and characteristics by a certified practicing engineer in accordance with KSC AUS-SPEC. b. The strategy shall adopt the Major/Minor Concept as well as conservation of pre-existing flows to post development flow. c. Stormwater drainage systems shall be designed using the relevant Australian Rainfall and Runoff standards, where the minor system shall be capable of carrying the controlling flows from frequent runoff events, while the major system shall provide safe, well-defined overland flow paths for rare and extreme storm runoff events. d. Stormwater management should maximise the use of natural infiltration solutions to minimise the costs of maintaining man-made systems. e. Subdivision development considers the stormwater management requirements of the whole site / stormwater drainage system, including stormwater from upslope areas in the catchment that is based on a fully developed scenario, and considers downstream and adjoining land/property impacts. f. Existing stormwater management infrastructure abutting the subdivision development, including road drainage and drainage reserves are upgraded / replaced where they do not meet the requirements of the KSC Infrastructure Delivery Guide. g. Where no legal point of discharge is available the development may need to provide up infiltration design up to all events. h. All upgrading works, works in kind or contributions will be at Council's discretion, in accordance with KSC's upgrading programmes and works scheduling. i. Suitable easements are provided for public stormwater infrastructure that occur or are necessary within properties.
Water quality (>6 lots or any lot >2500m^2) 4.2 Point sources of pollution in the catchment are identified and their impacts minimised. 4.3 The stormwater management system optimises the interception, retention and removal of water borne	a. The development shall incorporate water quality treatment mechanisms designed in accordance with AUS-SPEC to ensure targets for the following are met: i. Total Suspended Solids (TSS)

Desired Outcome	*Development Control Requirements*
pollutants before their discharge to receiving waters. 4.4 Water quality improvement devices are provided for the treatment of stormwater run-off before discharge from the site and are located to minimise negative impacts on both the natural and built (including traffic management) environments.	ii. Total Nitrogen (TN) iii. Total Phosphorous (TP) iv. Litter b. Development complies with sediment and erosion control requirements. c. The design of any bio-swales, or similar green/blue stormwater infrastructure has regard to the ongoing operations, responsibility, maintenance and management required into the future.
5. Utilities	
5.1 Infrastructure is adequate to service the needs of the subdivision and, where required, are upgraded or provide new infrastructure to meet the increase in demand generated by the development.	a. All utilities and services are to be provided in accordance with relevant statutory requirements, including KSC Infrastructure Delivery Guide and KSC AUS-SPEC. b. Existing utilities and services infrastructure capacity is sufficient to cater for the proposed demand.
5.2 Suitable water services are provided for the development.	a. Development is connected to a reticulated water supply main where available via a minimum service to KSC requirements and KSC Water Meter. b. Suitable easements are provided for public water infrastructure within properties. c. The developer meets the full cost of water reticulations, connections to existing services, and any required alterations or extensions to Council's existing infrastructure to service the lots.
5.3 Suitable electricity services are provided for the development.	a. Electricity services are provided to the development in accordance with requirements of the relevant authority and at the full cost of the developer. b. Electricity services are provided underground wherever possible. c. Applicants provide a letter from the electricity provider, stating that satisfactory arrangements have been made to service each lot, prior to the issue of a Subdivision Certificate. d. Where new roads are proposed, subdivisions are provided with street lighting in accordance with the relevant Australian Standards for Lighting for roads and public spaces.
5.4 Suitable sewerage services are provided for the development.	a. Development is connected to a reticulated sewer main where available. If unsewered, an on-site effluent management system is installed that complies with the following: i. Relevant Australian Standards for On-site Domestic Wastewater Management.

Desired Outcome	*Development Control Requirements*
	ii. NSW Environment and Health Protection Guidelines. b. Suitable easements are provided for public sewerage infrastructure within properties. c. Where the development is in near proximity to an existing sewered area or where in the opinion of the State government or Council, the land is unsuitable for onsite disposal of effluent, connection to the existing sewerage system will be required. d. An On-site Sewage Management Assessment Report to support sewage treatment proposals is to accompany an application for this type of development (refer also **Part E – Appendix 6** and KSC policy strategies and guidelines for relevant information). e. Development is designed so that an area remote from any watercourse and downhill of potential home sites is available for effluent disposal. f. The developer meets the full cost of water reticulations, connections to existing services, and any required alterations or extensions to Council's existing infrastructure to service the lots.
5.5 Suitable telecommunication services are provided for the development.	a. Telecommunication services are provided to each lot, where available. b. Where a telecommunications network is available to the site, applicants provide written confirmation from the relevant network provider stating that satisfactory arrangements have been made for connection, prior to the lots being created.

D2 RESIDENTIAL DEVELOPMENT

Application

Part D2 applies to development of land for residential purposes, which occurs on any zoned land under KLEP.

This section applies to all development applications made for:

- D2.1 Dwelling Houses
- D2.2 Large Lot Residential Dwelling Houses
- D2.3 Dual Occupancy
- D2.4 Secondary Dwellings
- D2.5 Multi-dwelling development
- D2.6 Shop-top Housing, Residential Flat Buildings, Tourist and Visitor Accommodation
- D2.7 Ancillary Development

D2.1 Dwelling Houses

Application

This section applies to dwelling houses and alterations and additions to existing dwelling houses on land in the R1 General Residential, R3 Medium Density Residential and RU5 Rural Village zones under the Kempsey Local Environmental Plan (KLEP).

Objectives

1. Encourage diversity of dwelling houses for residential purposes, recognising the varied needs and demands of the local housing market across Kempsey Shire.
2. Dwelling houses are designed, sited and serviced to optimise residential land use while minimising impacts on the surrounding streetscape and existing residential amenity.
3. To ensure dwelling houses are provided with adequate open space and services to meet the needs of residents.
4. Achieve efficient and sustainable housing designs, which are energy efficient.
5. Provide for adaptable housing, that allows dwelling houses to be retrofitted to meet the changing needs of its occupant/s.

The following desired outcomes and development control requirements in **Table D2.1** prescribe how the above objectives can be met.

Table D2.1 – Dwelling Houses – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1. Site Design	
Site Coverage 1.1 The proportion of a lot that is occupied by buildings or structures maintains allowable density and ensures adequate open space, for landscape, amenity and proper drainage of the site.	a. Development must comply with the specified limits for site coverage in accordance with the following **Table D2.2**.

Table D2.2 – Site coverage

Lot Size	Maximum site coverage (%)	Set backs *(Note: 2+ storey dwellings and upper storey setbacks are subject to controls and over shadowing requirements)*		
		Front	Side	Rear
< 300 m²	70	5.00 m	900mm	3.00 m
300 - 500 m²	65	5.00 m	900mm	3.00 m
500 - 650 m²	60	5.00 m	900mm	3.00 m
650 - 800 m²	55	5.00 m	900mm	3.00 m
>800 m²	50	5.00 m	900mm	3.00 m

Setbacks 1.1 Dwelling houses are set back at consistent distances with the immediate adjacent dwellings, to provide adequate space for landscaping, private recreation and off-street parking. 1.2 Dwelling houses are set back at consistent distances to minimise negative impacts	a. A minimum set back of 5 metres shall be provided to the primary street frontage. b. Some non-enclosed elements of a building's front façade may protrude from that facade into the front boundary setback, to a maximum of 1.50 metres and not exceeding 25% of the building frontage width.

Desired Outcome	Development Control Requirements
related to streetscape, privacy and overshadowing.	c. On a corner allotment, the setback to the secondary street frontage must be consistent with adjoining setbacks, but must not be less than 3 metres. d. A minimum absolute setback of 900mm for side boundaries is achieved for single storey dwellings up to 5 metres in height (at the highest point of the roof). e. A minimum setback of 1.5 metres for side boundaries shall apply to the second storey and above. f. A minimum absolute setback of 3 metres for rear boundaries is achieved for single storey dwellings up to 5 metres in height (at the highest point of the roof). g. Development is designed so that attached garages are setback a minimum 6 metres from the property boundary or 1 metre behind the house façade (whichever is the greater).
Topography (earthworks) 1.4 Dwellings are sited and designed to accommodate the natural slope and orientation of the site and immediately adjacent land. 1.5 Earthworks associated with development do not negatively impact on the surrounding streetscape, adjoining properties or public assets.	a. Earthworks must not alter the existing ground level/natural topography where there are existing vegetation and trees to be preserved. b. Where existing trees are preserved, no earthworks are permitted closer to the trunk or main stem than the drip-line (canopy extent) of the tree. c. Earthworks must not exceed a cut or fill of greater than 1.50 metres depth/height from the existing ground level/natural topography of the site, or be assessed by a suitably qualified engineer. d. Cut and fill batters shall not exceed a slope of 1:3 (volume: height). e. Cut and fill batters and retaining walls outside the building footprint must be landscaped to mitigate visual impacts. f. Earthworks must comply with KSC Infrastructure Delivery Guide and KSC AUS-SPECS requirements.
2. Development Design	
Building Form 2.1 Building siting, height, scale and roof form must not negatively impact the surrounding development, streetscape, topography and character.	a. Where a Height of Building Map applies, building height complies with the relevant height limit under the KLEP. b. The continuous length of a building wall or retaining wall greater than 1.8m in height shall be no more than fifteen (15) metres. c. Where building external wall/façade is longer than fifteen (15) metres in length, they must be articulated. The articulation of the external wall must be of minimum one (1) metre in depth and three (3) metres in length.
Passive Design 2.2 Dwelling houses are designed and constructed to maximise their liveability, amenity and sustainability through their orientation, sustainable building fabrics, thermal performance, energy	a. Dwelling houses should be designed and sited so that the living areas and major part of their private open space have a northern orientation and receive the maximum amount of sunlight in winter and provide the opportunity for planting trees for summer shading and amenity value.

Desired Outcome	Development Control Requirements
generation/consumption and water collection, use and reuse. 2.3 Development achieves energy efficiency, through dwelling orientation, access to sunlight (generally: maximise in Winter, minimise in Summer), natural ventilation and the use of sustainable building fabrics.	b. Development should be designed for energy efficiency by: i. minimising the overall surface area through which heat gains and losses can occur and providing for insulation of the dwelling; ii. avoiding large expanses of glazing on south and west facing walls; iii. Maximising natural ventilation for summer cooling in summer by building orientation and width, and windows to funnel air flow and breezes. c. Windows on the northern side of dwellings (north facing habitable rooms or external living spaces of the dwelling house) should be designed to maximise winter sun access and minimise summer sun access. d. Dwelling houses should utilise sun protection devices, (i.e. deep eaves, screens, verandahs, pergolas, etc.) along western-facing walls to produce a comfortable microclimate in and around dwellings. e. A BASIX certificate is to be submitted for BASIX affected development.
Over-shadowing 2.4 Dwelling houses minimise overshadowing of adjoining properties.	Demonstrate that: a. Building design achieves at least 3 hours of solar access to key living spaces/ private open spaces of the adjoining dwellings on 21 June. b. For all dwellings where overshadowing may impact adjoining land, an applicant must prepare shadow diagrams showing solar access to neighbouring dwellings, private open space, solar collectors and panels on adjoining land and property. In complex and constricted situations Council may require hourly shadow simulations to be produced for detailed evaluation. **Note** - Such diagrams should be prepared by an architect, surveyor, engineer, or town planner and be based on a survey of the relevant site, development model and adjoining development.
Private open space (POS) 2.5 Developments must provide adequate private open space which ensures that the occupant has access to a private outdoor area for their sole use and enjoyment.	a. Development must be provided with a minimum private open space area in accordance with Table D2.3, which shall be directly accessible from the living areas of the dwelling. b. Private open space is to include a useable area that is not steeper than 1 in 8 and, where site conditions permit, contains a rectangle area with minimum dimensions of 4m by 4m. c. Any area within a side or rear setback less than 2 metres in width shall not be included when considering the area provided for private open space. d. Private open space (POS) areas enable an extension of the function of the dwelling for relaxation, dining, entertainment, recreation and children's play. e. The location and design of private open space takes into account the outlook and natural features of the site.

<table>
<tr><th>Desired Outcome</th><th>Development Control Requirements</th></tr>
<tr><td></td><td>f. The orientation of private open space should provide for maximum year-round use by receiving a minimum of three hours of sunlight between 9am and 3pm on 22 June. An applicant must prepare shadow diagrams showing solar access to private open space. In complex and constricted situations Council may require hourly shadow simulations to be produced for detailed evaluation.
Note - Such diagrams should be prepared by an architect, surveyor, engineer, or town planner and be based on a survey of the relevant site, development model and adjoining development.

g. Enclosing screen walls or fences ensure privacy for dwellings and courtyards by minimising overlooking from other dwellings.
h. Private open space may be located within the front setback where:
i. front door access is provided; and
ii. adequate provision is made for additional intensive landscaping within the property.

Table D2.3 – Private Open Space
<table><tr><th>Lot Area</th><th>Private Open Space (POS) m^2</th></tr><tr><td>< 300m^2</td><td>30m2</td></tr><tr><td>300-500m^2</td><td>40m2</td></tr><tr><td>500-650m^2</td><td>50m2</td></tr><tr><td>650-800m^2</td><td>60m2</td></tr><tr><td>> 800m^2</td><td>70m2</td></tr></table></td></tr>
<tr><td>Storage and utility function
2.6 Building design incorporates appropriate functional and storage spaces and areas for waste storage, transfer and disposal purposes.</td><td>a. Wall mounted air-conditioning units are not located higher than 1.8 metres above existing ground level and are to be set back a minimum of 450 millimetres from any boundary.
b. Development is provided with suitable waste bin storage behind the building frontage.
c. Waste storage and collection is to be managed wholly within the site. Waste bins and bulk waste storage areas are not to be located within the road reserve for collection purposes.
d. Building utilities components, such as solar panels and solar collectors are suitably incorporated into the roof design and hot water tanks are enclosed within the building fabric.</td></tr>
<tr><td>2.7 Development includes space and systems for waste management that ensures waste is collected, transported and/or disposed of in a lawful manner.</td><td>a. Development is provided with suitable waste bin storage, which is appropriately incorporated and screen from street view.
b. Waste management facilities proposed as part of the development shall be clearly illustrated on the plans of the proposed development.</td></tr>
<tr><td colspan="2">3. Landscape and Public Realm</td></tr>
<tr><td>Views and View Sharing</td><td></td></tr>
</table>

<table>
<tr><th>Desired Outcome</th><th>Development Control Requirements</th></tr>
<tr><td>3.1 Where existing development enjoys desired views (e.g. water, ocean views, views of forest, hills and mountains etc), new development is designed and sited so that at least a part of the desired view is visible from the existing development, where practicable.
3.2 Development provides for reasonably equitable sharing of views, between neighbouring properties, of water, ocean, forest, hills/mountains.</td><td>a. Development is to allow for the reasonable sharing of views with neighbouring dwellings and/or development.
b. The built form of development is to provide a transition to adjacent residential development, including reasonable setbacks from side and rear boundaries, particularly at the first floor level to allowed for view sharing.
c. An assessment of current view(s), viewpoints and impact (refer Part E – Appendix 1 “View Sharing”) along with graphic / modelled simulations may be necessary to support the application to Council’s requirements.</td></tr>
<tr><td>Landscape
3.3 Development incorporates landscape features to enhance the dwelling’s function and appearance.
3.4 Existing mature trees should be preserved.
3.5 Landscape design is complementary to the building design and surroundings.</td><td>a. Development provides a landscaped area that complements the design of the dwelling house, including trees and vegetation for privacy, shade and amenity.
b. Development provides for external clothes drying area. This should not be visible from the street.
c. The landscape design is complementary to the building design and surrounding streetscape, and provides landscape as outlined in Table D2.4.
d. Landscaping requirements are in addition to private open space.
Table D2.4 –Landscape requirements
<table><tr><th rowspan="2">Lot Area</th><th colspan="2">Landscape Site Area</th></tr><tr><th>Landscaped Area minimum (% of lot)</th><th>Deep Soil Zone (DSZ) Minimum (% of lot)</th></tr><tr><td>< 300m^2</td><td>25</td><td>20</td></tr><tr><td>300-500m^2</td><td>30</td><td>25</td></tr><tr><td>500-650m^2</td><td>35</td><td>30</td></tr><tr><td>650-800m^2</td><td>40</td><td>35</td></tr><tr><td>> 800m^2</td><td>45</td><td>40</td></tr></table></td></tr>
<tr><td>Deep Soil Zones
3.6 Deep soil zones are provided to allow for landscape planting (trees), the infiltration of rainwater to the groundwater table and to reduce site stormwater runoff.</td><td>a. Deep soil zones must have soft landscape applied, and cannot be covered by impervious surfaces; courts, buildings or other structures, nor can they be located on-structure such as over basements or as planter boxes.</td></tr>
<tr><td>Public Realm – primary street elevation
3.7 Development incorporates features which enhance privacy for the dwelling house, while maximising street surveillance.</td><td>a. Development is designed to provide street elevations that feature at least 1 main entry door and 1 major window to a living area or bedroom, to provide for visibility and street surveillance.
b. Laundry or bathroom windows are not prominent features of the primary street elevation.
c. Development allows appropriate passive surveillance to the public realm.</td></tr>
</table>

Desired Outcome	Development Control Requirements
4. Access and Vehicle Parking	
Access and Parking 4.1 Development provides appropriate access to the public road network and off-street parking.	a. Driveway locations, dimensions and finished levels comply with the KSC Infrastructure Delivery Guide and AUS-SPECs. b. Driveways adjoining a primary or secondary street must be designed to avoid roadside stormwater encroaching onto private property. c. lab on-site parking at the appropriate rate (refer **Part E – Appendix 4**). At least one (1) car parking space shall be behind the building line. d. Vehicle parking spaces are designed to comply with the KSC Infrastructure Delivery Guide and AUS-SPECs. **Note:** A separate application is required to be lodged with Council and approved for the construction of any layback and cross over of the road verge in accordance with the *Roads Act 1993*.
5 Amenity and Environment	
Privacy 5.1 Development enhances visual privacy of the dwelling house and mitigates visual impacts on the directly adjacent properties.	a. Windows on dwellings on sloping sites are offset from windows of adjacent dwelling houses. b. Second storey windows, balconies and decks are not situated directly opposite windows of primary living rooms in any adjoining dwellings or private open space areas of adjoining dwellings, unless treated. c. Where the window is less than 6 metres from a side or rear boundary adjacent to a residential property, a privacy screen or obscure glass must be provided for any part of a second storey window that is less than 1.5 metres above the second storey finished floor level.
Noise 5.2 Development mitigates noise impacts on directly adjacent properties.	a. The application must demonstrate the achievement of this Desired Outcome.
Environment 5.3 Development protects the environmental features, values and amenity qualities of the site and immediate surrounds.	a. Development minimises the removal of existing trees and vegetation on site. b. Existing street trees are retained wherever possible (small trees may be relocated within the property frontage street verge, on approval of Council).
6. Stormwater Management	
Stormwater Management 6.1 Stormwater from development is managed onsite to an acceptable, practical level. Stormwater in excess of this level must be properly drained to a legal point of discharge without causing adverse impacts on public drainage infrastructure, downslope properties or the quality of receiving waters.	a. Development shall be accompanied by a Stormwater Management Plan. b. The Stormwater Management Plan shall adopt the Major/Minor Concept as well as conservation of pre-existing flows to post development flow. c. Stormwater drainage systems shall be designed using the relevant Australian Rainfall and Runoff standards, where the minor system shall be capable of carrying the controlling flows from frequent runoff events, while the major system shall provide safe, well-

Desired Outcome	Development Control Requirements
	defined overland flow paths for rare and extreme storm runoff events. d. All stormwater overflow generated by development must be managed on-site for up to an AEP of 10%. Stormwater from events in excess of that must be drained to a legal point of discharge. e. Where no legal point of discharge is available the development may need to provide infiltration design or on-site detention. f. Stormwater management should maximise the use of natural infiltration solutions to minimise the costs of maintaining man-made systems. g. The use of such infiltration solutions such as deep soils zones, rain gardens and soakaway pits, permeable surfaces or other similar treatments for stormwater management are encouraged. h. Development that incorporates a water tank(s), detention ponds, into the stormwater management system must comply with the following: i. The water tank system, including roof area, tank inlet pipe size, tank storage capacity and tank outlet pipe size, must be suitably sized to accommodate stormwater in a 5% AEP, with all overflow being directed to a legal point of discharge, suitably sized rubble drain or properly constructed drainage channel, at least 3 metres clear of buildings. ii. Stormwater from driveways and hardstand areas is directed away from the water tank(s) and is properly managed to a legal point of discharge in accordance with this Part. iii. Tanks and fittings comply with Planning for Bushfire Protection, as applicable. i. Suitable easements are provided for public stormwater infrastructure within properties.
7. Utilities	
7.1 Infrastructure is adequate to service the needs of the development and, where required, are upgraded or provide new infrastructure to meet the increase in demand generated by the development.	a. All utilities and services are to be designed in accordance with relevant statutory requirements, including KSC Infrastructure Delivery Guide and KSC AUS-SPECs.
7.2 Suitable water services are provided for the development.	a. Development is connected to a reticulated water supply main where available via a minimum service to KSC requirements and KSC Water Meter. b. Suitable easements are provided for public water infrastructure within properties. c. The developer meets the full cost of water reticulations, plus the cost of connecting to the existing services.
7.3 Suitable electricity services are provided to service the development.	a. Electricity services are provided to the development in accordance with requirements of the relevant authority and at the full cost of the developer.

Desired Outcome	Development Control Requirements
	b. Electricity services are provided underground wherever possible.
7.4 Suitable sewerage services are provided for the development.	a. Development is connected to a reticulated sewer main where available. If unsewered, an on-site effluent management system is installed that complies with the following: i. Relevant Australian Standards for On-site Domestic Wastewater Management. ii. NSW Environment and Health Protection Guidelines. b. Suitable easements are provided for public sewerage infrastructure within properties. c. Where the development is in near proximity to an existing sewered area or where in the opinion of the State government or Council, the land is unsuitable for onsite disposal of effluent, connection to the existing sewerage system will be required. d. An On-site Sewage Management Assessment Report to support sewage treatment proposals is to accompany an application for this type of development (refer also **Part E – Appendix 6** and KSC policy strategies and guidelines for relevant information). e. Development is designed so that an area remote from any watercourse and downhill of potential home sites is available for effluent disposal. f. The developer meets the full cost of sewer reticulations, plus the cost of connecting to the existing services.
7.5 Suitable telecommunication services are provided for the development.	a. Telecommunication services are provided to each dwelling, where available. b. Where a telecommunications network is available to the site, applicants provide written confirmation from the relevant network provider stating that satisfactory arrangements have been made for connection, prior to the commencement of the use.

D2.2 Large Lot Residential Dwelling Houses

Application

This section applies to large lot residential dwelling houses and alterations and additions to existing large lot residential dwelling houses on land in the R5 Large Lot Residential zone under the Kempsey Local Environmental Plan (KLEP).

Objectives

1. Encourage diversity of large lot residential dwelling houses for residential purposes, recognising the varied needs and demands of the local housing market across Kempsey Shire.
2. Provide for dwelling houses on large residential lots in a peri-urban, urban periphery or rural setting.
3. Large lot residential dwelling houses are designed, sited and serviced to minimise impacts on the surrounding streetscape and existing residential amenity.
4. Achieve efficient and sustainable housing designs, which are energy efficient.
5. Provide for adaptable housing, that allows large lot residential dwelling houses to be retrofitted to meet the changing needs of its occupant/s.

The following desired outcomes and development control requirements in **Table D2.5** prescribe how the above objectives can be met.

Table D2.5 – Large Lot Residential Dwelling Houses – desired outcomes and development control requirements

Desired Outcome	*Development Control Requirements*
1. Site Design	
Site Coverage 1.1 The proportion of a lot that is occupied by buildings or structures maintains allowable density and ensures adequate open space, for landscape, amenity and proper drainage of the site.	a. The maximum area covered by all buildings and structures, does not exceed 50% of the lot area.
Setbacks 1.2 Large lot residential dwelling houses and alterations and additions to existing dwellings are properly located and ensure there is adequate separation between agricultural activities, environmentally sensitive land, neighbouring properties and public roads.	a. A minimum setback of ten (10) metres shall be provided to the primary street frontage. b. On a corner allotment, the setback to the secondary street frontage may be reduced to not less than five (5) metres. c. Development provides a minimum setback of five (5) metres to the side boundaries and ten (10) metres to the rear boundary.
Topography (earthworks) 1.3 Dwellings are sited and designed to accommodate the natural slope and orientation of the site and immediately adjacent land. 1.4 Earthworks associated with development do not negatively impact on the surrounding landscape, adjoining properties or public assets.	a. Earthworks must not alter the existing ground level/natural topography where there are existing vegetation and trees to be preserved. b. Where existing trees are preserved, no earthworks are permitted closer to the trunk or main stem than the drip-line (canopy extent) of the tree. c. Earthworks must not exceed a cut or fill of greater than 1.50 metres depth/height from the existing ground level/natural topography of the site, or be assessed by a suitably qualified engineer.

Desired Outcome	*Development Control Requirements*
	d. Cut and fill batters shall not exceed a slope of 1:3 (volume: height). e. Cut and fill batters and retaining walls outside the building footprint must be landscaped to mitigate visual impacts. f. Earthworks must comply with KSC Infrastructure Delivery Guide and KSC AUS-SPECS requirements.
2. Development Design	
Building Form 2.1 Building siting, height, scale and roof form must not negatively impact the surrounding development, streetscape, topography and character.	a. The continuous length of a building wall or retaining wall greater than 1.8m in height shall be no more than fifteen (15) metres. b. Where building external wall/façade is longer than fifteen (15) metres in length, they must be articulated. The articulation of the external wall must be of minimum one (1) metre in depth and three (3) metres in length.
Passive Design 2.2 Large lot dwelling houses are designed and constructed to maximise their liveability, amenity and sustainability through their orientation, sustainable building fabrics, thermal performance, energy generation/consumption and water collection, use and reuse. 2.3 Development achieves energy efficiency, through dwelling orientation, access to sunlight (generally: maximise in Winter, minimise in Summer), natural ventilation and the use of sustainable building fabrics.	a. Large lot dwelling houses should be designed and sited so that the living areas and major part of their private open space have a northern orientation and receive the maximum amount of sunlight in winter and provide the opportunity for planting trees for summer shading and amenity value. b. Development should be designed for energy efficiency by: i. minimising the overall surface area through which heat gains and losses can occur and providing for insulation of the dwelling; ii. avoiding large expanses of glazing on south and west facing walls; iii. Maximising natural ventilation for summer cooling in summer by building orientation and width, and windows to funnel air flow and breezes. c. Windows on the northern side of dwellings (north facing habitable rooms or external living spaces of the dwelling house) should be designed to maximise winter sun access and minimise summer sun access. d. Dwelling houses should utilise sun protection devices, (i.e. deep eaves, screens, verandahs, pergolas, etc.) along western-facing walls to produce a comfortable microclimate in and around dwellings. e. A BASIX certificate is to be submitted for BASIX affected development.
Over-shadowing 2.4 Dwelling houses do not cause overshadowing of adjoining properties.	Demonstrate that: a. Building design achieves at least 3 hours of solar access to key living spaces/ private open spaces of the adjoining dwellings on 21 June. b. Where overshadowing may impact adjoining land, an applicant must prepare shadow diagrams

Desired Outcome	*Development Control Requirements*
	showing solar access to neighbouring dwellings, private open space, solar collectors and panels on adjoining land and property. In complex and constricted situations Council may require hourly shadow simulations to be produced for detailed evaluation. **Note** - Such diagrams should be prepared by an architect, surveyor, engineer, or town planner and be based on a survey of the relevant site, development model and adjoining development.
Private open space (POS) 2.5 Developments must provide adequate private open space which ensures that the occupant has access to a private outdoor area for their sole use and enjoyment.	a. Development must be provided with a minimum private open space area of at least 70m^2, which shall be directly accessible from the living areas of the dwelling. b. Private open space is to include a useable area that is not steeper than 1 in 8 and, where site conditions permit, contains a rectangle area with minimum dimensions of 4m by 4m. c. Any area within a side or rear setback less than 2 metres in width shall not be included when considering the area provided for private open space. d. Private open space (POS) areas enable an extension of the function of the dwelling for relaxation, dining, entertainment, recreation and children's play. e. The location and design of private open space takes into account the outlook and natural features of the site. i. The orientation of private open space should provide for maximum year-round use by receiving a minimum of three hours of sunlight between 9am and 3pm on 22 June. An applicant must prepare shadow diagrams showing solar access to private open space. In complex and constricted situations Council may require hourly shadow simulations to be produced for detailed evaluation. **Note** - Such diagrams should be prepared by an architect, surveyor, engineer, or town planner and be based on a survey of the relevant site, development model and adjoining development. f. Enclosing screen walls or fences ensure privacy for dwellings by minimising overlooking from adjoining dwellings. g. Private open space may be located within the front setback where: i. front door access is provided; and ii. adequate provision is made for additional intensive landscaping within the property.
Storage and utility function	a. Wall mounted air-conditioning units are not located higher than 1.8 metres above existing ground level

Desired Outcome	*Development Control Requirements*
2.6 Building design incorporates appropriate functional and storage spaces and areas for waste storage, transfer and disposal purposes.	and are to be set back a minimum of 450 millimetres from any boundary. b. Development is provided with suitable waste bin storage behind the building frontage . c. Waste storage and collection is to be managed wholly within the site. Waste bins and bulk waste storage areas are not to be located within the road reserve for collection purposes. d. Building utilities components, such as solar panels and solar collectors are suitably incorporated into the roof design and hot water tanks are enclosed within the building fabric.
2.7 Development includes space and systems for waste management that ensures waste is collected, transported and/or disposed of in a lawful manner.	a. Development is provided with suitable waste bin storage, which is appropriately incorporated and screen from street view. b. Waste management facilities proposed as part of the development shall be clearly illustrated on the plans of the proposed development.
3. Landscape and Public Realm	
Views and View Sharing 3.1 Where existing development enjoys desired views (e.g. water, ocean views, views of forest, hills and mountains etc), new development is designed and sited so that at least a part of the desired view is visible from the existing development, where practicable. 3.2 Development provides for reasonably equitable sharing of views, between neighbouring properties, of water, ocean, forest, hills/mountains.	a. Development is to allow for the reasonable sharing of views with neighbouring dwellings and/or development. b. The built form of development is to provide a transition to adjacent residential development, including reasonable setbacks from side and rear boundaries, particularly at the first floor level to allowed for view sharing. c. An assessment of current view(s), viewpoints and impact (refer **Part E – Appendix 1** "View Sharing") along with graphic / modelled simulations may be necessary to support the application to Council's requirements.
Landscape 3.3 Development incorporates landscape features to enhance the dwelling's function and appearance. 3.4 Existing mature trees should be preserved. 3.5 Landscape design is complementary to the building design and surroundings.	4 Development provides a landscaped area that complements the design of the dwelling house, including trees and vegetation for privacy, shade and amenity. 5 Development provides for external clothes drying area. This should not be visible from the street. 6 Development provides a minimum landscaped area of 5% of the site and maintains the remaining areas to be free from weed and pest species. 7 Landscaping requirements are in addition to private open space.
Public Realm – primary street elevation 7.1 Development incorporates features which enhance privacy for the dwelling house, while maximising street surveillance.	a. Development is designed to provide street elevations that feature at least 1 main entry door and 1 major window to a living area or bedroom, to provide for visibility and street surveillance. b. Laundry or bathroom windows are not prominent features of the primary street elevation. c. Development allows appropriate passive surveillance to the public realm.

Desired Outcome	*Development Control Requirements*
4. Access and Vehicle Parking	
Access and Parking 4.1 Development provides appropriate access to the public road network and off-street parking.	a. Driveway locations, dimensions and finished levels comply with the KSC Infrastructure Delivery Guide and AUS-SPECs. b. Driveways adjoining a primary or secondary street must be designed to avoid roadside stormwater encroaching onto private property. c. All development is to provide on-site parking at the appropriate rate (refer **Part E – Appendix 4**). At least one (1) car parking space shall be behind the building line. d. Vehicle parking spaces are designed to comply with the KSC Infrastructure Delivery Guide and AUS-SPECs. **Note:** A separate application is required to be lodged with Council and approved for the construction of any layback and cross over of the road verge in accordance with the *Roads Act 1993*.
5. Amenity and Environment	
Privacy 5.1 Development enhances visual privacy of the large lot residential dwelling house and mitigates visual impacts on the directly adjacent properties.	a. Windows on dwelling houses on sloping sites are offset from windows of adjacent dwelling houses. b. Second storey windows, balconies and decks are not situated directly opposite windows of primary living rooms in any adjoining dwellings or private open space areas of adjoining dwellings. c. Where the window is less than 6 metres from a side or rear boundary adjacent to a residential property, a privacy screen or obscure glass must be provided for any part of a second storey window that is less than 1.5 metres above the second storey finished floor level.
Noise 5.2 Development mitigates noise impacts on directly adjacent properties.	a. The application must demonstrate the achievement of this Desired Outcome.
Environment 5.3 Development protects the environmental features, values and amenity qualities of the site and immediate surrounds.	a. Development minimises the removal of existing trees and vegetation on site. b. Existing street trees are retained wherever possible (small trees may be relocated within the property frontage street verge, on approval of Council).
6. Stormwater Management	
Stormwater Management 6.1 Stormwater from development is managed onsite to an acceptable, practical level. Stormwater in excess of this level must be properly drained to a legal point of discharge without causing adverse impacts on public drainage infrastructure, downslope properties or the quality of receiving waters.	a. Development shall be accompanied by a Stormwater Management Plan. b. The Stormwater Management Plan shall adopt the Major/Minor Concept as well as conservation of pre-existing flows to post development flow.

Desired Outcome	*Development Control Requirements*
	c. Stormwater drainage systems shall be designed using the relevant Australian Rainfall and Runoff standards, where the minor system shall be capable of carrying the controlling flows from frequent runoff events, while the major system shall provide safe, well-defined overland flow paths for rare and extreme storm runoff events. d. All stormwater overflow generated by development must be managed on-site for up to an AEP of 10%. Stormwater from events in excess of that must be drained to a legal point of discharge. e. Where no legal point of discharge is available the development may need to provide infiltration design or on-site detention. f. Stormwater management should maximise the use of natural infiltration solutions to minimise the costs of maintaining man-made systems. g. The use of such infiltration solutions such as deep soils zones, rain gardens and soakaway pits, permeable surfaces or other similar treatments for stormwater management are encouraged. h. Development that incorporates a water tank(s), detention ponds, into the stormwater management system must comply with the following: i. The water tank system, including roof area, tank inlet pipe size, tank storage capacity and tank outlet pipe size, must be suitably sized to accommodate stormwater in a 5% AEP, with all overflow being directed to a legal point of discharge, suitably sized rubble drain or properly constructed drainage channel, at least 3 metres clear of buildings. ii. Stormwater from driveways and hardstand areas is directed away from the water tank(s) and is properly managed to a legal point of discharge in accordance with this Part. iii. Tanks and fittings comply with Planning for Bushfire Protection, as applicable. i. Suitable easements are provided for public stormwater infrastructure within properties.
7. Utilities	
7.1 Infrastructure is adequate to service the needs of the development and, where required, are upgraded or provide new infrastructure to meet the increase in demand generated by the development.	a. All utilities and services are to be designed in accordance with relevant statutory requirements, including KSC Infrastructure Delivery Guide and KSC AUS-SPECs.
7.2 Suitable water services are provided for the development.	a. Development is connected to a reticulated water supply main where available via a minimum service to KSC requirements and KSC Water Meter. b. Suitable easements are provided for public water infrastructure within properties. c. The developer meets the full cost of water reticulations, plus the cost of connecting to the

Desired Outcome	*Development Control Requirements*
	existing services.
7.3 Suitable electricity services are provided to service the development.	a. Electricity services are provided to the development in accordance with requirements of the relevant authority and at the full cost of the developer. b. Electricity services are provided underground wherever possible.
7.4 Suitable sewerage services are provided for the development.	a. Development is connected to a reticulated sewer main where available. If unsewered, an on-site effluent management system is installed that complies with the following: i. Relevant Australian Standards for On-site Domestic Wastewater Management. ii. NSW Environment and Health Protection Guidelines. b. Suitable easements are provided for public sewerage infrastructure within properties. c. Where the development is in near proximity to an existing sewered area or where in the opinion of the State government or Council, the land is unsuitable for onsite disposal of effluent, connection to the existing sewerage system will be required. d. An On-site Sewage Management Assessment Report to support sewage treatment proposals is to accompany an application for this type of development (refer also **Part E – Appendix 6** and KSC policy strategies and guidelines for relevant information). e. Development is designed so that an area remote from any watercourse and downhill of potential home sites is available for effluent disposal. f. The developer meets the full cost of sewer reticulations, plus the cost of connecting to the existing services.
7.5 Suitable telecommunication services are provided for the development.	a. Telecommunication services are provided to each dwelling, where available. b. Where a telecommunications network is available to the site, applicants provide written confirmation from the relevant network provider stating that satisfactory arrangements have been made for connection, prior to the commencement of the use.

D2.3 Dual Occupancy

Application

This section applies to dual occupancy (attached and detached) on land in the urban zones, being R1 General Residential, R3 Medium Density, R5 Large Lot Residential; and on land in the rural and conservation zones, being RU1 Primary Production, RU2 Rural Landscape, RU4 Primary Production Small Lots, C3 Environmental Management and C4 Environmental Living zones, under KLEP.

Objectives

Dual occupancy is designed, sited and serviced to:

1. Optimise land use and provide for additional affordable dwelling options on single allotments.
2. Ensure dual occupancy are compatible with existing housing and protect the local environment and the amenity of adjacent residents.
3. Facilitate the efficient utilisation of land for residential purposes and accommodate housing choice in residential zones that can meet the needs of all households.
4. Facilitate development of dual occupancy in rural and conservation zones only where consistent with the KLEP and where it does not impede the rural productive capabilities of the land.

The following desired outcomes and development control requirements in Table D2.6 prescribe how the above objectives can be met.

Table D2.6 – Dual Occupancy – desired outcomes and development control requirements

<table>
<tr><th>Desired Outcome</th><th>Development Control Requirements</th></tr>
<tr><td colspan="2">1. Site Design</td></tr>
<tr><td colspan="2">Dual occupancy in the R1, R3 and R5 Zones</td></tr>
<tr><td>Site Coverage
1.1 The proportion of a lot that is occupied by buildings or structures maintains allowable density and ensures adequate open space, for landscape, amenity and proper drainage of the site.</td><td>a. Development must comply with the specified limits for site coverage in accordance with the following Table D2.7.
Table D2.7 – Site Coverage<table><tr><th>Lot Size</th><th>Maximum site coverage (%)</th></tr><tr><td><300m^2</td><td>70</td></tr><tr><td>300 - 500 m^2</td><td>65</td></tr><tr><td>500 - 650 m^2</td><td>60</td></tr><tr><td>650 - 800 m^2</td><td>55</td></tr><tr><td>>800 m^2</td><td>50</td></tr></table></td></tr>
<tr><td>Setbacks
1.2 Dual occupancy is set back at consistent distances of the immediately adjacent dwellings, to provide adequate space for landscaping, private recreation and off-street parking.
1.3 Dual occupancy is set back at consistent distances to minimise negative impacts</td><td>a. A minimum set back of five (5) metres shall be provided to the primary street frontage.
b. Some non-enclosed elements of a building's front façade may protrude from that facade into the front boundary setback, to a maximum of one and a half (1.50) metres and not exceeding 25% of the building frontage width.</td></tr>
</table>

Desired Outcome	*Development Control Requirements*
related to streetscape, privacy and overshadowing.	c. On a corner allotment, the setback to the secondary street frontage must be consistent with adjoining setbacks, but must not be less than three (3) metres. d. A minimum absolute setback of 900mm for side boundaries is achieved for single storey dual occupancy up to 5 metres in height (at the highest point of the roof). e. A minimum setback of one and a half (1.5) metres for side boundaries shall apply to the second storey and above. f. A minimum absolute setback of three (3) metres for rear boundaries is achieved for single storey dual occupancy up to 5 metres in height (at the highest point of the roof). g. Development is designed so that attached garages are setback a minimum six (6) metres from the property boundary or one (1) metre behind the house façade (whichever is the greater).
Dual occupancy in the RU1, RU2, RU4, C3 and C4 zones	
Site Coverage 1.4 The proportion of a lot that is occupied by buildings or structures maintains allowable density and ensures adequate open space, for landscape, amenity and proper drainage of the site.	a. The maximum area covered by all buildings and structures, does not exceed 50% of the lot area.
Setbacks 1.5 Dual occupancy has an appropriate setback from the street frontage to maintain safety and privacy.	a. Dual occupancy is set back a minimum eighteen (18) metres from the primary road frontage so as not to cause a visual intrusion on the rural or conservation area. b. A minimum setback of one and a half (1.5) metres for side boundaries and three (3) metres for rear boundaries shall apply.
Battle Axe Lots 1.6 Dual occupancy development is not permitted on battle-axe lots.	a. The application must demonstrate the achievement of this Desired Outcome.
Suitability of Use 1.7 Development will not impair the use of the land for agriculture or rural industries. 1.8 Development occurring within the C3 or C4 zones will not compromise the environmental, biodiversity, scenic landscape or natural character values of the land.	a. The application must demonstrate the achievement of this Desired Outcome
The below provisions apply to dual occupancy in any zone	
Topography (earthworks) 1.9 Development is sited and designed to accommodate the natural slope and	a. Earthworks must not alter the existing ground level/natural topography where there are existing vegetation and trees to be preserved.

Desired Outcome	*Development Control Requirements*
orientation of the site and immediately adjacent land. 1.10 Earthworks associated with development do not negatively impact on the surrounding streetscape, adjoining properties or public assets.	b. Where existing trees are preserved, no earthworks are permitted closer to the trunk or main stem than the drip-line (canopy extent) of the tree. c. Earthworks must comply with KSC Infrastructure Delivery Guide and KSC AUS-SPECS requirements.
2. *Development Design*	
Building Form 2.1 Building siting, height, scale and roof form must not negatively impact the surrounding development, streetscape, topography and character. 2.2 Dual occupancies have the appearance of a single, integrated dwelling when viewed from the road.	a. Where a Height of Building Map applies, building height complies with the relevant height limit under the KLEP. b. The continuous length of a building wall or retaining wall greater than 1.8m in height shall be no more than fifteen (15) metres. c. Where building external wall/façade is longer than fifteen (15) metres in length, they must be articulated. The articulation of the external wall must be of minimum one (1) metre in depth and three (3) metres in length.
Passive Design 2.3 Dual occupancy is designed and constructed to maximise their liveability, amenity and sustainability through their orientation, sustainable building fabrics, thermal performance, energy generation/consumption and water collection, use and reuse. 2.4 Development achieves energy efficiency, through dwelling orientation, access to sunlight (generally: maximise in Winter, minimise in Summer), natural ventilation and the use of sustainable building fabrics.	a. Development should be designed and sited so that the living areas and major part of their private open space have a northern orientation and receive the maximum amount of sunlight in winter and provide the opportunity for planting trees for summer shading and amenity value. b. Development should be designed for energy efficiency by: i. minimising the overall surface area through which heat gains and losses can occur and providing for insulation of the dwelling; ii. avoiding large expanses of glazing on south and west facing walls; iii. Maximising natural ventilation for summer cooling in summer by building orientation and width, and windows to funnel air flow and breezes. c. Windows on the northern side of dwellings (north facing habitable rooms or external living spaces of the dual occupancy) should be designed to maximise winter sun access and minimise summer sun access. d. Development should utilise sun protection devices, (i.e. deep eaves, screens, verandahs, pergolas, etc.) along western-facing walls to produce a comfortable microclimate in and around dwellings. e. A BASIX certificate is to be submitted for BASIX affected development.
Over-shadowing	Demonstrate that:

Desired Outcome	*Development Control Requirements*
2.5 Dual occupancy does not cause overshadowing of adjoining properties.	a. Building design achieves at least 3 hours of solar access to key living spaces/ private open spaces of the adjoining dwellings on 21 June. b. Where overshadowing may impact adjoining land, an applicant must prepare shadow diagrams showing solar access to neighbouring dwellings, private open space, solar collectors and panels on adjoining land and property. In complex and constricted situations Council may require hourly shadow simulations to be produced for detailed evaluation. **Note** - Such diagrams should be prepared by an architect, surveyor, engineer, or town planner and be based on a survey of the relevant site, development model and adjoining development.
Private open space (POS) 2.6 Developments must provide adequate private open space which ensures that the occupant has access to a private outdoor area for their sole use and enjoyment.	a. Development must be provided with a minimum private open space area in accordance with Table D2.8, which shall be directly accessible from the living areas of the dual occupancy. b. Private open space is to include a useable area that is not steeper than 1 in 8 and, where site conditions permit, contains a rectangle area with minimum dimensions of 4m by 4m. c. Any area within a side or rear setback less than 2 metres in width shall not be included when considering the area provided for private open space. d. Private open space (POS) areas enable an extension of the function of the dwelling for relaxation, dining, entertainment, recreation and children's play. e. The location and design of private open space takes into account the outlook and natural features of the site. j. The orientation of private open space should provide for maximum year-round use by receiving a minimum of three hours of sunlight between 9am and 3pm on 22 June. An applicant must prepare shadow diagrams showing solar access to private open space. In complex and constricted situations Council may require hourly shadow simulations to be produced for detailed evaluation. **Note** - Such diagrams should be prepared by an architect, surveyor, engineer, or town planner and be based on a survey of the relevant site, development model and adjoining development. f. Enclosing screen walls or fences ensure privacy for dwellings and courtyards by minimising overlooking from adjoining communal open space or accessways and other dwellings. g. Private open space may be located within the front setback where: i. front door access is provided; and ii. adequate provision is made for additional intensive landscaping within the property.

Desired Outcome	*Development Control Requirements*
	Table D2.8 – Private Open Space
	Lot Area / **Private Open Space** (POS) **m^2**
	< 300m^2 — 30m^2
	300-500m^2 — 40m^2
	500-650m^2 — 50m^2
	650-800m^2 — 60m^2
	> 800m^2 — 70m^2
Storage and utility function 2.7 Building design incorporates appropriate functional and storage spaces and areas for waste storage, transfer and disposal purposes.	a. Wall mounted air-conditioning units are not located higher than 1.8 metres above existing ground level and are to be set back a minimum of 450 millimetres from any boundary. b. Development is provided with suitable waste bin storage behind the building frontage . c. Waste storage and collection is to be managed wholly within the site. Waste bins and bulk waste storage areas are not to be located within the road reserve for collection purposes. d. Building utilities components, such as solar panels and solar collectors are suitably incorporated into the roof design and hot water tanks are enclosed within the building fabric.
2.8 Development includes space and systems for waste management that ensures waste is collected, transported and/or disposed of in a lawful manner.	a. Development is provided with suitable waste bin storage, which is appropriately incorporated and screen from street view. b. Waste management facilities proposed as part of the development shall be clearly illustrated on the plans of the proposed development.
3. *Landscape and Public Realm*	
Views and View Sharing 3.1 Where existing development enjoys desired views (e.g. water, ocean views, views of forest, hills and mountains etc), new development is designed and sited so that at least a part of the desired view is visible from the existing development, where practicable. 3.2 Development provides for reasonably equitable sharing of views, between neighbouring properties, of water, ocean, forest, hills/mountains.	a. Development is to allow for the reasonable sharing of views with neighbouring dwellings and/or development. b. The built form of development is to provide a transition to adjacent residential development, including reasonable setbacks from side and rear boundaries, particularly at the first floor level to allowed for view sharing. c. An assessment of current view(s), viewpoints and impact (refer **Part E – Appendix 1** "View Sharing") along with graphic / modelled simulations may be necessary to support the application to Council's requirements.
Landscape	a. Development provides a landscaped area that complements the design of the dual occupancy,

<table>
<tr><th>Desired Outcome</th><th>Development Control Requirements</th></tr>
<tr><td>3.3 Development incorporates landscape features to enhance the dual occupancy's function and appearance.
3.4 Existing mature trees should be preserved.
3.5 Landscape design is complementary to the building design and surroundings.</td><td>including trees and vegetation for privacy, shade and amenity.
b. Development provides for external clothes drying area. This should not be visible from the street.
c. Development provides a minimum landscaped area as outlined in Table D2.9 and maintains the remaining areas to be free from weed and pest species.
d. Landscaping requirements are in addition to private open space.
Table D2.9 –Landscape requirements<table><tr><th>Lot Area</th><th colspan="2">Landscape Site Area</th></tr><tr><td></td><td>Landscaped Area minimum (% of lot)</td><td>Deep Soil Zone DSZ Minimum (% of lot)</td></tr><tr><td>< 300m^2</td><td>25</td><td>20</td></tr><tr><td>300-500m^2</td><td>30</td><td>25</td></tr><tr><td>500-650m^2</td><td>35</td><td>30</td></tr><tr><td>650-800m^2</td><td>40</td><td>35</td></tr><tr><td>> 800m^2</td><td>45</td><td>40</td></tr></table></td></tr>
<tr><td>Deep Soil Zones
3.6 Deep soil zones are provided to allow for landscape planting (trees), the infiltration of rainwater to the groundwater table and to reduce site stormwater runoff.</td><td>a. Deep soil zones must have soft landscape applied, and cannot be covered by impervious surfaces; courts, buildings or other structures, nor can they be located on-structure such as over basements or as planter boxes.</td></tr>
<tr><td>Public Realm – primary street elevation
3.7 Development incorporates features which enhance privacy for the dwelling house, while maximising street surveillance.</td><td>a. Development is designed to provide street elevations that feature at least 1 main entry door and 1 major window to a living area or bedroom, to provide for visibility and street surveillance.
b. Laundry or bathroom windows are not prominent features of the primary street elevation.
c. Development allows appropriate passive surveillance to the public realm.</td></tr>
<tr><td colspan="2">4. Access and Vehicle Parking</td></tr>
<tr><td>Access and Parking
4.1 Development provides appropriate access to the public road network and off-street parking.</td><td>a. Driveway locations, dimensions and finished levels comply with the KSC Infrastructure Delivery Guide and AUS-SPECs.
b. Development will use the same vehicular access to and from a public road.
c. Driveways adjoining a primary or secondary street must be designed to avoid roadside stormwater encroaching onto private property.
d. All development is to provide on-site parking at the appropriate rate (refer Part E – Appendix 4). At least one (1) car parking space shall be behind the building line.</td></tr>
</table>

Desired Outcome	*Development Control Requirements*
	e. Vehicle parking spaces are designed to comply with the KSC Infrastructure Delivery Guide and AUS-SPECs. **Note:** A separate application is required to be lodged with Council and approved for the construction of any layback and cross over of the road verge in accordance with the *Roads Act 1993*.
5. Amenity and Environment	
Privacy 5.1 Development enhances visual privacy of the dual occupancy and mitigates visual impacts on the directly adjacent properties.	a. Windows on dual occupancies on sloping sites are offset from windows of adjacent dwelling houses. b. Second storey windows, balconies and decks are not situated directly opposite windows of primary living rooms in any adjoining dwellings or private open space areas of adjoining dwellings. c. Where the window is less than 6 metres from a side or rear boundary adjacent to a residential property, a privacy screen or obscure glass must be provided for any part of a second storey window that is less than 1.5 metres above the second storey finished floor level.
Noise 5.2 Development mitigates noise impacts on directly adjacent properties.	a. The application must demonstrate the achievement of this Desired Outcome.
Environment 5.3 Development protects the environmental features, values and amenity qualities of the site and immediate surrounds. 5.4 Development in a rural zone will not have a significant adverse impact on the scenic amenity or character of the rural environment.	a. Development minimises the removal of existing trees and vegetation on site. b. Existing street trees are retained wherever possible (small trees may be relocated within the property frontage street verge, on approval of Council).
6. Stormwater Management	
Stormwater Management 6.1 Stormwater from development is managed onsite to an acceptable, practical level. Stormwater in excess of this level must be properly drained to a legal point of discharge without causing adverse impacts on public drainage infrastructure, downslope properties or the quality of receiving waters.	a. Development shall be accompanied by a Stormwater Management Plan. b. The Stormwater Management Plan shall adopt the Major/Minor Concept as well as conservation of pre-existing flows to post development flow. c. Stormwater drainage systems shall be designed using the relevant Australian Rainfall and Runoff standards, where the minor system shall be capable of carrying the controlling flows from frequent runoff events, while the major system shall provide safe, well-defined overland flow paths for rare and extreme storm runoff events. d. All stormwater overflow generated by development after stormwater management on site must be managed on-site where possible for an AEP of 10%.

Desired Outcome	*Development Control Requirements*
	Stormwater from events in excess of that must be drained to a legal point of discharge. e. Where no legal point of discharge is available the development may need to provide infiltration design or on-site detention. f. Stormwater management should maximise the use of natural infiltration solutions to minimise the costs of maintaining man-made systems. g. The use of such infiltration solutions such as deep soils zones, rain gardens and soakaway pits, permeable surfaces or other similar treatments for stormwater management are encouraged. h. Development that incorporates a water tank(s), detention ponds, into the stormwater management system must comply with the following: i. The water tank system, including roof area, tank inlet pipe size, tank storage capacity and tank outlet pipe size, must be suitably sized to accommodate stormwater in a 5% AEP, with all overflow being directed to a legal point of discharge, suitably sized rubble drain or properly constructed drainage channel, at least 3 metres clear of buildings. ii. Stormwater from driveways and hardstand areas is directed away from the water tank(s) and is properly managed to a legal point of discharge in accordance with this Part. iii. Tanks and fittings comply with Planning for Bushfire Protection, as applicable. i. Suitable easements are provided for public stormwater infrastructure within properties.
7. Utilities	
7.1 Infrastructure is adequate to service the needs of the development and, where required, are upgraded or provide new infrastructure to meet the increase in demand generated by the development.	a. All utilities and services are to be designed in accordance with relevant statutory requirements, including KSC Infrastructure Delivery Guide and KSC AUS-SPECs.
7.2 Suitable water services are provided for the development.	a. Development is connected to a reticulated water supply main where available via a minimum service to KSC requirements and KSC Water Meter. b. Suitable easements are provided for public water infrastructure within properties. c. The developer meets the full cost of water reticulations, plus the cost of connecting to the existing services.
7.3 Suitable electricity services are provided to service the development.	a. Electricity services are provided to the development in accordance with requirements of the relevant authority and at the full cost of the developer. b. Electricity services are provided underground

Desired Outcome	*Development Control Requirements*
	wherever possible.
7.4 Suitable sewerage services are provided for the development.	a. Development is connected to a reticulated sewer main where available. If unsewered, an on-site effluent management system is installed that complies with the following: i. Relevant Australian Standards for On-site Domestic Wastewater Management. ii. NSW Environment and Health Protection Guidelines. b. Suitable easements are provided for sewerage infrastructure within properties. c. Where the development is in near proximity to an existing sewered area or where in the opinion of the State government or Council, the land is unsuitable for onsite disposal of effluent, connection to the existing sewerage system will be required. d. An On-site Sewage Management Assessment Report to support sewage treatment proposals is to accompany an application for this type of development (refer also **Part E - Appendix 6** and KSC policy strategies and guidelines for relevant information). e. Development is designed so that an area remote from any watercourse and downhill of potential home sites is available for effluent disposal. f. The developer meets the full cost of sewer reticulations, plus the cost of connecting to the existing services.
7.5 Suitable telecommunication services are provided for the development.	a. Telecommunication services are provided to each dwelling, where available. b. Where a telecommunications network is available to the site, applicants provide written confirmation from the relevant network provider stating that satisfactory arrangements have been made for connection, prior to the commencement of the use.

D2.4 Secondary Dwellings

Application

This section applies to secondary dwellings on land in the urban zones, being R1 General Residential, R3 Medium Density and R5 Large Lot Residential; and on land in the rural and conservation zones, being RU1 Primary Production, RU2 Rural Landscape, RU4 Primary Production Small Lots, C3 Environmental Management and C4 Environmental Living zones, under KLEP.

Objectives

Secondary dwellings are designed, sited and serviced to:

1. Optimise land use and provide for additional affordable dwelling options where a secondary dwelling is subordinate to and located on the same lot as an existing dwelling house.
2. Ensure secondary dwellings are compatible with existing housing and protect the local environment and the amenity of adjacent residents.
3. Facilitate the efficient utilisation of land for residential purposes and accommodate housing choice in residential zones that can meet the needs of all households.
4. Facilitate development of secondary dwellings in rural and conservation zones consistent with the KLEP and only where it does not impede the rural productive capabilities of the land.

The following desired outcomes and development control requirements in Table D2.10 prescribe how the above objectives can be met.

Table D2.10 – Secondary Dwelling – desired outcomes and development control requirements

Desired Outcome	*Development Control Requirements*
1. *Site Design*	
Site Coverage 1.1 The proportion of a lot that is occupied by buildings or structures maintains allowable density and ensures adequate open space, for landscape, amenity and proper drainage of the site.	a. The total GFA of the secondary dwelling, excluding any area used for parking, must not exceed whichever of the following is the greater— i. 60m^2; or ii. 30% of the total GFA of the principal dwelling.
Setbacks 1.2 Secondary dwelling is set back at consistent distances of the immediately adjacent dwellings, to provide adequate space for landscaping, private recreation and off-street parking. 1.3 Secondary dwelling is set back at consistent distances to minimise negative impacts related to streetscape, privacy and overshadowing.	a. Secondary dwelling maintains a setback to the primary street frontage that is consistent with the principal dwelling on the site. b. On a corner allotment, the setback to the secondary street frontage must be consistent with adjoining setbacks, but must not be less than 3 metres. c. A minimum absolute setback of 900mm for side boundaries is achieved for single storey secondary dwelling up to 5 metres in height (at the highest point of the roof). d. A minimum setback of 1.5 metres for side boundaries shall apply to the second storey and above. e. A minimum setback of 3 metres for rear boundaries is achieved. f. Development is designed so that attached garages are setback a minimum 6 metres from the property

Desired Outcome	*Development Control Requirements*
	boundary or 1 metre behind the house façade (whichever is the greater).
Suitability of Use 1.4 Where within a rural zone, development will not impair the use of the land for agriculture or rural industries. 1.5 Development occurring within the C3 or C4 zones will not compromise the environmental, biodiversity, scenic landscape or natural character values of the land.	a. The application must demonstrate the achievement of this Desired Outcome.
Topography (earthworks) 1.6 Development is sited and designed to accommodate the natural slope and orientation of the site and immediately adjacent land. 1.7 Earthworks associated with development do not negatively impact on the surrounding streetscape, adjoining properties or public assets.	a. Earthworks must not alter the existing ground level/natural topography where there are existing vegetation and trees to be preserved. b. Where existing trees are preserved, no earthworks are permitted closer to the trunk or main stem than the drip-line (canopy extent) of the tree. c. Earthworks must not exceed a cut or fill of greater than 1.50 metres depth/height from the existing ground level/natural topography of the site, or be assessed by a suitably qualified engineer. d. Cut and fill batters shall not exceed a slope of 1:3 (volume: height). e. Cut and fill batters and retaining walls outside the building footprint must be landscaped to mitigate visual impacts. f. Earthworks must comply with KSC Infrastructure Delivery Guide and KSC AUS-SPECS requirements.
2. *Development Design*	
Building Form 2.1 Building siting, height, scale and roof form must not negatively impact the surrounding development, streetscape, topography and character.	a. Where a Height of Building Map applies, building height complies with the relevant height limit under the KLEP. b. The continuous length of a building wall or retaining wall greater than 1.8m in height shall be no more than fifteen (15) metres. c. Where building external wall/façade is longer than fifteen (15) metres in length, they must be articulated. The articulation of the external wall must be of minimum one (1) metre in depth and three (3) metres in length.
2.2 Secondary dwellings have the appearance of a single, integrated dwelling with the principal dwelling, when viewed from the road.	a. Secondary dwellings are located behind the building line of the principal dwelling on the site. b. A secondary dwelling development appears part of the principal dwelling when viewed from the road. c. Both the secondary dwelling and the principal dwelling are generally either: i. Under one roof; or

Desired Outcome	*Development Control Requirements*
	ii. Are within 5 metres of each other and joined by a patio or breezeway covered by a roof. The roof shall extend for the full length of one of the two attached dwellings. d. Both dwellings share a common driveway crossover at the property frontage. Driveways to each dwelling may diverge within the property boundaries.
Passive Design 2.3 Secondary dwellings are designed and constructed to maximise their liveability, amenity and sustainability through their orientation, sustainable building fabrics, thermal performance, energy generation/consumption and water collection, use and reuse. 2.4 Development achieves energy efficiency, through dwelling orientation, access to sunlight (generally: maximise in Winter, minimise in Summer), natural ventilation and the use of sustainable building fabrics.	a. Development should be designed and sited so that the living areas and major part of their private open space have a northern orientation and receive the maximum amount of sunlight in winter and provide the opportunity for planting trees for summer shading and amenity value. b. Development should be designed for energy efficiency by: i. minimising the overall surface area through which heat gains and losses can occur and providing for insulation of the dwellings; ii. avoiding large expanses of glazing on south and west facing walls; iii. Maximising natural ventilation for summer cooling in summer by building orientation and width, and windows to funnel air flow and breezes. c. Windows on the northern side of dwellings (north facing habitable rooms or external living spaces of the secondary dwelling) should be designed to maximise winter sun access and minimise summer sun access. d. Development should utilise sun protection devices, (i.e. deep eaves, screens, verandahs, pergolas, etc.) along western-facing walls to produce a comfortable microclimate in and around dwellings. e. A BASIX certificate is to be submitted for BASIX affected development.
Over-shadowing 2.5 Secondary dwellings do not cause overshadowing of adjoining properties.	Demonstrate that: a. Building design achieves at least 3 hours of solar access to key living spaces/ private open spaces of dwellings on adjoining land on 21 June. b. Where overshadowing may impact adjoining land, an applicant must prepare shadow diagrams showing solar access to neighbouring dwellings, private open space, solar collectors and panels on adjoining land and property. In complex and constricted situations Council may require hourly shadow simulations to be produced for detailed evaluation.

Desired Outcome	*Development Control Requirements*
	Note - Such diagrams should be prepared by an architect, surveyor, engineer, or town planner and be based on a survey of the relevant site, development model and adjoining development.
Private open space (POS) 2.6 Developments must provide adequate private open space which ensures that the occupant has access to a private outdoor area for their sole use and enjoyment.	a. Development must be provided with a private open space area, which shall be directly accessible from the living areas of the dwelling. b. Private open space is to include a useable area that is not steeper than 1 in 8 and, where site conditions permit, contains a rectangle area with minimum dimensions of 4m by 4m. c. Any area within a side or rear setback less than 2 metres in width shall not be included when considering the area provided for private open space. d. Private open space (POS) areas enable an extension of the function of the dwelling for relaxation, dining, entertainment, recreation and children's play. e. The location and design of private open space takes into account the outlook and natural features of the site. f. The orientation of private open space should provide for maximum year-round use by receiving a minimum of three hours of sunlight between 9am and 3pm on 22 June. An applicant must prepare shadow diagrams showing solar access to private open space. In complex and constricted situations Council may require hourly shadow simulations to be produced for detailed evaluation. **Note** - Such diagrams should be prepared by an architect, surveyor, engineer, or town planner and be based on a survey of the relevant site, development model and adjoining development. g. Enclosing screen walls or fences ensure privacy for dwellings and courtyards by minimising overlooking from adjoining communal open space or accessways and other dwellings. h. Private open space may be located within the front setback where: i. front door access is provided; and ii. adequate provision is made for additional intensive landscaping within the property.
Storage and utility function 2.7 Building design incorporates appropriate functional and storage spaces and areas for waste storage, transfer and disposal purposes.	a. Wall mounted air-conditioning units are not located higher than 1.8 metres above existing ground level and are to be set back a minimum of 450 millimetres from any boundary. b. Development is provided with suitable waste bin storage behind the building frontage .

Desired Outcome	*Development Control Requirements*
	c. Waste storage and collection is to be managed wholly within the site. Waste bins and bulk waste storage areas are not to be located within the road reserve for collection purposes. d. Building utilities components, such as solar panels and solar collectors are suitably incorporated into the roof design and hot water tanks are enclosed within the building fabric.
2.8 Development includes space and systems for waste management that ensures waste is collected, transported and/or disposed of in a lawful manner.	a. Development is provided with suitable waste bin storage, which is appropriately incorporated and screen from street view. b. Waste management facilities proposed as part of the development shall be clearly illustrated on the plans of the proposed development.
3. *Landscape and Public Realm*	
Views and View Sharing 3.1 Where existing development enjoys desired views (e.g. water, ocean views, views of forest, hills and mountains etc), new development is designed and sited so that at least a part of the desired view is visible from the existing development, where practicable. 3.2 Development provides for reasonably equitable sharing of views, between neighbouring properties, of water, ocean, forest, hills/mountains.	a. Development is to allow for the reasonable sharing of views with neighbouring dwellings and/or development. b. The built form of development is to provide a transition to adjacent residential development, including reasonable setbacks from side and rear boundaries, particularly at the first floor level to allowed for view sharing. c. An assessment of current view(s), viewpoints and impact (refer **Part E - Appendix 1** "View Sharing") along with graphic / modelled simulations may be necessary to support the application to Council's requirements.
Landscape 3.3 Development incorporates landscape features to enhance the secondary dwelling's function and appearance. 3.4 Existing mature trees should be preserved. 3.5 Landscape design is complementary to the building design and surroundings.	a. Development provides a landscaped area that complements the design of the secondary dwelling, including trees and vegetation for privacy, shade and amenity. b. Development provides for external clothes drying area. This should not be visible from the street. c. Development provides a minimum landscaped area of 25% of the GFA of the secondary dwelling or 20m^2, whichever is the greater and maintains the remaining areas to be free from weed and pest species. d. Landscaping requirements are in addition to private open space.
Public Realm – primary street elevation 3.6 Development incorporates features which enhance privacy for the secondary dwelling, while maximising street surveillance.	a. Laundry or bathroom windows are not prominent features of the primary street elevation. b. Development allows appropriate passive surveillance to the public realm, where possible.

Desired Outcome	*Development Control Requirements*
4. *Access and Vehicle Parking*	
Access and Parking 4.1 Development provides appropriate access to the public road network and off-street parking.	a. Driveway locations, dimensions and finished levels comply with the KSC Infrastructure Delivery Guide and AUS-SPECs. b. Development will use the same vehicular access as the principal dwelling to and from a public road. c. Driveways adjoining a primary or secondary street must be designed to avoid roadside stormwater encroaching onto private property. d. All development is to provide on-site parking at the appropriate rate (refer **Part E – Appendix 4**). At least one (1) car parking space shall be behind the building line. e. Vehicle parking spaces are designed to comply with the KSC Infrastructure Delivery Guide and AUS-SPECs. **Note:** A separate application is required to be lodged with Council and approved for the construction of any layback and cross over of the road verge in accordance with the *Roads Act 1993*.
5. *Amenity and Environment*	
Privacy 5.1 Development enhances visual privacy of the secondary dwelling and mitigates visual impacts on the directly adjacent properties.	a. The application must demonstrate the achievement of this Desired Outcome.
Noise 5.2 Development mitigates noise impacts on directly adjacent properties.	a. The application must demonstrate the achievement of this Desired Outcome.
Environment 5.3 Development protects the environmental features, values and amenity qualities of the site and immediate surrounds. 5.4 Development of a secondary dwelling in a rural zone will not have a significant adverse impact on the scenic amenity or character of the rural environment.	a. Development minimises the removal of existing trees and vegetation on site. b. Existing street trees are retained wherever possible (small trees may be relocated within the property frontage street verge, on approval of Council).
6. *Stormwater Management*	
Stormwater Management 6.1 Stormwater from development is managed onsite to an acceptable, practical level. Stormwater in excess of this level must be properly drained to a legal point of discharge without causing adverse impacts on public drainage infrastructure, downslope properties or the quality of receiving waters.	a. Development shall be accompanied by a Stormwater Management Plan. b. The Stormwater Management Plan shall adopt the Major/Minor Concept as well as conservation of pre-existing flows to post development flow. c. Stormwater drainage systems shall be designed using the relevant Australian Rainfall and Runoff standards, where the minor system shall be capable of carrying the controlling flows from frequent runoff events, while the major system shall provide safe, well-defined overland flow paths for rare and extreme storm runoff events.

Desired Outcome	*Development Control Requirements*
	d. All stormwater overflow generated by development after stormwater management on site must be managed on-site where possible for an AEP of 10%. Stormwater from events in excess of that must be drained to a legal point of discharge. e. Where no legal point of discharge is available the development may need to provide infiltration design or on-site detention. f. Stormwater management should maximise the use of natural infiltration solutions to minimise the costs of maintaining man-made systems. g. The use of such infiltration solutions such as deep soils zones, rain gardens and soakaway pits, permeable surfaces or other similar treatments for stormwater management are encouraged. h. Development that incorporates a water tank(s), detention ponds, into the stormwater management system must comply with the following: i. The water tank system, including roof area, tank inlet pipe size, tank storage capacity and tank outlet pipe size, must be suitably sized to accommodate stormwater in a 5% AEP, with all overflow being directed to a legal point of discharge, suitably sized rubble drain or properly constructed drainage channel, at least 3 metres clear of buildings. ii. Stormwater from driveways and hardstand areas is directed away from the water tank(s) and is properly managed to a legal point of discharge in accordance with this Part. iii. Tanks and fittings comply with Planning for Bushfire Protection, as applicable. i. Suitable easements are provided for public stormwater infrastructure within properties.
7. *Utilities*	
7.1 Infrastructure is adequate to service the needs of the development and, where required, are upgraded or provide new infrastructure to meet the increase in demand generated by the development.	a. All utilities and services are to be designed in accordance with relevant statutory requirements, including KSC Infrastructure Delivery Guide and KSC AUS-SPECs
7.2 Suitable water services are provided for the development.	a. Development is connected to a reticulated water supply main where available via a minimum service to KSC requirements and KSC Water Meter. b. Suitable easements are provided for public water infrastructure within properties. c. The developer meets the full cost of water reticulations, plus the cost of connecting to the existing services.
7.3 Suitable electricity services are provided to service the development.	a. Electricity services are provided to the development in accordance with requirements of the relevant authority and at the full cost of the developer.

Desired Outcome	*Development Control Requirements*
	b. Electricity services are provided underground wherever possible.
7.4 Suitable sewerage services are provided for the development.	a. Development is connected to a reticulated sewer main where available. If unsewered, an on-site effluent management system is installed that complies with the following: i. Relevant Australian Standards for On-site Domestic Wastewater Management. ii. NSW Environment and Health Protection Guidelines. b. Suitable easements are provided for sewerage infrastructure within properties. c. Where the development is in near proximity to an existing sewered area or where in the opinion of the State government or Council, the land is unsuitable for onsite disposal of effluent, connection to the existing sewerage system will be required. d. An On-site Sewage Management Assessment Report to support sewage treatment proposals is to accompany an application for this type of development (refer also **Part E – Appendix 6** and KSC policy strategies and guidelines for relevant information). e. Development is designed so that an area remote from any watercourse and downhill of potential home sites is available for effluent disposal. f. The developer meets the full cost of sewer reticulations, plus the cost of connecting to the existing services.
7.5 Suitable telecommunication services are provided for the development.	a. Telecommunication services are provided to each dwelling, where available. b. Where a telecommunications network is available to the site, applicants provide written confirmation from the relevant network provider stating that satisfactory arrangements have been made for connection, prior to the commencement of the use.

D2.5 Multi-dwelling Development

Application

This section applies to multi-dwelling housing; attached dwellings, semi-detached dwellings and any alterations and additions to any of the above which occurs on lands in R1 General Residential and R3 Medium Density Residential under the Kempsey Local Environmental Plan (KLEP).

Objectives

1. Multi-dwelling development is designed, sited and serviced to optimise land use and dwelling yields for more efficient and effective use of land, infrastructure and services, whilst protecting residential amenity and maintaining residential areas as desirable places to live.
2. Multi-dwelling development optimises land use and provides for additional affordable dwelling options.
3. Multi-dwelling development provides for wider housing choices in residential zones where there are minimal development constraints.
4. Development encourages site usage and innovative and energy efficient building design.

The following desired outcomes and development control requirements in Table D2.11 prescribe how the above objectives can be met.

Note: The residential densities specified in the table below will be a fundamental determinant of the dwelling yield achievable on an individual lot. Multi-dwelling developments shall, for each 1, 2, 3, 4 or 5+ bedroom dwelling proposed, have a site area of not less than that indicated in Column 3 of the following table. The accommodation/site area table is calculated on the number of bedrooms per dwelling (attached dwellings, semi-detached dwellings or detached dwellings).

b) Private landscaped area of not less than that indicated in Columns 4 and 5 of Table D2.12 is to be provided on each development site. Note – The site area for every individual dwelling must accommodate the minimum landscape, private open space and deep soil zone (DSZ) areas.

c) A common landscape area or areas such as shared driveway, storage, service and/or utility areas may be necessary for the functioning of the proposed multi-dwelling development. Such area or areas shall not be counted as forming any part of the Landscape private open space (POS) or deep soil zone (DSZ) requirements for each dwelling (each dwelling's site area). Such areas may be utilized for on-site stormwater management purposes.

Table D2.11 – Multi-dwelling Developments – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1. Site design	
Site Coverage 1.1 The scale of multi-dwelling development is appropriate for the size of the site.	a. Site lot frontage is not less than eighteen (18) metres at the building line. b. Site area complies with the requirements of KLEP and the following requirements in **Table D2.12.**

Table D2.12 – Residential Density Requirements

Residential Density	Each Dwelling Size	Minimum Site Area (for each dwelling)	Landscape (Lasc), private open space (POS) & Deep Soil Zone (DSZ)/on-site stormwater management requirements (for each dwelling's site area)	
Multi-dwelling	1 Bedroom	170 m^2	Min (%)	20%
			Lasc/POS	3.0 X 3.0m (9.0 m^2)
			Deep Soil Zone	7.0m^2

Desired Outcome			Development Control Requirements	
development type/ no.	2 Bedrooms	240 m^2	Min (%)	25%
			Lasc/POS	4.0 X 4.0m (16.0 m^2)
			Deep Soil Zone	14.0m^2
	3 Bedrooms	330 m^2	Min (%)	25%
			Lasc/POS	5.0 X 5.0m (25.0 m^2)
			Deep Soil Zone	25.0m^2
	4 Bedrooms	420 m^2	Min (%)	30%
			Lasc/POS	5.0 X 5.0m (25.0 m^2)
			Deep Soil Zone	80.0m^2
	5+ Bedrooms	500 m^2	Min (%)	40%
			Lasc/POS	5.0 X 6.0m (30 m^2)
			Deep Soil Zone	140.0m^2

Setbacks

1.2 Development is set back at consistent distances to minimise impacts related to streetscape, overshadowing and privacy and to provide adequate space for landscaping and private recreation.

a. Building setbacks comply with **Table D2.13.**

Table D2.13 - Setbacks

Boundary	Scenario	<600m^2 lot	>600m^2 lot
Primary Road	Single storey	Average building line or 4.5m	Average building line or 6m
	> single storey	6m, or as approved by Council	6m, or as approved by Council
Side boundary	Single storey	0.9m or BCA	0.9m or BCA
	> single storey	1.5m or BCA	1.5m or BCA
Rear boundary	Single storey	3m	5m
	> single storey	5m	8m

Topography (earthworks)

1.3 Dwellings are sited and designed to accommodate the natural slope and orientation of the site and immediately adjacent land.

1.4 Earthworks associated with development do not negatively impact on the surrounding streetscape, adjoining properties or public assets.

a. Earthworks must not alter the existing ground level/natural topography where there are existing vegetation and trees to be preserved.

b. Where existing trees are preserved, no earthworks shall be permitted closer to the trunk or main stem than the drip-line (canopy extent) of the tree.

c. Earthworks must not exceed a cut or fill of greater than 1.50 metres depth/height from the existing ground level/natural topography of the site, or be assessed by a suitably qualified engineer.

d. Cut and fill batters shall not exceed a slope of 1:3 (volume: height).

Desired Outcome	Development Control Requirements
	e. Cut and fill batters and retaining walls outside the building footprint shall be landscaped to mitigate visual impacts f. Earthworks must comply with KSC Infrastructure Delivery Guide and KSC AUS-SPECS requirements.
2. Development Design	
Building form 2.1 Building siting, height, scale and roof form must not negatively impact the surrounding development, streetscape, topography and character.	a. A site analysis plan must be prepared, demonstrating that development considers and addresses the contributing landscape, streetscape and neighbouring building elements that contribute to the area. b. Where a Height of Building Map applies, building height complies with the relevant height limit under the KLEP. c. The continuous length of a building wall or retaining wall greater than 1.8m in height shall be no more than twenty (20) metres. d. Where building external wall/façade is longer than fifteen (15) metres in length, they must be articulated. The articulation of the external wall must be of minimum one (1) metre in depth and three (3) metres in length.
Passive Design 2.2 Development is designed and constructed to maximise their liveability, amenity and sustainability through their orientation, sustainable building fabrics, thermal performance, energy generation/consumption and water collection, use and reuse. 2.3 Development achieves energy efficiency, through dwelling orientation, access to sunlight (generally: maximise in Winter, minimise in Summer), natural ventilation and the use of sustainable building fabrics.	a. Development should be designed and sited so that the living areas and major part of their private open space have a northern orientation and receive the maximum amount of sunlight in winter and provide the opportunity for planting trees for summer shading and amenity value. b. Development should be designed for energy efficiency by: i. minimising the overall surface area through which heat gains and losses can occur and providing for insulation of the dwellings; ii. avoiding large expanses of glazing on south and west facing walls; iii. maximising natural ventilation for summer cooling in summer by building orientation and width, and windows to funnel air flow and breezes. c. Windows on the northern side of dwellings (north facing habitable rooms or external living spaces of the multi-dwelling development) should be designed to maximise winter sun access and minimise summer sun access. d. Development should utilise sun protection devices, (i.e. deep eaves, screens, verandahs, pergolas, etc.) along western-facing walls to

Desired Outcome	Development Control Requirements
	produce a comfortable microclimate in and around dwellings. e. A BASIX certificate is to be submitted for BASIX affected development.
Over-shadowing 2.4 Development does not cause overshadowing of adjoining properties.	Demonstrate that: a. Building design achieves at least 3 hours of solar access to key living spaces/ private open spaces of the adjoining dwellings on 21 June. b. Where overshadowing may impact adjoining land, an applicant must prepare shadow diagrams showing solar access to neighbouring dwellings, private open space, solar collectors and panels on adjoining land and property. In complex and constricted situations Council may require hourly shadow simulations to be produced for detailed evaluation. **Note** - Such diagrams should be prepared by an architect, surveyor, engineer, or town planner and be based on a survey of the relevant site, development model and adjoining development.
Private open space (POS) 2.5 Developments must provide adequate private open space which ensures that the occupant has access to a private outdoor area for their sole use and enjoyment.	a. Private open space (POS) areas enable an extension of the function of the dwelling for relaxation, dining, entertainment, recreation and children's play. b. The location and design of private open space takes into account the outlook and natural features of the site. c. The orientation of private open space should provide for maximum year-round use by receiving a minimum of three hours of sunlight between 9am and 3pm on 22 June. An applicant must prepare shadow diagrams showing solar access to private open space. In complex and constricted situations Council may require hourly shadow simulations to be produced for detailed evaluation. **Note** - Such diagrams should be prepared by an architect, surveyor, engineer, or town planner and be based on a survey of the relevant site, development model and adjoining development. d. Enclosing screen walls or fences ensure privacy for dwellings and courtyards by minimising overlooking from adjoining communal open space or accessways and other dwellings. e. Private open space may be located within the front setback where: i. front door access is provided; and ii. adequate provision is made for additional intensive landscaping within the property.

Desired Outcome	Development Control Requirements
	f. Clothes drying areas must not be visible from the street. **Ground Level** g. Each ground floor dwelling is to be provided with a minimum private open space area as per Table D2.12, which shall be directly accessible from the living areas of dwellings. h. Private open space is to include a useable area that is not steeper than 1 in 8 and, where site conditions permit, contains a rectangle area with minimum dimensions of 4m by 4m. i. Any area within a side or rear setback less than 2 metres in width shall not be included when considering the area provided for private open space. **Above Ground Level** j. Where the dwelling is located wholly above ground level, roof decks, balconies and verandahs for each dwelling can contribute to private open space requirements provided: i. each roof deck or balcony is not less than $15m^2$ in area; ii. the minimum width of a roof deck or balcony is greater than 2 metres for more than 80% of its area; and iii. The roof deck (or balcony) immediately adjoins, and is directly accessible from, the living area of the unit at the same level where possible. k. All balconies are designed to be accessible/ useable.
Communal open space 2.6 Development provides suitably sized communal open space to enhance the amenity of residents and is designed to maximise and promote safety and social interaction between residents.	a. Where 10 or more dwellings are proposed, provide active communal open space with a minimum area of 5% of the site area and with a minimum dimension of 8m. b. The active communal open space area receives at least two hours of direct sunlight between 9am and 3pm at the winter solstice to 50% of the required area. c. Communal open spaces are visible from habitable rooms and private open space while maintaining visual privacy for dwellings. d. Public through site links have direct line of sight between public streets. e. Daylight and natural ventilation are provided to all common circulation spaces above ground. f. Lighting is provided to common spaces.
Storage and utility function	

Desired Outcome	Development Control Requirements
2.7 Building design incorporates appropriate functional and storage spaces and areas for waste storage, transfer and disposal purposes.	a. Wall mounted air-conditioning units are not located higher than 1.8 metres above existing ground level and are to be set back a minimum of 450 millimetres from any boundary. b. Wall mounted air-conditioning units and water cylinders are appropriately screened/insulated. c. . d. Development is provided with suitable waste bin storage behind the building frontage. e. Waste storage and collection is to be managed wholly within the site. Waste bins and bulk waste storage areas are not to be located within the road reserve for collection purposes. f. Where shared or bulk waste containers are proposed, the site is to provide suitable access and manoeuvring areas to allow waste collection vehicles to enter and leave the site in a forward direction. g. Building utilities components, such as solar panels and solar collectors are suitably incorporated into the roof design and hot water tanks are enclosed within the building fabric. h. Development is provided with letter boxes (unit number and street numbering) for each dwelling in accordance with the relevant Australian Standards. i. Where communal entry spaces are provided for Multi-dwelling development, these are to be highly visible and accessible to visitors.
2.8 Development includes systems for waste management that ensures waste is collected, transported and/or disposed of in a lawful manner. 2.9 Development provides space, storage, amenity and management of waste management facilities. 2.10 Development includes waste management systems are compatible with collection services.	a. A development application must be accompanied by a Statement of Environmental Effects (SEE), which includes a Site Waste Management Plan (SWMP) as the information detailing compliance with waste management requirements. The SWMP is to outline measures to minimise and manage waste generated by and through ongoing use of the site/ premises/ development including: i. volume and type of waste and recyclables to be generated; ii. storage and treatment of waste and recyclables on site; iii. disposal of residual waste and recyclables; and iv. operational procedures for ongoing waste management for the completed development. b. The SWMP identifies the method of recycling or disposal and the waste management service provider. c. Waste management facilities proposed as part of the development shall be clearly illustrated on the plans of the proposed development, accompanying the development application (DA).

Building Design and safety 2.11 Development incorporates design features which reduces the opportunity for crimes to be committed against people and property.	a. Development incorporates features which enhance privacy for residential dwellings, while maximising appropriate street surveillance. **Car Parking** b. Landscaping/vegetation shall enhance safety by maximising the visibility of cars. c. Paths between buildings and car parks should be well lit and obvious to ensure safe pedestrian access. d. Lighting utilised in car parks should be in accordance with relevant Australian Standards. e. Car parks should be sited to permit maximum opportunities for surveillance from both users of the current development and passers-by. f. Where possible, sites should be planned to avoid the creation of remote and potentially unsafe areas e.g. isolated and obscured car parking at the rear of a site. **Landscape** g. Landscape should not block opportunities for surveillance or provide opportunities for concealment (e.g. ground covers and well maintained shrubs) and afford shade and comfort without limiting observation opportunities (e.g. tall trees with low branches removed to a height of 1.8m). Blind corners should be avoided (e.g. by installing mirrors, by building corners from clear materials or by designing curves or angles in place of 90 degree corners). **Private spaces** h. Private spaces such as court yards, stairwells and parking bays should be clearly identified to reduce use by undesirable users and may include the use of pavers, varied textured paths, fencing, log barriers, landscaping and others. i. Private spaces should be clearly distinguished from public areas. j. Accommodation units should be designed to allow people within the units to observe and monitor communal areas within the development and the street area, eg. car parks, swimming pool areas, gardens etc. **Lighting** k. Lighting should be provided within the site. Areas requiring lighting should include driveways, property entrances, parking areas, footpaths, communal service areas (eg. rubbish bin bays, letterboxes, clothes lines), lobbies and stairwells. l. Lighting in communal areas and areas accessible by the public should be illuminated in hours of darkness or should be sensor/movement sensitive. m. Development provides an adequate lighting plan to ensure that surveillance of the site is also

possible during the hours of darkness.

Walkways and Pathways

n. Safe walkways and pathways should be sufficiently well lit at all times to avoid use of unsafe routes (e.g. underpasses).
o. Good sightlines and signage are used to assist people along paths. Where possible, pathways to be overlooked from residential properties.
p. Paths should be located near activity generators and areas with natural surveillance.
q. Walkways and pathways, including walkways provided between allotments and subdivisions, should be designed and located such that they do not become potential assault sites.
r. Walkways and pathways should be designed to have at least one clearly marked "exit" sign to an area of traffic (vehicular, pedestrian or residential) every 50 metres.

Entrances and Exits

s. Main entrances/exits should be located in view of the street where possible.
t. Developments should have a limited number of entrances and exits which should be obvious, well lit, sign posted, free from obscuring landscaping and signage, etc.
u. Where multiple entrances are required, less frequently used entrances should be secured at night with signs clearly indicating at what time these entrances will be closed (the above should not impact or restrict the number of fire exits required).
v. Recessed doorways which restrict opportunities for natural surveillance of building entrances and which may constitute a concealment opportunity should be avoided.
w. Where recessed doorways exist, they should be well lit, mirrored, have angled approaches or have gates to counteract the recess.
x. Entrances and exits should have a logical relationship to car parking.

Desired Outcome	Development Control Requirements
3. Landscape and Public Realm	
Views and View Sharing 3.1 Where existing development enjoys desired views (e.g. water, ocean views, views of forest, hills and mountains etc), new development is designed and sited so that at least a part of the desired view is visible from the existing development, where practicable. 3.2 Development provides for reasonably equitable sharing of views, between neighbouring properties, of water, ocean, forest, hills/mountains.	a. Development is to allow for the reasonable sharing of views with neighbouring dwellings and/or development. b. The built form of development is to provide a transition to adjacent residential development, including reasonable setbacks from side and rear boundaries, particularly at the first floor level to allowed for view sharing. c. An assessment of current view(s), viewpoints and impact (refer **Part E – Appendix 1** "View Sharing") along with graphic / modelled simulations may be necessary to support the application to Council's requirements.
Landscape 3.3 Development incorporates landscaping features to enhance the whole development and each individual dwelling's function and appearance. 3.4 Existing mature trees should be preserved. 3.5 Landscape design is complementary to the building design and surroundings.	a. Landscaping is provided in accordance with a site specific landscape plan prepared by a suitably qualified Landscape Architect. b. Detailed Landscape Plans are required prior to issue of a Construction Certificate, or with the development application, if determined by Council. c. If common areas (e.g. shared driveway, utility area) are necessary and/or proposed they must be identified on the site plan and their ownership status and ongoing management shall be detailed to the satisfaction of Council (Note common areas cannot be counted as part of the required POS for each dwelling). d. Development provides a minimum landscaped area of 10% of the site area and maintains the remaining areas to be free from weed and pest species. The minimum landscaping requirements for each dwelling are as per Table D2.12. e. Landscaping requirements are in addition to private open space.
Deep Soil Zones 3.6 Deep soil zones are provided to allow for landscape planting (trees), the infiltration of rainwater to the groundwater table and to reduce site stormwater runoff.	a. Deep soil zones must have soft landscape applied, and cannot be covered by impervious surfaces; courts, buildings or other structures, nor can they be located on-structure such as over basements or as planter boxes.
Public Realm – Primary street elevation 3.7 Development incorporates features which enhance privacy, while maximising street surveillance.	a. Development is designed to provide street elevations that feature at least 1 main entry door and 1 major window to a living area or bedroom, to provide for visibility and street surveillance. b. Kitchen, laundry or bathroom windows are not prominent features of the street elevation(s).

Desired Outcome	Development Control Requirements
	c. Development provides for clothes drying areas which are not visible from the street. d. Variation of building design and / or materials used on external facades is provided where more than 3 dwelling units face a public primary or secondary road. e. Development incorporates external fencing which provides for privacy and security. f. The height of a fence should be a maximum of 1.8 metres. Areas adjacent to access ways to public lands may have semi-transparent fences up to 1.8 metres high. g. Fencing should be designed to consider opportunities for surveillance and monitoring.
4. Access and Vehicle Parking	
Access and Parking 4.1 Multi-dwelling development is provided with appropriate access to the public road network and off-street parking.	**Driveways** a. Driveway locations, dimensions and finished levels comply with the Austroads Guide to Road Design. b. The number of driveways provided from any site to any one street frontage is limited to one (1) ingress and one (1) egress, except for larger developments (>50 dwelling units) where this may not be practical. c. Safe sight distance of driveways complies with the Austroads Guide to Road Design. **Car Parking and Vehicle Movements** d. All development is to provide on-site parking at the appropriate rate (refer **Part E – Appendix 4**). e. Car parks are not accessed directly from arterial roads. If there is no other practical means of gaining access to a public road, some deviation may be considered if access and car park ingress and egress are appropriately designed subject to council approval. f. The potential for on-street queuing is eliminated by the provision of sufficient standing area for vehicles entering parking areas. g. Off-street car parks and internal roads are designed/ constructed in accordance with the relevant Australian Standards. h. Car parks servicing three (3) or more dwellings are line-marked to indicate the layout and circulation pattern of traffic. i. Vehicle movement areas are designed to allow all vehicles, including larger vehicles such as emergency vehicles and service vehicles to safely enter and exit the site in a forward direction. j. Car parks incorporate the use of appropriately graded footpaths to optimise access to and within the development.

Desired Outcome	Development Control Requirements
	k. On-site visitor car parking areas are not located within the front setback area to the primary road servicing the development site. l. On-site resident and visitor car parking areas are screened by landscaping or other suitable means when they are highly visible from the public domain and are covered for weather protection.
5. Amenity and Environment	
Privacy 5.1 Development enhances visual privacy and mitigates visual impacts on the directly adjacent properties.	a. Windows, balconies and decks are not situated directly opposite windows of primary living rooms in any adjoining dwellings, unless the building design incorporates measures to reduce visibility impacts. b. Visual privacy of existing neighbouring dwellings is achieved by using narrow, translucent or obscured finishes for windows that are in elevated positions. c. Where the window is less than six (6) metres from a side or rear boundary adjacent to a residential property, a privacy screen or obscure glass must be provided for any part of a second storey window that is less than 1.5 metres above the second storey finished floor level. d. Acoustic privacy between individual dwelling units is preserved both within and between properties by utilising one or more of the following: i. Use of sound insulating wall material between attached units; ii. Use of sound insulating wall materials on the exterior walls of units; and iii. Increasing the minimum building setback to increase the distance between dwellings on adjoining properties. e. Fences and screen walls are encouraged to designate private open space areas adjoining both the front and rear of individual dwellings and/or sites. f. Enclosing screen walls or fences shall be designed to ensure privacy, both from adjoining communal open space or accessways and from adjacent dwellings and their courtyards. g. Operational plant and equipment including air conditioning units and for swimming pools, spas and the like shall be adequately enclosed/ sited to minimise acoustic disturbance to neighbours.
Noise 5.2 Development mitigates noise impacts on directly adjacent properties.	a. The application must demonstrate the achievement of this Desired Outcome.

Desired Outcome	Development Control Requirements
Environment 5.3 Development protects the environmental features, values and amenity qualities of the site and immediate surrounds.	a. Development minimises the removal of existing trees and vegetation on site. b. Existing street trees are retained wherever possible (small trees may be relocated within the property frontage street verge, on approval of Council).
6. Stormwater Management	
Stormwater Management 6.1 Stormwater from development is managed onsite to an acceptable, practical level. Stormwater in excess of this level must be properly drained to a legal point of discharge without causing adverse impacts on public drainage infrastructure, downslope properties or the quality of receiving waters.	a. Development shall be accompanied by a Stormwater Management Plan. b. The Stormwater Management Plan shall adopt the Major/Minor Concept as well as conservation of pre-existing flows to post development flow. c. Stormwater drainage systems shall be designed using the relevant Australian Rainfall and Runoff standards, where the minor system shall be capable of carrying the controlling flows from frequent runoff events, while the major system shall provide safe, well-defined overland flow paths for rare and extreme storm runoff events. d. All stormwater overflow generated by development must be managed on-site for up to an AEP of 10%. Stormwater from events in excess of that must be drained to a legal point of discharge. e. Where no legal point of discharge is available the development may need to provide infiltration design or on-site detention. f. The use of such infiltration solutions such as deep soils zones, rain gardens and soakaway pits, permeable surfaces or other similar treatments for stormwater management are encouraged. g. Development that incorporates a water tank(s), detention ponds, into the stormwater management system must comply with the following: i. The water tank system, including roof area, tank inlet pipe size, tank storage capacity and tank outlet pipe size, must be suitably sized to accommodate stormwater in a 5% AEP, with all overflow being directed to a legal point of discharge, suitably sized rubble drain or properly constructed drainage channel, at least 3 metres clear of buildings. ii. Stormwater from driveways and hardstand areas is directed away from the water tank(s) and is properly managed to a legal point of discharge in accordance with this Part.

Desired Outcome	Development Control Requirements
	iii. Tanks and fittings comply with Planning for Bushfire Protection, as applicable. h. Suitable easements are provided for public stormwater infrastructure within properties.
7. Utilities	
7.1 Infrastructure is adequate to service the needs of the development and, where required, are upgraded or provide new infrastructure to meet the increase in demand generated by the development.	a. All utilities and services are to be designed in accordance with relevant statutory requirements, including KSC Infrastructure Delivery Guide and KSC AUS-SPECS.
7.2 Suitable water services are provided for the development.	a. Development is connected to a reticulated water supply main where available via a minimum service to KSC requirements and KSC Water Meter. b. Suitable easements are provided for public water infrastructure within properties. c. The developer meets the full cost of water reticulations, plus the cost of connecting to the existing services.
7.3 Suitable electricity services are provided to service the development.	a. Electricity services are provided to the development in accordance with requirements of the relevant authority and at the full cost of the developer. b. Electricity services are provided underground wherever possible.
7.4 Suitable sewerage services are provided for the development.	a. Development is connected to a reticulated sewer main where available. If unsewered, an on-site effluent management system is installed that complies with the following: i. Relevant Australian Standards for On-site Domestic Wastewater Management. ii. NSW Environment and Health Protection Guidelines. b. Suitable easements are provided for public sewerage infrastructure within properties. c. Where the development is in near proximity to an existing sewered area or where in the opinion of the State government or Council, the land is unsuitable for onsite disposal of effluent, connection to the existing sewerage system will be required. d. An On-site Sewage Management Assessment Report to support sewage treatment proposals is to accompany an application for this type of development (refer also **Part E – Appendix 6** and KSC policy strategies and guidelines for relevant information). e. Where public sewerage infrastructure within properties exist, suitable easements are provided for this infrastructure.

Desired Outcome	Development Control Requirements
	f. Development is designed so that an area remote from any watercourse and downhill of potential home sites is available for effluent disposal. g. The developer meets the full cost of sewer reticulations, plus the cost of connecting to the existing services.
7.5 Suitable telecommunication services are provided for the development.	a. Telecommunication services are provided to each dwelling, where available. b. Where a telecommunications network is available to the site, applicants provide written confirmation from the relevant network provider stating that satisfactory arrangements have been made for connection, prior to the commencement of the use.

D2.6 Shop Top Housing, Residential Flat Buildings and Tourist and Visitor Accommodation

Application

This section applies to shop top housing, residential flat buildings and tourist and visitor accommodation and any alterations and additions to those existing uses on land in any zone where it is permitted with consent under the KLEP.

Objectives

1. To establish a high quality residential and accommodation environment, where shop top housing, residential flat buildings and tourist and visitor accommodation have an acceptable level of access and amenity.
2. Shop top housing is designed, sited and serviced to be co-located as part of mixed-use buildings that activate commercial areas.
3. Shop top housing, residential flat buildings and tourist and visitor accommodation provide for diverse housing and accommodation choices in both commercial and residential zones (as appropriate), providing efficient access to essential services and facilities.
4. Shop top housing encourages more diverse and dynamic commercial developments which are complemented by residential living options above the primary use of the site for commercial purposes.
5. To ensure residential and commercial components share complementary functions and separate facilities to minimise conflict.

Note: The residential densities specified in the table below apply to shop top housing, residential flat buildings and tourist and visitor accommodation and will be a fundamental determinant of the dwelling yield achievable on an individual lot. Development for each 1, 2, 3, 4 or 5+ bedroom dwelling proposed, shall have a site area of not less than that indicated in Column 2 of Table D2.15. The accommodation/site area table is calculated on the number of bedrooms per dwelling/accommodation unit.

b) Private landscaped area of not less than that indicated in Column 4 of Table D2.15 is to be provided on each development site. Note – The site area for every individual dwelling must accommodate the minimum landscape, private open space and deep soil zone (DSZ) areas.

c) A common landscape area or areas such as shared driveway, storage, service and/or utility areas may be necessary for the functioning of the proposed development. Such area or areas shall not be counted as forming any part of the Landscape private open space (POS) or deep soil zone (DSZ) requirements for each dwelling (each dwelling's site area). Such areas may be utilized for on-site stormwater management purposes.

The following desired outcomes and development control requirements in Table D2.14 prescribe how the above objectives can be met.

Table D2.14 – Shop Top Housing, Residential Flat Buildings and Tourist and Visitor Accommodation – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1. Site Design	
Site Coverage 1.1 The scale of development is appropriate for the size of the site. 1.2 The commercial and/or retail element of any development is also designed to	a. Site lot frontage is not less than eighteen (18) metres at the building line. b. Site area complies with the requirements of KLEP and the following requirements in **Table D2.15.**

Desired Outcome	Development Control Requirements
address **Part D4 – Commercial Development.**	

Table D2.15 – Site Coverage Density and Provisions

Each Dwelling Size	Minimum Site Area (for each dwelling)	Landscape/open space requirements (for each dwelling's site area)
1 Bedroom	70 m^2	40 %
2 Bedrooms	95 m^2	40 %
3 Bedrooms	130 m^2	40 %
4 Bedrooms	165 m^2	40 %
+5 Bedrooms		40%

Setbacks

1.3 Development is set back at consistent distances to minimise impacts related to streetscape, overshadowing and privacy and to provide adequate space for landscaping and private recreation.

a. Building setbacks comply with **Table D2.16.**

Table D2.16 - Setbacks

Boundary	Scenario	<600m^2 lot	>600m^2 lot
Primary Road	Single storey	Average building line or 4.5m	Average building line or 6m
	> single storey	6m, or as approved by Council	6m, or as approved by Council
Side boundary	Single storey	0.9m or BCA	0.9m or BCA
	> single storey	1.5m or BCA	1.5m or BCA
Rear boundary	Single storey	3m	5m
	> single storey	5m	8m

Desired Outcome	Development Control Requirements
Topography (earthworks) 1.4 Dwellings are sited and designed to accommodate the natural slope and orientation of the site and immediately adjacent land. 1.5 Earthworks associated with development do not negatively impact on the surrounding streetscape, adjoining properties or public assets.	a. Earthworks must not alter the existing ground level/natural topography where there are existing vegetation and trees to be preserved. b. Where existing trees are preserved, no earthworks shall be permitted closer to the trunk or main stem than the drip-line (canopy extent) of the tree. c. Earthworks must not exceed a cut or fill of greater than 1.50 metres depth/height from the existing ground level/natural topography of the site, or be assessed by a suitably qualified engineer. d. Cut and fill batters shall not exceed a slope of 1:3 (volume:height). e. Cut and fill batters and retaining walls outside the building footprint shall be landscaped to mitigate visual impacts f. Earthworks must comply with KSC Infrastructure Delivery Guide and KSC AUS-SPECS requirements.
2. Development Design	
Building form - General 2.1 Building siting, height, scale and roof form must not negatively impact the surrounding development, streetscape, topography and character.	a. A site analysis plan must be prepared, demonstrating that development considers and addresses the contributing landscape, streetscape and neighbouring building elements that contribute to the area. b. Where a Height of Building Map applies, building height complies with the relevant height limit under the KLEP. c. The continuous length of a building wall or retaining wall greater than 1.8m in height shall be no more than twenty (20) metres. d. Where building external wall/façade is longer than fifteen (15) metres in length, they must be articulated. The articulation of the external wall must be of minimum one (1) metre in depth and three (3) metres in length.
Building Form - Shop Top Housing 2.2 Shop top housing development is designed to complement the commercial development over which it is located and to integrate its design, providing clearly separate entrance points. 2.3 The interface between development and any associated commercial development on site is managed to keep the two components separate and independent of one another. 2.4 The applicant demonstrates that other uses on the site will not significantly impact on residential amenity or will	a. Shop top housing provides a separate and easily distinguishable entrance point to the commercial component of the development.

Desired Outcome	Development Control Requirements
provide ways to mitigate any impacts.	
Passive Design 2.5 Development is designed and constructed to maximise their liveability, amenity and sustainability through their orientation, sustainable building fabrics, thermal performance, energy generation/consumption and water collection, use and reuse. 2.6 Development achieves energy efficiency, through dwelling orientation, access to sunlight (generally: maximise in Winter, minimise in Summer), natural ventilation and the use of sustainable building fabrics.	a. Development should be designed and sited so that the living areas and major part of their private open space have a northern orientation and receive the maximum amount of sunlight in winter and provide the opportunity for planting trees for summer shading and amenity value. b. Development should be designed for energy efficiency by: i. minimising the overall surface area through which heat gains and losses can occur and providing for insulation of the dwellings; ii. avoiding large expanses of glazing on south and west facing walls; iii. maximising natural ventilation for summer cooling in summer by building orientation and width, and windows to funnel air flow and breezes. c. Windows on the northern side of development (north facing habitable rooms or external living spaces of the development) should be designed to maximise winter sun access and minimise summer sun access. d. Development should utilise sun protection devices, (i.e. deep eaves, screens, verandahs, pergolas, etc.) along western-facing walls to produce a comfortable microclimate in and around dwellings. e. A BASIX certificate is to be submitted for BASIX affected development.
Over-shadowing 2.7 Development does not cause overshadowing of adjoining properties.	Demonstrate that: a. Building design achieves at least 3 hours of solar access to key living spaces/ private open spaces of the adjoining dwellings on 21 June. b. Where overshadowing may impact adjoining land, an applicant must prepare shadow diagrams showing solar access to neighbouring dwellings, private open space, solar collectors and panels on adjoining land and property. In complex and constricted situations Council may require hourly shadow simulations to be produced for detailed evaluation. **Note** - Such diagrams should be prepared by an architect, surveyor, engineer, or town planner and be based on a survey of the relevant site, development model and adjoining development.
Private open space (POS) 2.8 Developments must provide adequate private open space which ensures that the occupant has access to a private outdoor area for their sole use and enjoyment.	a. Private open space (POS) areas enable an extension of the function of the dwelling for relaxation, dining, entertainment, recreation and children's play. b. The location and design of private open space takes into account the outlook and natural features of the site. d. The orientation of private open space should provide for maximum year-round use by receiving a minimum of three hours of sunlight between 9am and 3pm on 22

Desired Outcome	Development Control Requirements
	June. An applicant must prepare shadow diagrams showing solar access to private open space. In complex and constricted situations Council may require hourly shadow simulations to be produced for detailed evaluation. **Note** - Such diagrams should be prepared by an architect, surveyor, engineer, or town planner and be based on a survey of the relevant site, development model and adjoining development. e. Enclosing screen walls or fences ensure privacy for dwellings and courtyards by minimising overlooking from adjoining communal open space or accessways and other dwellings. f. Private open space may be located within the front setback where: i. front door access is provided; and ii. adequate provision is made for additional intensive landscaping within the property. g. Clothes drying areas must not be visible from the street. **Ground Level** h. Each ground floor dwelling is to be provided with a minimum private open space area of $30m^2$, which shall be directly accessible from the living areas of dwellings. i. Private open space is to include a useable area that is not steeper than 1 in 8 and, where site conditions permit, contains a rectangle area with minimum dimensions of 4m by 4m. j. Any area within a side or rear setback less than 2 metres in width shall not be included when considering the area provided for private open space. **Above Ground Level** k. Where the dwelling is located wholly above ground level, roof decks, balconies and verandahs for each dwelling can contribute to private open space requirements provided: i. each roof deck or balcony is not less than $15m^2$ in area; ii. the minimum width of a roof deck or balcony is greater than 2 metres for more than 80% of its area; and iii. The roof deck (or balcony) immediately adjoins, and is directly accessible from, the living area of the unit at the same level where possible. l. All balconies are designed to be accessible/ useable.
Communal open space 2.9 Development provides suitably sized communal open space to enhance the amenity of residents and is designed to maximise and promote safety and social interaction between residents.	a. Where ten (10) or more dwellings are proposed, provide active communal open space with a minimum area of 5% of the site area and with a minimum dimension of 8m. b. The active communal open space area receives at least two hours of direct sunlight between 9am and 3pm at the winter solstice to 50% of the required area.

Desired Outcome	Development Control Requirements
	c. Communal open spaces are visible from habitable rooms and private open space while maintaining visual privacy for dwellings. d. Public through site links have direct line of sight between public streets. e. Daylight and natural ventilation are provided to all common circulation spaces above ground. f. Lighting is provided to common spaces.
Storage and utility function 2.10 Building design incorporates appropriate functional and storage spaces and areas for waste storage, transfer and disposal purposes.	a. Wall mounted air-conditioning units are not located higher than 1.8 metres above existing ground level and are to be set back a minimum of 450 millimetres from any boundary. b. Wall mounted air-conditioning units and water cylinders are appropriately screened/insulated. c. Development is provided with suitable waste bin storage behind the building frontage. d. Waste storage and collection is to be managed wholly within the site. Waste bins, skip bins and bulk waste storage areas are not to be located within the road reserve for collection purposes. e. Where collection is undertaken by a private contractor or bulk waste collection vehicle, the site is to provide suitable access and manoeuvring areas to allow vehicles to enter and leave the site in a forward direction. f. Building utilities components, such as solar panels and solar collectors are suitably incorporated into the roof design and hot water tanks are enclosed within the building fabric. g. Development is provided with letter boxes (unit number and street numbering) for each dwelling in accordance with the relevant Australian Standards. h. Where communal entry spaces are provided for Multi-dwelling development, these are to be highly visible and accessible to visitors.
2.11 Development includes systems for waste management that ensures waste is collected, transported and/or disposed of in a lawful manner. 2.12 Development provides space, storage, amenity and management of waste management facilities. 2.13 Development includes waste management systems are compatible with collection services.	a. A development application must be accompanied by a Statement of Environmental Effects (SEE), which includes a Site Waste Management Plan (SWMP) as the information detailing compliance with waste management requirements. The SWMP is to outline measures to minimise and manage waste generated by and through ongoing use of the site/ premises/ development including: i. volume and type of waste and recyclables to be generated; ii. storage and treatment of waste and recyclables on site; iii. disposal of residual waste and recyclables; and iv. operational procedures for ongoing waste management for the completed development.

Desired Outcome	Development Control Requirements
	b. The SWMP identifies the method of recycling or disposal and the waste management service provider. c. Waste management facilities proposed as part of the development shall be clearly illustrated on the plans of the proposed development, accompanying the development application (DA).
Building Design and safety 2.14 Development incorporates design features which reduces the opportunity for crimes to be committed against people and property.	a. Development incorporates features which enhance privacy for residential dwellings, while maximising appropriate street surveillance. **Car Parking** b. Landscape/ vegetation shall enhance safety by maximising the visibility of cars. c. Paths between buildings and car parks should be well lit and obvious to ensure safe pedestrian access. d. Lighting utilised in car parks should be in accordance with relevant Australian Standards. e. Car parks should be sited to permit maximum opportunities for surveillance from both users of the current development and passers-by. f. Where possible, sites should be planned to avoid the creation of remote and potentially unsafe areas e.g. isolated and obscured car parking at the rear of a site. **Landscape** g. Landscape should not block opportunities for surveillance or provide opportunities for concealment (e.g. ground covers and well maintained shrubs) and afford shade and comfort without limiting observation opportunities (e.g. tall trees with low branches removed to a height of 1.8m). h. Blind corners should be avoided (e.g. by installing mirrors, by building corners from clear materials or by designing curves or angles in place of 90-degree corners). **Private spaces** i. Private spaces such as court yards, stairwells and parking bays should be clearly identified to reduce use by undesirable users and may include the use of pavers, varied textured paths, fencing, log barriers, landscaping and others. j. Private spaces should be clearly distinguished from public areas. k. Accommodation units should be designed to allow people within the units to observe and monitor communal areas within the development and the street area, e.g. car parks, swimming pool areas, gardens etc. **Lighting** l. Lighting should be provided within the site. Areas requiring lighting should include driveways, property entrances, parking areas, footpaths, communal service areas (e.g. rubbish bin bays, letterboxes, clothes lines), lobbies and stairwells.

Desired Outcome	Development Control Requirements
	m. Lighting in communal areas and areas accessible by the public should be illuminated in hours of darkness or should be sensor/movement sensitive. n. Development provides an adequate lighting plan to ensure that surveillance of the site is also possible during the hours of darkness. **Walkways and Pathways** o. Safe walkways and pathways should be sufficiently well lit at all times to avoid use of unsafe routes (e.g. underpasses). p. Good sightlines and signage are used to assist people along paths. Where possible, pathways to be overlooked from residential properties. q. Paths should be located near activity generators and areas with natural surveillance. r. Walkways and pathways, including walkways provided between allotments and subdivisions, should be designed and located such that they do not become potential assault sites. s. Walkways and pathways should be designed to have at least one clearly marked "exit" sign to an area of traffic (vehicular, pedestrian or residential) every 50 metres. **Entrances and Exits** t. Main entrances/exits should be located in view of the street where possible. u. Developments should have a limited number of entrances and exits which should be obvious, well lit, sign posted, free from obscuring landscaping and signage, etc. v. Where multiple entrances are required, less frequently used entrances should be secured at night with signs clearly indicating at what time these entrances will be closed (the above should not impact or restrict the number of fire exits required). w. Recessed doorways which restrict opportunities for natural surveillance of building entrances and which may constitute a concealment opportunity should be avoided. x. Where recessed doorways exist, they should be well lit, mirrored, have angled approaches or have gates to counteract the recess. y. Entrances and exits should have a logical relationship to car parking.
3. Landscape and Public Realm	
Landscape 3.1 Development incorporates landscaping features to enhance the whole development and each individual dwelling's function and appearance. 3.2 Existing mature trees should be preserved.	a. Landscaping is provided in accordance with a site specific landscape plan prepared by a suitably qualified Landscape Architect. b. Detailed Landscape Plans are required prior to issue of a Construction Certificate, or with the development application, if determined by Council.

Desired Outcome	Development Control Requirements
3.3 Landscape design is complementary to the building design and surroundings.	c. If common areas (e.g. shared driveway, utility area) are necessary and/or proposed they must be identified on the site plan and their ownership status and ongoing management shall be detailed to the satisfaction of Council (Note common areas cannot be counted as part of the required POS for each dwelling). d. Development provides a minimum landscaped area of 10% of the site area and maintains the remaining areas to be free from weed and pest species. The minimum landscaping requirements for each dwelling are as per **Table D2.15.** e. Landscaping requirements are in addition to private open space.
Deep Soil Zones 3.4 Deep soil zones are provided to allow for landscape planting (trees), the infiltration of rainwater to the groundwater table and to reduce site stormwater runoff.	a. Deep soil zones must have soft landscape applied, and cannot be covered by impervious surfaces; courts, buildings or other structures, nor can they be located on-structure such as over basements or as planter boxes.
Public Realm – Primary street elevation 3.5 Development incorporates features which enhance privacy, while maximising street surveillance.	a. Development is designed to provide street elevations that feature at least 1 main entry door and 1 major window to a living area or bedroom, to provide for visibility and street surveillance. b. Kitchen, laundry or bathroom windows are not prominent features of the street elevation(s). c. Development provides for clothes drying areas which are not visible from the street. d. Variation of building design and / or materials used on external facades is provided where more than 3 dwelling units face a public primary or secondary road. e. Development incorporates external fencing which provides for privacy and security. f. The height of a fence should be a maximum of 1.8 metres. Areas adjacent to access ways to public lands may have semi-transparent fences up to 1.8 metres high. g. Fencing should be designed to consider opportunities for surveillance and monitoring.
4. Access and Vehicle Parking	
Access and Parking 4.1 Development is provided with appropriate access to the public road network and off-street parking.	**Driveways** a. Driveway locations, dimensions and finished levels comply with the Austroads Guide to Road Design. b. The number of driveways provided from any site to any one street frontage is limited to one (1) ingress and one (1) egress, except for larger developments (>50 dwelling units) where this may not be practical. c. Safe sight distance of driveways complies with the Austroads Guide to Road Design.

Desired Outcome	Development Control Requirements
	Car Parking and Vehicle Movements d. All development is to provide on-site parking at the appropriate rate (refer **Part E – Appendix 4**). e. Car parks are not accessed directly from arterial roads. If there is no other practical means of gaining access to a public road, some deviation may be considered if access and car park ingress and egress are appropriately designed subject to council approval. f. The potential for on-street queuing is eliminated by the provision of sufficient standing area for vehicles entering parking areas. g. Off-street car parks and internal roads are designed/ constructed in accordance with the relevant Australian Standards. h. Car parks servicing three (3) or more dwellings are line-marked to indicate the layout and circulation pattern of traffic. i. Vehicle movement areas are designed to allow all vehicles, including larger vehicles such as emergency vehicles and service vehicles to safely enter and exit the site in a forward direction. j. Car parks incorporate the use of appropriately graded footpaths to optimise access to and within the development. k. On-site visitor car parking areas are not located within the front setback area to the primary road servicing the development site. l. On-site resident and visitor car parking areas are screened by landscaping or other suitable means when they are highly visible from the public domain and are covered for weather protection.
5. Amenity and Environment	
Privacy 5.1 Development enhances visual privacy and mitigates visual impacts on the directly adjacent properties.	a. Windows, balconies and decks are not situated directly opposite windows of primary living rooms in any adjoining dwellings, unless the building design incorporates measures to reduce visibility impacts. b. Visual privacy of existing neighbouring dwellings is achieved by using narrow, translucent or obscured finishes for windows that are in elevated positions. c. Where the window is less than six (6) metres from a side or rear boundary adjacent to a residential property, a privacy screen or obscure glass must be provided for any part of a second storey window that is less than 1.5 metres above the second storey finished floor level. d. Acoustic privacy between individual dwelling units is preserved both within and between properties by utilising one or more of the following: i. Use of sound insulating wall material between attached units; ii. Use of sound insulating wall materials on the exterior walls of units; and

Desired Outcome	Development Control Requirements
	iii. Increasing the minimum building setback to increase the distance between dwellings on adjoining properties. e. Fences and screen walls are encouraged to designate private open space areas adjoining both the front and rear of individual dwellings and/or sites. f. Enclosing screen walls or fences shall be designed to ensure privacy, both from adjoining communal open space or accessways and from adjacent dwellings and their courtyards. g. Operational plant and equipment including air conditioning units and for swimming pools, spas and the like shall be adequately enclosed/ sited to minimise acoustic disturbance to neighbours.
Noise 5.2 Development mitigates noise impacts on directly adjacent properties.	a. The application must demonstrate the achievement of this Desired Outcome.
Environment 5.3 Development protects the environmental features, values and amenity qualities of the site and immediate surrounds.	a. Development minimises the removal of existing trees and vegetation on site. b. Existing street trees are retained wherever possible (small trees may be relocated within the property frontage street verge, on approval of Council).
Views and View Sharing 5.4 Where existing development enjoys desired views (e.g. water, ocean views, views of forest, hills and mountains etc), new development is designed and sited so that at least a part of the desired view is visible from the existing development, where practicable. 5.5 **Development** provides for reasonably equitable sharing of views, between neighbouring properties, of water, ocean, forest, hills/mountains.	a. Development is to allow for the reasonable sharing of views with neighbouring dwellings and/or development. b. The built form of development is to provide a transition to adjacent residential development, including reasonable setbacks from side and rear boundaries, particularly at the first floor level to allowed for view sharing. c. An assessment of current view(s), viewpoints and impact (refer **Part E – Appendix 1** "View Sharing") along with graphic / modelled simulations may be necessary to support the application to Council's requirements.
6. *Stormwater Management*	
Stormwater Management 6.1 Stormwater from development is managed onsite to an acceptable, practical level. Stormwater in excess of this level must be properly drained to a legal point of discharge without causing adverse impacts on public drainage infrastructure, downslope properties or the quality of receiving waters.	a. Development shall be accompanied by a Stormwater Management Plan. b. The Stormwater Management Plan shall adopt the Major/Minor Concept as well as conservation of pre-existing flows to post development flow. c. Stormwater drainage systems shall be designed using the relevant Australian Rainfall and Runoff standards, where the minor system shall be capable of carrying the controlling flows from frequent runoff events, while the major system shall provide safe, well-defined overland flow paths for rare and extreme storm runoff events.

Desired Outcome	Development Control Requirements
	d. All stormwater overflow generated by development must be managed on-site for up to an AEP of 10%. Stormwater from events in excess of that must be drained to a legal point of discharge. e. Where no legal point of discharge is available the development may need to provide infiltration design or on-site detention. f. The use of such infiltration solutions such as deep soils zones, rain gardens and soakaway pits, permeable surfaces or other similar treatments for stormwater management are encouraged. g. Development that incorporates a water tank(s), detention ponds, into the stormwater management system must comply with the following: i. The water tank system, including roof area, tank inlet pipe size, tank storage capacity and tank outlet pipe size, must be suitably sized to accommodate stormwater in a 5% AEP, with all overflow being directed to a legal point of discharge, suitably sized rubble drain or properly constructed drainage channel, at least 3 metres clear of buildings. ii. Stormwater from driveways and hardstand areas is directed away from the water tank(s) and is properly managed to a legal point of discharge in accordance with this Part. iii. Tanks and fittings comply with Planning for Bushfire Protection, as applicable. h. Suitable easements are provided for public stormwater infrastructure within properties.
7. *Utilities*	
7.1 Infrastructure is adequate to service the needs of the development and, where required, are upgraded or provide new infrastructure to meet the increase in demand generated by the development.	a. All utilities and services are to be designed in accordance with relevant statutory requirements, including KSC Infrastructure Delivery Guide and KSC AUS-SPECS.
7.2 Suitable water services are provided for the development.	a. Development is connected to a reticulated water supply main where available via a minimum service to KSC requirements and KSC Water Meter. b. Suitable easements are provided for public water infrastructure within properties. c. The developer meets the full cost of water reticulations, plus the cost of connecting to the existing services.
7.3 Suitable electricity services are provided to service the development.	a. Electricity services are provided to the development in accordance with requirements of the relevant authority and at the full cost of the developer. b. Electricity services are provided underground wherever possible.

Desired Outcome	Development Control Requirements
7.4 Suitable sewerage services are provided for the development.	a. Development is connected to a reticulated sewer main where available. If unsewered, an on-site effluent management system is installed that complies with the following: i. Relevant Australian Standards for On-site Domestic Wastewater Management. ii. NSW Environment and Health Protection Guidelines. b. Suitable easements are provided for public sewerage infrastructure within properties. c. Where the development is in near proximity to an existing sewered area or where in the opinion of the State government or Council, the land is unsuitable for onsite disposal of effluent, connection to the existing sewerage system will be required. d. An On-site Sewage Management Assessment Report to support sewage treatment proposals is to accompany an application for this type of development (refer also **Part E – Appendix 6** and KSC policy strategies and guidelines for relevant information). e. Where public sewerage infrastructure within properties exist, suitable easements are provided for this infrastructure. f. Development is designed so that an area remote from any watercourse and downhill of potential home sites is available for effluent disposal. g. The developer meets the full cost of sewer reticulations, plus the cost of connecting to the existing services.
7.5 Suitable telecommunication services are provided for the development.	a. Telecommunication services are provided to each dwelling, where available. b. Where a telecommunications network is available to the site, applicants provide written confirmation from the relevant network provider stating that satisfactory arrangements have been made for connection, prior to the commencement of the use.

D2.7 Ancillary Development

Application

This section applies to ancillary development, such as but not limited to swimming pools; sports courts, dams and waterbodies; garages, car ports and sheds; retaining walls; fencing and shipping containers, where development consent is required and, on any land where the proposed activity is permissible.

Objectives

1. To provide for ancillary development within Kempsey Shire, which is complementary to the primary development on site.
2. Ancillary development is designed to be consistent with the amenity and character of the locality in which it is situated.

The following desired outcomes and development control requirements in **Table D2.17** prescribe how the above objectives can be met.

Table D2.17 – Ancillary Development – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1. Site Design	
Site Coverage 1.1 The scale of ancillary development is appropriate for the size of the site.	a. Development has a site area which is consistent with the primary use of the site and will be determined in agreement with Council.
Topography (earthworks) 1.2 Dwellings are sited and designed to accommodate the natural slope and orientation of the site and immediately adjacent land. 1.3 Earthworks associated with development does not negatively impact on the surrounding streetscape, adjoining properties or public assets.	a. Earthworks must not alter the existing ground level/natural topography where there are existing vegetation and trees to be preserved. b. Where existing trees are preserved, no earthworks are permitted closer to the trunk or main stem than the drip-line (canopy extent) of the tree. c. Earthworks must not exceed a cut or fill of greater than 1.50 metres depth/height from the existing ground level/natural topography of the site, or be assessed by a suitably qualified engineer. d. Cut and fill batters shall not exceed a slope of 1:3 (volume: height). e. Cut and fill batters and retaining walls outside the development footprint must be landscaped to mitigate visual impacts. f. Earthworks must comply with KSC Infrastructure Delivery Guide and KSC AUS-SPECS requirements. g. Excavations for and within the extent of swimming pools only must not exceed a cut of 2.00 metres h. Earthworks, fill or excavation must not be undertaken within 900mm of any external legal boundary.

Desired Outcome	Development Control Requirements
2. *Development Design*	
Building form and general requirements 2.1 Ancillary development siting, height, scale and roof form must not negatively impact the surrounding development, streetscape, topography and character.	a. Attached structures have a ridge height that matches, or is below, the ridge height of the dwelling to which it is attached. b. Detached structures do not have a wall height exceeding four (4) metres and a ridge height that matches, or is below, the ridge height of adjoining or nearby structures. c. The design of the structure complements the appearance of any existing/ approved dwelling and does not adversely impact on the streetscape or surroundings. e. Development (habitable) achieves at least 3 hours of solar access to key living spaces / private open spaces of the adjoining dwellings at the winter solstice (21 June) between 9am and 3pm, where relevant. An applicant must prepare shadow diagrams showing solar access to private open space. In complex and constricted situations Council may require hourly shadow simulations to be produced for detailed evaluation. **Note** - Such diagrams should be prepared by an architect, surveyor, engineer, or town planner and be based on a survey of the relevant site, development model and adjoining development. d. Development does not necessitate an additional driveway (i.e. more than one) connection/ crossing to be constructed to a public road. e. Development gains access to the local road network and not directly onto a classified road. f. Vehicle access from a secondary road or laneway is permitted where it can be demonstrated that: i. There are no practical alternate options of gaining access to the public road network. ii. The secondary road or laneway is in a safe condition and suitable for ongoing vehicle access. iii. The structure is setback a minimum of 3.0 metres from any boundary shared with a laneway to facilitate ease of vehicle access.
Retaining walls 2.2 Retaining walls are constructed in a manner that maintains the safety and stability of the wall. 2.3 Retaining walls do not have an adverse impact on the visual amenity of the site and immediate adjacent neighbouring properties. 2.4 Retaining structures do not have an adverse impact on soil stability through excessive cut and fill.	a. Retaining walls are limited to 1.5 metres in height above finished ground level and are to be constructed of materials that are compatible with the existing streetscape and site landscape and in a manner which will not adversely impact on any adjoining property. b. Where the height of the retaining wall and fence exceeds 1.5 metres – the retaining wall is to be

Desired Outcome	Development Control Requirements
	set back a minimum of 1m from the property boundary. The 1m setback is to be landscaped in a manner to contribute to screening/reducing the visual impact of the retaining wall. c. Retaining walls may exceed 1.5m if: d. internal or under the proposed house; e. geotechnical report assesses site as able to maintain stability; f. engineer to certify wall; and g. volume of overburden to be subject to contributions to transport off-site. h. A maximum length of 12 metres will generally apply to retaining walls greater than 1.8m in height. i. Where building external wall/façade is longer than fifteen (15) metres in length, they must be articulated. The articulation of the external wall must be of minimum one (1) metre in depth and three (3) metres in length.
Dams and Water Bodies (Artificial/Created) 2.5 Dams are stable, have minimal environmental impact and do not adversely affect surrounding properties, either by ponding water back onto upstream properties or by concentrating the flow of water to any downstream properties.	a. Dams should not be sited near roads, utility installations or neighbouring dwellings, to avoid potential impacts of seepage, bywash/spillway overflow and the potential for the embankments to break. b. All dam construction should comply with the requirements of the KSC Infrastructure Delivery Guide. **Note:** Building and maintenance of dams may be subject to licence from the Department of Primary Industries Water. However, some categories of dams do not require licence for building and maintenance from the Department. The Applicant should contact the Department to confirm requirements.
Swimming Pools 2.6 Swimming pools that require consent ameliorate any potential impacts on the streetscape, residential amenity or building improvements on adjoining properties. 2.7 Swimming pools are safe and secured areas with all necessary equipment and operational plant to maintain a healthy and safe private amenity.	a. The swimming pool must be for private use and associated with a dwelling house. b. The swimming pool must be located behind the building line of the dwelling house (i.e. opposite any road frontage). c. Excavation must not exceed a maximum depth, measured from existing ground level, of 2 metres. d. Earthworks more than 600mm above or below existing ground level must have finished ground surface levels of no less than 1:2 or take the form of a retaining wall or other structural support that is certified as structurally sound by a professional engineer. e. Stormwater from impervious areas around the swimming pool, including paving, retaining walls and other structural support, shall be properly drained to a legal point of stormwater discharge

Desired Outcome	Development Control Requirements
	(e.g. inter-allotment drainage pipes, street gutter system or drainage reserve) or a minimum 3 metres away from the pool structure and other buildings if the lot is not connected to public stormwater drainage infrastructure. f. Water from the swimming pool must be discharged to the reticulated sewerage system or in accordance with an approval under the Local Government Act 1993 if the lot is not connected to a sewer main. g. The swimming pool pump must be housed in an enclosure that is soundproofed and at a location that noise generated from the unit is not audible in habitable rooms of adjoining residences. h. Height of coping around the swimming pool must not be more than: i. 1.5 metres above existing ground level. ii. 300mm wide if the coping is more than 600mm above existing ground level. iii. Decking around a swimming pool must not be more than 1.5 metres above existing ground level. i. The swimming pool coping outer edge must have a setback of at least 1 metre from a side or rear boundary. **Note:** The Swimming Pools Act 1992, Local Government Act 1993 and the Building Code of Australia contain provisions that must be complied with in relation to the design, installation, registration and operation of swimming pools and spa pools in NSW.
Garages, Carports and Sheds 2.8 Garages, carports and sheds are compatible with the significance and character of any Heritage Item/ Conservation Area/ Heritage Precinct in terms of location, design and materials	a. Garages are located at the rear or set well back at the side of a building behind the rear building line. b. Garages and carports are to make reference to any established historic patterns in the street. c. The height and width of the carport or garage is to be substantially less than the main building. d. Double garages are to be detached buildings set behind the rear building line. e. Colours and materials should blend into the surrounding landscape. Custom orb steel roof profile and timber board profile cladding wall are common materials used. f. The materials should reflect the style and colours of the main building or dwelling on the land. g. The primary building's detailing and ornamentation in the design of the carport or garage is reflected. h. Garages should have simple hipped, gable or skillion roofs or be comparable to the design of the existing main building or dwelling.

Desired Outcome	Development Control Requirements
	i. Existing outbuildings should be maintained and reused, wherever possible. j. The pitch of a single garage roof should, in most cases, be comparable or slightly lower than that of the main building – generally 25 – 30°. k. Prefabricated and Colorbond steel sheds are inappropriate in Conservation Areas and in association with Heritage Items and are to be avoided.
Self-contained dwellings 2.9 Ancillary development for a self-contained dwelling is an appropriate use of the site and compatible with any existing development on the site.	a. Any ancillary development for a self-contained dwelling (e.g. manufactured home, tiny home or moveable dwelling), must comply with the relevant parts of the DCP, being either **Part D2 - D2.1 – Dwelling Houses**, or **Part D2 – D2.4 – Secondary Dwellings**.
Shipping Containers 2.10 Shipping containers are compatible with the significance and character of any Heritage Item/ Conservation Area/ Heritage Precinct in terms of location, design and materials. 2.11 Shipping containers are compatible with the neighbourhood amenity, streetscape of the immediate location in terms of location, scale, material finish and appearance.	a. Shipping containers must comply with the criteria specific to the zone of the property and meet the requirements of the National Construction Code-Building Code of Australia (BCA). b. Shipping containers must not be located within a front setback area or forward of the main building line, including a secondary street frontage. The container must not be installed or closer to any boundary than that allowed for a dwelling building. c. Shipping containers must be appropriately secured to the ground above the flood planning level for that site. They must be suitably installed, which may include being tied-down to a concrete slab or plinth, footings, foundations capable of supporting the combined weight of the container and its contents. The method of tie-down, foundation bearing capacity and slab/foundation design may need to be certified by a practicing structural engineer depending on location, to Council requirements. d. Shipping containers must be in a good condition, free of major rust, corrosion or rot and be in a structurally stable condition. Painted to suitable standard to complement the surrounding area or as specifically required by the Council. e. Shipping containers shall not be located over any easements, septic tanks, drains or other essential infrastructure. f. Shipping containers are not permitted to be used for or in conjunction with any permanent advertising signs, unless the advertising sign is of a temporary nature associated with its use. g. Additional works or measures other than those already mentioned to properly address any

Desired Outcome	Development Control Requirements
	amenity issues arising from the location of a shipping container may be required by Council. This will be based on the circumstances of the case and may include cladding the shipping container, installation of specific landscape screening or the employment of a false roof or blades so as to minimise the visual appearance of the development.
Sports (tennis etc) courts 2.12 Sports courts are designed and sited to minimise visual, noise and drainage impacts on neighbours.	a. Setbacks must be at minimum two (2) metres from any external legal boundary. b. Courts must be located behind the building line of any primary street frontage. c. Surface and drainage must be designed to adequately accommodate drainage requirements within the site and shall have a no worsening effect on neighbouring properties. d. Chainwire or mesh fences are to be of an appropriate colour and designed to reduce visual impact. e. Court fencing is to be screened by landscape planting. f. Solid fence enclosures must not be higher than 1.50 metres in height.
Fencing - residential 2.13 Fencing is designed to be in keeping with the existing streetscape and is visually unobtrusive.	a. Fencing must be constructed of masonry, timber or low reflective painted or coated metal materials to manufacturer's specifications. b. Fencing must not incorporate barbed or razor wire in its construction or be electrified or topped with sharp edged materials. c. Entrance gates in fencing shall not open outwards onto a public road reserve. d. Fencing must be designed so as not to restrict/ redirect the flow of any floodwater or overland drainage flow-path within a legal drainage easement. e. Fencing has a maximum height of: I. 1.5 metres along a front boundary; II. 1.8 metres for a side boundary; and III. 1.8 metres for a rear boundary. f. Fencing on a sloping site must be stepped to accommodate the fall in the land so that fencing is no higher than 2.0 metres above existing ground level at each step. g. Return fences (the side fence between the front boundary and front elevation of the house/building are to be the same height and design as the front fence. h. Fencing for ancillary development such as sports courts and swimming pools is of an appropriate

Desired Outcome	Development Control Requirements
	height and transparency and meets the relevant legislation or regulations.
Fencing – commercial and industrial 2.14 Fencing is designed to be in keeping with the existing streetscape and is visually unobtrusive.	a. Fencing must be constructed of masonry or metal railing, rigid frame and netting or low reflective painted metal materials to manufacturer's specifications. b. Rear and side fencing only may incorporate barbed or razor wire in part of its construction or be electrified. c. Entrance gates in fencing shall not open outwards onto a public road reserve. d. Fencing must be designed so as not to restrict/ redirect the flow of any floodwater or overland drainage flow-path within a legal drainage easement. e. Fencing has a maximum height of: I. 1.8 metres for a front boundary; II. 2.4 metres for a side boundary; and III. 2.4 metres for a rear boundary. f. Fencing on a sloping site must be stepped to accommodate the fall in the land so that fencing is no higher than 2.8 metres above existing ground level at each step.
3. *Landscape and Public Realm*	
3.1 Development preserves vegetation and is designed to retain and/or protect the natural topography, geographical features, riparian zones by being sited away from such elements on the site.	a. The application must demonstrate the achievement of this Desired Outcome.
4. *Access and Vehicle Parking*	
4.1 Safe appropriate access is provided to all ancillary development.	a. All access and vehicle parking is designed and constructed to comply with KSC Infrastructure Delivery Guide and AUS-SPEC.
5. *Amenity and Environment*	
Privacy 5.1 Ancillary development maintains visual and acoustic privacy in relation to neighbouring properties, dwellings and land uses.	a. Ancillary development is not situated directly opposite windows of primary living rooms in any adjoining dwellings, unless the design incorporates measures to reduce impacts.
Noise 5.2 Ancillary development does not produce inappropriate noise intrusion.	a. All noise generating equipment such as mechanical plant or equipment, air conditioning units, shed shutters, or similar, must be designed to protect the acoustic privacy of neighbouring residential uses and screened from view. b. All such noise generating equipment must be acoustically treated with appropriate measures.

Desired Outcome	Development Control Requirements
	c. Wall mounted air-conditioning units are located as far as possible from the bedroom areas of adjoining residences and in a manner that noise generated from the unit is not audible in habitable rooms of adjoining residences. d. Noise levels at the property/unit boundary of residential development must not exceed a LAeq, 15 minute of 5dB above background noise.
Environment 5.3 Ancillary structures protect the environmental values and physical natural features of a site.	a. Development retains existing trees and vegetation on site.
Light Pollution 5.4 Ancillary development is protected from, and does not emit light intrusion to nearby development.	a. Development complies with *AS 4282-2019 Control of the obtrusive effects of outdoor lighting*.
6. *Stormwater Management*	
Stormwater Management 6.1 Stormwater from development is managed onsite to an acceptable, practical level. Stormwater in excess of this level must be properly drained to a legal point of discharge without causing adverse impacts on public drainage infrastructure, downslope properties or the quality of receiving waters.	a. Development shall be accompanied by a Stormwater Management Plan, where deemed necessary by Council. b. Stormwater management for ancillary development is considered in accordance with the specific site's land zone, size, site coverage and conditions. c. Stormwater drainage systems shall be designed using the relevant Australian Rainfall and Runoff standards, where the minor system shall be capable of carrying the controlling flows from frequent runoff events, while the major system shall provide safe, well-defined overland flow paths for rare and extreme storm runoff events. d. All stormwater overflow generated by development must be managed on-site for up to an AEP of 10%. Stormwater from events in excess of that must be drained to a legal point of discharge. e. Where no legal point of discharge is available the development may need to provide infiltration design or on-site detention. f. Stormwater management should maximise the use of natural infiltration solutions to minimise the costs of maintaining man-made systems. g. The use of such infiltration solutions such as deep soils zones, rain gardens and soak-away pits, permeable surfaces or other similar treatments for stormwater management are encouraged. h. Development that incorporates a water tank(s), detention ponds, into the stormwater

Desired Outcome	Development Control Requirements
	management system must comply with the following: i. The water tank system, including roof area, tank inlet pipe size, tank storage capacity and tank outlet pipe size, must be suitably sized to accommodate stormwater in a 5% AEP, with all overflow being directed to a legal point of discharge, suitably sized rubble drain or properly constructed drainage channel, at least 3 metres clear of buildings. ii. Stormwater from driveways and hardstand areas is directed away from the water tank(s) and is properly managed to a legal point of discharge in accordance with this Part. iii. Tanks and fittings comply with Planning for Bushfire Protection, as applicable.
7. *Utilities*	
7.1 Infrastructure is adequate to service the needs of the development (both existing and ancillary/ additional) and, where required, are upgraded or provide new infrastructure to meet the increase in demand generated by the development.	a. All utilities and services for ancillary development must demonstrate and provide site utilities capacity sufficient for all new/ additional demands and/or loads of the ancillary development to Council's satisfaction. b. All utilities and services are to be designed in accordance with relevant statutory requirements, including KSC Infrastructure Delivery Guide and relevant AUS-SPECs. **Note** - Refer to the relevant development type section (**Parts D2 – D6**) for further relevant utilities requirements if and where required.
7.2 Suitable water services are provided for the development.	a. Where habitable, the development is connected to a reticulated water supply main where available via a minimum service to KSC requirements and KSC Water Meter.
7.3 Suitable electricity services are provided to service the development.	a. Electricity services are provided to habitable development in accordance with requirements of the relevant authority and at the full cost of the developer. b. Electricity services are provided underground wherever possible.
7.4 Suitable sewerage services are provided for the development.	a. Where development is habitable it must connected to a reticulated sewer main where available. If unsewered, an on-site effluent management system is installed that complies with the following: i. Relevant Australian Standards for On-site Domestic Wastewater

Desired Outcome	Development Control Requirements
	Management. ii. NSW Environment and Health Protection Guidelines.
7.5 Suitable telecommunication services are provided for the development.	a. Telecommunication services are provided to ancillary development where this is habitable and where available. b. Where a telecommunications network is available to the site, applicants provide written confirmation from the relevant network provider stating that satisfactory arrangements have been made for connection, prior to the commencement of the use.

D3 RURAL DEVELOPMENT

Application

This section generally applies to developments permitted on land zoned RU1 Primary Production, RU2 Rural Landscape, RU3 Forestry, RU4 Primary Production Small Lots, C2 Environmental Conservation, C3 Environmental Management and C4 Environmental Living under KLEP.

This section applies to development applications for:

- D3.1 Rural Dwellings (dwelling houses) and Rural Workers Dwellings
- D3.2 Rural Buildings and Structures
- D3.3 Rural Tourism
- D3.4 Rural Industries
- D3.5 Agriculture

D3.1 Rural Dwellings and Rural Workers Dwellings

Application

This section applies to rural dwellings (dwelling houses) and rural workers dwellings and any alterations and additions to any of the above on land zoned RU1 Primary Production, RU2 Rural Landscape, RU3 Forestry, RU4 Primary Production Small Lots, C3 Environmental Management and C4 Environmental Living under KLEP.

Objectives

1. To provide for rural dwelling houses and rural workers dwellings, ensuring that their development avoids fragmentation and inappropriate development on rural land.
2. To ensure rural dwelling houses and rural workers dwellings support the primary purpose of land in the rural zones for primary production, rural industry and agricultural purposes.

The following desired outcomes and development control requirements in **Table D3.1** prescribe how the above objectives can be met.

Table D3.1 – Rural Dwellings – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1. Site Design	
Site Coverage 1.1 The proportion of a lot that is occupied by rural dwellings, rural workers dwelling and ancillary development maintains allowable density and is subordinate to the primary purpose of the land being used for primary production, rural industry and agricultural purposes.	a. The combined site coverage of a new rural dwelling or rural workers dwelling on a lot that has an area of less than 4,000m^2 must not be more than 30 per cent. b. The combined floor area of a new rural dwelling or rural workers dwelling on a lot that has an area of less than 4,000m^2 must not be more than 430m^2.
Setbacks 1.2 Rural dwellings and rural workers dwellings are located to ensure there is adequate separation between agricultural activities, environmentally sensitive areas, neighbouring properties, public roads and infrastructure.	**Environmentally Sensitive Areas** a. Development is setback from certain land-uses as per **Table D3.2.** **Setbacks from Watercourses** b. Development is setback a minimum distance of forty (40) metres from the top of the bank of any permanent/perennial water course, creek or drainage channel. **Setbacks from Roads** c. A rural dwelling and rural workers dwelling must have a setback from the boundary with a primary road of at least eighteen (18) metres. d. A rural dwelling and rural workers dwelling must have a setback from the boundary with a secondary road of at least ten (10) metres. e. If a lot fronts a classified road, a rural dwelling and rural workers dwelling must have a setback from the boundary with the classified road of whichever is the greater of – i. if another environmental planning instrument applying to that lot specifies a setback for those circumstances, the

Desired Outcome	Development Control Requirements
	setback specified by the other instrument; or ii. the setback specified by c and d above. **Side Setbacks** f. A rural dwelling and rural workers dwelling must have a setback from the side boundary of at least 10m. **Rear Setbacks** g. A rural dwelling and rural workers dwelling must have a setback from the rear boundary of at least 15m.
	Table D3.2 -Setback Distances

Setback	Land Use Activity
1000m	Neighbouring abattoirs, feedlots, feed-pad dairies, piggeries, poultry farms, potentially hazardous or offensive industries, mines and extractive industries that involve blasting
1000m	Neighbouring effluent irrigation application areas.
500m	Neighbouring dairies, rural industries, mines and extractive industries that don't involve blasting.
500m	Neighbouring large scale rural industries involving wet plant or potentially noisy operations
400m	Sewage Treatment Plants
150m	Neighbouring land used for cropping, cultivation, horticulture, viticulture, turf farms, rabbit farms
100m	Railway corridor
50m	Heritage items listed under KLEP or State Heritage Register.
40m	Sheds, yards, sheep dips, livestock burial pits, effluent management ponds, open storage areas or the like that may pose a potential chemical contamination risk as a result of past activities

	Note: *The separation distances represent best practice minimum buffer distances. Where a rural dwelling or rural workers dwelling is proposed and the adjoining land is being used, is likely to be used, or is capable of being used for more*

Desired Outcome	Development Control Requirements
	than one type of primary industry activity included in the setback tables in this section, then the greatest of the setback distances is to be implemented. *Development applications involving a variation to the minimum setback distances shown in the setback tables in this section will be considered by Council if they are accompanied by appropriate studies/ investigations/ justification provided by an appropriately qualified and experienced practitioner to confirm that the dwelling could be appropriately located without causing significant constraint on nearby rural or agricultural activities.* *Where replacement dwellings are proposed, the setback of the dwelling should not be less than the setback of the lawfully erected dwelling which is intended to be replaced, and the dwelling should not create any additional adverse impacts on any neighbouring land use activity.*
Topography (Earthworks) 1.3 Rural dwellings and rural workers dwellings are sited and designed to accommodate the natural slope and orientation of the site and immediately adjacent land. 1.4 Earthworks associated with development does not negatively impact on the surrounding streetscape, adjoining properties or public assets. 1.5 Development siting and layout utilises natural grades of the land and minimises cut and fill.	a. Earthworks shall not alter the existing ground level/natural topography unless there are existing vegetation and trees to be preserved. b. Where existing trees are preserved, no earthworks are permitted closer to the trunk or main stem than the drip-line (canopy extent) of the tree. c. Earthworks must not exceed a cut or fill of greater than 2.0 metres depth/height from the existing ground level/natural topography of the site. d. Cut and fill batters shall not exceed a slope of 1:3 (volume:height). e. Cut and fill batters and retaining walls outside the building footprint must be landscaped to mitigate visual impacts. f. Earthworks must comply with KSC AUS-SPECS requirements. g. Buildings, structures and operational areas are not constructed on land with a gradient exceeding 15%. h. Cut or fill does not exceed +/-1 metre from natural ground level, within two (2.0) metres of any boundary. i. Cut or fill of +/- 2.0 metres must not be exceeded within the development envelope for buildings and/or basements. j. Excavation shall not expose or activate classes 1-4 Acid Sulfate Soils (refer also **Part B**).
2. Development Design	
Building form 2.1 Building siting, height, scale and roof form must not negatively impact the surrounding development, streetscape, topography and character.	a. Rural dwellings and rural workers dwellings are designed so that the elevation facing the road resembles a traditional or modern dwelling structure. This is generally achieved with architectural features such as verandas, porticos, entry door features, windows to habitable rooms, pitched roofs, appropriate building materials (masonry/rendered blue-board/weatherboard walls and tile/corrugated metal roofing) or combinations of these elements.

Desired Outcome	Development Control Requirements
	b. Rural workers dwellings are designed so that the design is complementary to the main dwelling on the site. c. Rural dwellings and rural workers dwellings are located close to other outbuildings to form a "homestead group" of buildings, where applicable and practical. d. Materials are selectively used so that a glare nuisance is not caused to surrounding neighbours or public roads.
2.2 Rural dwellings and rural workers dwellings are integrated with the surrounding landscape when viewed from a public road.	a. The height of a rural dwelling or rural workers dwelling or the alterations and additions to an existing dwelling house must not be more than 10m above ground level (existing). b. The highest point of the rural dwelling or rural workers dwelling or the alterations and additions to an existing dwelling must be at least 5m below the highest ridgeline of any hill within 100m of the dwelling or alteration when viewed from adjacent public road.
Passive Design 2.3 Rural dwellings and rural workers dwellings are designed and constructed to maximise their liveability, amenity and sustainability through their orientation, sustainable building fabrics, thermal performance, energy generation/consumption, water collection, use and reuse.	a. Rural dwellings and rural workers dwellings are designed and sited so that the living areas and major part of their private open space have a northern orientation and receive the maximum amount of sunlight in winter and provide the opportunity for planting trees for summer shading and amenity value. b. Development should be designed for energy efficiency by: i. minimising the overall surface area through which undesirable heat gains and losses can occur and providing for insulation of the rural dwellings and rural workers dwellings; ii. avoiding large expanses of glazing on south and west facing walls; iii. maximising natural ventilation for summer cooling in summer by building orientation and width, and windows to funnel air flow and breezes; iv. providing for insulation of dwellings; c. Rural dwellings and rural workers dwellings should utilise sun protection devices, (i.e. deep eaves, screens, verandahs, pergolas, etc.) along western-facing walls to produce a comfortable microclimate in and around dwellings.
Storage and Utility Function 2.4 Building design incorporates appropriate functional and storage spaces and areas for waste storage, transfer and disposal purposes.	a. Building utilities components, such as solar panels and solar collectors are suitably incorporated into the roof design and hot water tanks are enclosed within the building fabric. b. Development is provided with suitable waste bin storage behind the building frontage .

Desired Outcome	Development Control Requirements
	c. Waste storage and collection is to be managed wholly within the site. Waste bins and bulk waste storage areas are not to be located within the road reserve for collection purposes. d. Development is provided with a rural address number in accordance with Kempsey Shire Council's requirements.
Appropriateness of Use – Rural Workers Dwellings 2.5 The rural workers dwelling meets the requirements of KLEP and is an appropriate use of the land.	a. The application must demonstrate the achievement of this Desired Outcome.
3. Landscape and Public Realm	
3.1 Rural Dwellings and Rural Workers Dwellings do not adversely impact views, significant vistas, the landscape character or surrounding properties.	a. Rural Dwellings and Rural Workers Dwellings are not located in visually prominent locations such as on ridgelines, hilltops or in prominent locations when viewed from public vantage points. a. Rural Dwellings and Rural Workers Dwellings are positioned on the land to limit the amount of clearing of any remnant native trees or other native understorey vegetation, especially along the perimeter of the site.
4. Access and Vehicle Parking	
4.1 Safe vehicle access and parking are provided to all rural dwellings and rural workers dwellings.	a. Development is serviced by a practical and legal access that connects to the public road network. b. Development gains access to the local road network and not directly onto a classified road. c. Development gains access to the public road network via the same entrance as the primary dwelling house on site. d. Driveway locations, dimensions and finished levels comply with Austroads Guide to Road Design. e. All vehicle access and parking is designed and constructed to comply with the relevant Australian Standards. f. Car parking is provided at the rates identified within **Part E – Appendix 4.**
5. Amenity and Environment	
5.1 Development preserves native vegetation and is designed to retain and/or protect the natural topography, geographical features, water courses and riparian zones by being sited away from such elements on the site.	a. Where possible, development retains existing trees, vegetation and other environmental features such as natural watercourses etc. on site.
6. Stormwater Management	
Stormwater Management 6.1 Stormwater from development is managed	

Desired Outcome	Development Control Requirements
onsite to an acceptable, practical level, or otherwise properly drained to a legal point of discharge or appropriate receiving waters, without causing adverse impacts on public drainage infrastructure, downslope properties or the quality of receiving waters.	a. All stormwater overflow generated by development must be managed on-site for an AEP of 5%, or otherwise drained to a legal point of discharge or appropriate receiving waters. b. Stormwater drainage systems are designed using the relevant Australian Rainfall and Runoff standards, where the minor system shall be capable of carrying the controlling flows from frequent runoff events, while the major system shall provide safe, well-defined overland flow paths for rare and extreme storm runoff events. c. Stormwater volumes and characteristics are estimated in accordance with relevant Australian Rainfall and Runoff standards by a suitably qualified engineer. d. Stormwater management maximises the use of natural infiltration solutions to minimise the costs of maintaining man-made systems. e. Development that incorporates a water tank(s) and/or detention ponds must comply with the following: i. The water tank system, including roof area, tank inlet pipe size, tank storage capacity and tank outlet pipe size, must be suitably sized to accommodate stormwater in a 5% AEP, with all overflow being directed to a legal point of discharge, suitably sized rubble drain or properly constructed drainage channel, at least 3 metres clear of buildings. ii. Stormwater from driveways and hardstand areas is directed away from the water tank(s) and is properly managed to a legal point of discharge in accordance with this Part. iii. Tanks and fittings comply with Planning for Bushfire Protection, as applicable. f. Development takes into account the stormwater management requirements of the whole site / stormwater drainage system, including stormwater from upslope areas in the catchment that is based on a fully developed scenario, and is based on the preexisting condition to provide and be the same volume of runoff at the lot outlet or less where possible.
7. Utilities	
7.1 Infrastructure is adequate to service the needs of the development and, where required, are upgraded or provide new infrastructure to meet the increase in demand generated by the development.	a. All utilities and services are to be designed in accordance with relevant statutory requirements, including KSC Infrastructure Delivery Guide and KSC AUS-SPECs.
7.2 Suitable water services are provided for the development.	a. Development is connected to a reticulated water supply main via a minimum service to KSC requirements and KSC Water Meter where available. b. Suitable easements are provided for public water

Desired Outcome	Development Control Requirements
	infrastructure within properties. c. The developer meets the full cost of water reticulations, plus the cost of connecting to the existing services where these are available. d. Where reticulated water supply is not available, water tanks may be provided to service development, and these must comply with relevant standards. e. Provision of bushfire mitigation complies with the requirements of **Part B – B1 - Natural Hazards**.
7.3 Suitable electricity services are provided for the development.	a. Electricity services are provided to the development in accordance with requirements of the relevant authority and at the full cost of the developer. b. Electricity services are provided underground where possible.
7.4 Suitable sewerage services are provided for the development.	a. Development is connected to a reticulated sewer main where available. If unsewered, an on-site effluent management system is installed that complies with the following: i. Relevant Australian Standards for On-site Domestic Wastewater Management. ii. NSW Environment and Health Protection Guidelines. b. Suitable easements are provided for public sewerage infrastructure within properties. c. Where the development is in near proximity to an existing sewered area or where in the opinion of the State government or Council, the land is unsuitable for onsite disposal of effluent, connection to the existing sewerage system will be required. d. An On-site Sewage Management Assessment Report to support sewage treatment proposals is to accompany an application for this type of development. e. Development is designed so that an area remote from any watercourse and downhill of potential home sites is available for effluent disposal. f. The developer meets the full cost of sewer reticulations, plus the cost of connecting to the existing services.

D3.2 Rural Buildings and Structures

Application

This section applies to all rural buildings and structures (such as farm buildings and agricultural structures) on land zoned RU1 Primary Production, RU2 Rural Landscape, RU3 Forestry, RU4 Primary Production Small Lots, C3 Environmental Management and C4 Environmental Living under KLEP, which require consent.

Objectives

1. Rural buildings and structures are designed to make a positive contribution to rural production.
2. Rural buildings and structures do not negatively impact rural amenity, landscape character or public roads and utilities.
3. Rural buildings and structures are ancillary to an agricultural use of the landholding on which it is situated.
4. Rural buildings and structures do not impact on the ecological or hydrological values or features of the site on which it is located.
5. Rural buildings and structures are accessible, functional, efficient and resilient.

The following desired outcomes and development control requirements in **Table D3.3** prescribe how the above objectives can be met.

Table D3.3 – Rural Buildings and Structures – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1. Site Design	
Site Coverage 1.1 The proportion of a lot that is occupied by rural buildings or structures ensures that it is subordinate to the primary purpose of the land being used for primary production, rural industry and agricultural purposes.	a. The total floor area of all new rural buildings or structures on a lot that has an area of less than 4,000m^2 must not be more than the following— i. 500m^2, if the only purpose of the rural buildings or structures are for an agricultural use; ii. 100m^2, in any other case. b. The combined site coverage of rural buildings or structures with any rural dwelling and/or rural workers dwelling on a lot that has an area of less than 4,000m^2 must not be more than 30 per cent.
Setbacks 1.2 Rural buildings and structures are located to ensure there is adequate separation between agricultural activities, environmentally sensitive areas, neighbouring properties, public roads and infrastructure.	**Setbacks from Watercourses** a. Development is setback a minimum distance of forty (40) metres from the top of the bank of any permanent/perennial water course, creek or drainage channel. **Setbacks from Roads** b. Development must have a setback from the boundary with a primary road of at least eighteen (18) metres. c. Development must have a setback from the boundary with a secondary road of at least ten (10) metres. d. If a lot fronts a classified road, development must have a setback from the boundary with the classified road of whichever is the greater of – i. if another environmental planning instrument applying to that lot specifies

Desired Outcome	Development Control Requirements
	a setback for those circumstances, the setback specified by the other instrument; or ii. the setback specified by b and c above. **Setbacks from side and rear boundaries** e. Development must have a setback from a side or rear boundary of at least— i. if the only purpose of the rural building or structure is for agricultural use— ten (10) metres; or ii. in any other case— five (5) metres.
Topography (Earthworks) 1.3 Buildings and structures are sited and designed to accommodate the natural slope and orientation of the site and immediately adjacent land. 1.4 Earthworks associated with development does not negatively impact on the surrounding streetscape, adjoining properties or public assets. 1.5 Development siting and layout utilises natural grades of the land and minimises cut and fill.	a. Earthworks shall not alter the existing ground level/natural topography unless there are existing vegetation and trees to be preserved. b. Where existing trees are preserved, no earthworks are permitted closer to the trunk or main stem than the drip-line (canopy extent) of the tree. c. Earthworks must not exceed a cut or fill of greater than 2.0 metres depth/height from the existing ground level/natural topography of the site. d. Cut and fill batters shall not exceed a slope of 1:3 (volume:height). e. Cut and fill batters and retaining walls outside the building footprint must be landscaped to mitigate visual impacts. f. Earthworks must comply with KSC Infrastructure Delivery Guide and KSC AUS-SPECS requirements. g. Buildings, structures and operational areas are not constructed on land with a gradient exceeding 15%. h. Cut or fill does not exceed +/-1 metre from natural ground level, within two (2.0) metres of any boundary. i. Cut or fill of +/- 2.0 metres must not be exceeded within the development envelope for buildings and/or basements. j. Excavation shall not expose or activate classes 1-4 Acid Sulfate Soils (refer also **Part B – B1 – Natural Hazards**).
2. Development Design	
Building Form 2.1 Building siting, height, scale and roof form must not negatively impact the surrounding development, streetscape, topography and character. 2.2 Rural buildings and structures are designed and located so as not to be the predominant built	a. Rural buildings and structures are designed so that the design is complementary to a rural dwelling or rural workers dwelling on site. b. Materials are selectively used so that a glare nuisance is not caused to surrounding neighbours or public roads.

Desired Outcome	Development Control Requirements
form element viewed from the public road or vantage point.	c. The height of a rural building or structure, or of the alterations and additions to an existing rural building or structure, must not be more than— i. 4.8m above ground level (existing) if the rural building or structure is not a farm building or shed; or ii. if the rural building or structure is a farm building or shed—7m above ground level (existing).
Storage and Utility Function 2.3 Building design incorporates appropriate functional and storage spaces and areas for waste storage, transfer and disposal purposes.	a. Building utilities components, such as solar panels and solar collectors are suitably incorporated into the roof design and hot water tanks are enclosed within the building fabric. b. Development is provided with suitable waste bin storage behind the building frontage . c. Waste storage and collection is to be managed wholly within the site. Waste bins and bulk waste storage areas are not to be located within the road reserve for collection purposes.
Appropriateness of Use 2.4 Rural buildings and structures are non-habitable structures and are an appropriate use of the land which supports the primary function of the property for agricultural uses.	a. Rural buildings or structures are ancillary to an agricultural use of the landholding on which they are situated. b. Development will not impair the use of the land for agriculture or rural industries.
3. Landscape and Public Realm	
3.1 Rural buildings and structure do not adversely impact views, significant vistas, the landscape character or surrounding properties.	a. Rural buildings and structures are not located in visually prominent locations such as on ridgelines, hilltops or in prominent locations when viewed from public vantage points. b. Rural buildings and structures are positioned on the land to limit the amount of clearing of any remnant native trees or other native understorey vegetation, especially along the perimeter of the site.
4. Access and Vehicles	
4.1 Safe vehicle access and manoeuvring areas are provided to all rural buildings and structures.	a. Development is serviced by a practical and legal access that connects to the public road network. b. Development gains access to the public road network via the same entrance as the primary dwelling house on site. c. Driveway locations, dimensions and finished levels comply with Austroads Guide to Road Design. d. All vehicle access and parking is designed and constructed to comply with the relevant Australian Standards.

Desired Outcome	Development Control Requirements
	e. Where required by the function of the rural building or structure, adequate vehicle manoeuvring space shall be provided for access, servicing, loading and unloading activities for the largest design vehicle. f. Vehicles are capable of entering and exiting the site in a forward direction. g. Car parking is provided at the rates identified within **Part E – Appendix 4.**
5. Amenity and Environment	
5.1 Development preserves vegetation and is designed to retain and/or protect the natural topography, geographical features, water courses and riparian zones by being sited away from such elements on the site.	a. Where possible, development retains existing trees, vegetation and other environmental features such as natural watercourses etc. on site.
6. Stormwater Management	
Stormwater Management 6.1 Stormwater from development is managed onsite to an acceptable, practical level, or otherwise properly drained to a legal point of discharge or appropriate receiving waters, without causing adverse impacts on public drainage infrastructure, downslope properties or the quality of receiving waters.	a. All stormwater overflow generated by development must be managed on-site for an AEP of 5%, or otherwise drained to a legal point of discharge or appropriate receiving waters. b. Stormwater drainage systems are designed using the relevant Australian Rainfall and Runoff standards, where the minor system shall be capable of carrying the controlling flows from frequent runoff events, while the major system shall provide safe, well-defined overland flow paths for rare and extreme storm runoff events. c. Stormwater volumes and characteristics are estimated in accordance with relevant Australian Rainfall and Runoff standards by a suitably qualified engineer. d. Stormwater management maximises the use of natural infiltration solutions to minimise the costs of maintaining man-made systems. e. Development that incorporates a water tank(s) and/or detention ponds, must comply with the following: i. The water tank system, including roof area, tank inlet pipe size, tank storage capacity and tank outlet pipe size, must be suitably sized to accommodate stormwater in a 5% AEP, with all overflow being directed to a legal point of discharge, suitably sized rubble drain or properly constructed drainage channel, at least 3 metres clear of buildings. ii. Stormwater from driveways and hardstand areas is directed away from the water tank(s) and is properly managed to a legal point of discharge in accordance with this Part.

Desired Outcome	Development Control Requirements
	iii. Tanks and fittings comply with Planning for Bushfire Protection, as applicable. f. Development takes into account the stormwater management requirements of the whole site / stormwater drainage system, including stormwater from upslope areas in the catchment that is based on a fully developed scenario, and is based on the preexisting condition to provide and be the same volume of runoff at the lot outlet or less where possible.
7. Utilities	
7.1 Infrastructure is adequate to service the needs of the development and, where required, are upgraded or provide new infrastructure to meet the increase in demand generated by the development.	a. All utilities and services are to be designed in accordance with relevant statutory requirements, including KSC Infrastructure Delivery Guide and KSC AUS-SPECs.
7.2 Suitable water services are provided for the development	a. Development is connected to a reticulated water supply main via a minimum service to KSC requirements and KSC Water Meter, where available. b. Water tanks may be provided to service development and must comply with relevant standards. c. Suitable easements are provided for public water infrastructure within properties. d. The developer meets the full cost of water reticulations, plus the cost of connecting to the existing services where these are available. e. Provision of bushfire mitigation complies with the requirements of **Part B – B1 - Natural Hazards** – Bushfire.
7.3 Suitable electricity services are provided for the development.	a. Electricity services are provided to the development in accordance with requirements of the relevant authority and at the full cost of the developer. b. Electricity services are provided underground where possible.
7.4 Suitable sewerage services are provided for the development.	a. Development is connected to a reticulated sewer main where available. If unsewered, an on-site effluent management system is installed that complies with the following: i. Relevant Australian Standards for On-site Domestic Wastewater Management. ii. NSW Environment and Health Protection Guidelines. b. Suitable easements are provided for public sewerage infrastructure within properties. c. Where the development is in near proximity to an existing sewered area or where in the opinion of the State government or Council, the land is

Desired Outcome	Development Control Requirements
	unsuitable for onsite disposal of effluent, connection to the existing sewerage system will be required. d. An On-site Sewage Management Assessment Report to support sewage treatment proposals is to accompany an application for this type of development. e. Development is designed so that an area remote from any watercourse and downhill of potential home sites is available for effluent disposal. f. The developer meets the full cost of sewer reticulations, plus the cost of connecting to the existing services.

D3.3 Rural Tourism

Application

This section applies to rural tourism, being tourism in rural and natural areas for agritourism (being farm gate and farm experience premises), farm stay accommodation, bed and breakfast accommodation and eco-tourist facilities, where permitted by KLEP. Particular zones permit different types of rural tourism uses, however this section covers tourism and related development within lands zoned RU1 Primary Production, RU2 Rural Landscape, RU3 Forestry, RU4 Primary Production Small Lots, C3 Environmental Management and C4 Environmental Living, where not otherwise regulated by other environmental planning instruments or policies.

Objectives

The following desired outcomes and development control requirements in **Table D3.4** prescribe how the above objectives can be met.

1. Rural tourism development is well designed and serviced to provide a range of visitor experiences, tourist accommodation, facilities and opportunities in the rural and natural parts of Kempsey Shire.
2. To facilitate small scale tourism development opportunities to grow and diversify Kempsey's visitor economy.
3. To provide development guidelines and controls for various forms of sustainable rural and nature-based tourism development.
4. Rural tourism provides a diversity of accommodation types and activity offerings, which are compatible with the rural and natural setting in which they are located.
5. Development increases local economic activity and expands/increases the local visitor service network for the rural and natural parts of Kempsey Shire.
6. To preserve and protect the natural physical and biodiversity features, characteristics and qualities of Kempsey Shire's rural, natural, riverine and coastal landscape and environment.
7. Provides tourist development opportunities where these activities do not conflict with or constrain the primary purpose(s) of land zoning.

Table D3.4 – Rural Tourism – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1. Site Design	
Site Coverage 1.1 The proportion of a lot that is occupied by rural tourism is subordinate to the primary purpose of the land being used for primary production, rural industry and agricultural purposes. 1.2 Development occurring within the C3 or C4 zones will not compromise the environmental, biodiversity, scenic landscape or natural character values of the land.	a. The total floor area of all buildings associated with rural tourism uses is: i. Maximum 200m^2 gross floor area for each building to maximum 500m^2 for all uses other than where for farm stay accommodation, bed and breakfast accommodation and eco-tourist facility; ii. Maximum 60m^2 gross floor area for a new building or use up to 60m^2 of an existing building for farm stay premises or bed and breakfast accommodation and eco-tourist facility, where a maximum of 6 buildings are developed on site and use up to 25m^2 of an existing building to provide communal amenities or facilities.
Setbacks 1.3 Rural tourism development is located to ensure there is adequate separation between agricultural activities, environmentally sensitive	**Setbacks from Watercourses** a. Development is setback a minimum distance of forty (40) metres from the top of the bank of any

Desired Outcome	Development Control Requirements
areas, neighbouring properties, public roads and infrastructure.	permanent/perennial water course, creek or drainage channel. **Setbacks from Roads** b. Development must have a setback from the boundary with a primary road of at least eighteen (18) metres. c. Development must have a setback from the boundary with a secondary road of at least ten (10) metres. d. If a lot fronts a classified road, development must have a setback from the boundary with the classified road of whichever is the greater of – i. if another environmental planning instrument applying to that lot specifies a setback for those circumstances, the setback specified by the other instrument; or ii. the setback specified by b and c above. **Setbacks from side and rear boundaries** e. Development must have a setback from a side or rear boundary of at least ten (10) metres.
Topography (Earthworks) 1.4 Buildings and structures are sited and designed to accommodate the natural slope and orientation of the site and immediately adjacent land. 1.5 Earthworks associated with development does not negatively impact on the surrounding streetscape, adjoining properties or public assets. 1.6 Development siting and layout utilises natural grades of the land and minimises cut and fill.	a. Earthworks shall not alter the existing ground level/natural topography where there are existing vegetation and trees to be preserved. b. Where existing trees are preserved, no earthworks are permitted closer to the trunk or main stem than the drip-line (canopy extent) of the tree. c. Earthworks must not exceed a cut or fill of greater than 2.0 metres depth/height from the existing ground level/natural topography of the site. d. Cut and fill batters shall not exceed a slope of 1:3 (volume:height). e. Cut and fill batters and retaining walls outside the building footprint must be landscaped to mitigate visual impacts. f. Earthworks must comply with KSC Infrastructure Delivery Guide and KSC AUS-SPECS requirements. g. Buildings, structures and operational areas are not constructed on land with a gradient exceeding 15%. h. Cut or fill does not exceed +/-1 metre from natural ground level, within two (2.0) metres of any boundary. i. Cut or fill of +/- 2.0 metres must not be exceeded within the development envelope for buildings and/or basements. j. Excavation shall not expose or activate classes 1-4 Acid Sulfate Soils (refer also **Part B – B1 – Natural Hazards**).

Desired Outcome	Development Control Requirements
2. Development Design	
Building Form 2.1 Rural tourism structures appear as visually sympathetic architectural structures in the rural landscape when viewed from a public road.	a. Development is designed to be complementary to a rural and/or natural landscape; through form, scale, material use and colour. b. The peak height of any building or structures associated with rural industries must not protrude above the ridgeline of the highest hill within 100 metres of the subject development. c. A maximum of one (1) identification sign is provided on the wall of the dwelling, front fence, or other similar structure. It only includes those details necessary to identify the establishment, its proprietor and contact numbers. Such sign may be illuminated, provided that it does not cause a lighting nuisance to motorists or nearby properties. **For bed and breakfast accommodation, eco-tourist facility and farm stay accommodation:** d. At least one bathroom/ toilet facility per 3 bedrooms is provided for use by paying guests that is in addition to those facilities used or dedicated to the permanent residents of the site. e. All areas of the accommodation facility available to guests complies with Disability (Access to Premises – Buildings) Standards, as applicable. f. Smoke detectors are installed in accordance with the Building Code of Australia and the relevant Australian Standards for Smoke Alarms. g. Deadlocks which require internal key release are not to be provided on doors to guest rooms or external rooms. h. Cooking facilities for the preparation of meals are not provided in guest rooms of bed and breakfast accommodation or farm stay accommodation.
Storage and Utility Function 2.2 Building design incorporates appropriate functional and storage spaces and areas for waste storage, transfer and disposal purposes.	a. Building utilities components, such as solar panels and solar collectors are suitably incorporated into the roof design and hot water tanks are enclosed within the building fabric. b. Development is provided with suitable waste bin storage behind the building frontage . c. Waste storage and collection is to be managed wholly within the site. Waste bins and bulk waste storage areas are not to be located within the road reserve for collection purposes.

Desired Outcome	Development Control Requirements
	d. Development is provided with a rural address number in accordance with Kempsey Shire Council's requirements.
2.3 Development includes systems for waste management that ensures waste is collected, transported and/or disposed of in a lawful manner. 2.4 Development provides space, storage, amenity and management of waste management facilities. 2.5 Development includes waste management systems are compatible with collection services.	a. A development application must be accompanied by a Statement of Environmental Effects (SEE), which includes a Site Waste Management Plan (SWMP) as the information detailing compliance with waste management requirements. The SWMP is to outline measures to minimise and manage waste generated by and through ongoing use of the site/ premises/ development including: i. volume and type of waste and recyclables to be generated; ii. storage and treatment of waste and recyclables on site; iii. disposal of residual waste and recyclables; and iv. operational procedures for ongoing waste management for the completed development. b. The SWMP identifies the method of recycling or disposal and the waste management service provider. c. Waste management facilities proposed as part of the development shall be clearly illustrated on the plans of the proposed development, accompanying the development application (DA).
Appropriateness of Use 2.6 Rural tourism is an appropriate use of the land which supports the primary function of the rural area for agricultural uses.	a. Rural tourism is ancillary to the agricultural use of the landholding on which it is situated. b. Development will not impair the use of the land for agriculture or rural industries. c. Development will not impair the use of neighbouring land, including land within the C3 and C4 zones. d. One roadside stall is permitted per rural tourism use as follows: i. Located on the property ii. Cannot be located on land adjacent to a freeway, tollway or highway iii. Maximum 9m^2 footprint iv. Parking on the property (or on the road verge subject to requirements)
Hours of Operation and Maximum Numbers 2.7 Development protects the reasonable amenity expectations of surrounding areas, through appropriate hours of operation and number of persons on site at any one time.	a. The following maximum number of people apply, unless otherwise approved by Council: i. Farm gate premises 1) 100 visitors at any one time; ii. Farm experience premises

Desired Outcome	Development Control Requirements
	1) 50 visitors at any one time (excluding school visits, farm tours and horse riding tours). 2) Total 100 guests at any one time (excluding tours and school visits). 3) Maximum 52 days per year (excluding school visits, farm tours and horse riding tours). iii. Farm stay accommodation, bed and breakfast accommodation or eco-tourist facility 1) Maximum 20 guests in tents, caravans and campervans. 2) Maximum 6 caravans and campervans. 3) Maximum 21 consecutive days of stay. 4) Minimum landholding of 15ha for camping/caravans. 5) Use up to 60m2 gross floor area of an existing residential accommodation or manufactured home
3. Landscape and Public Realm	
3.1 Rural tourism buildings and structures do not adversely impact views, significant vistas, the landscape character or surrounding properties.	a. Rural tourism buildings and structures are not located in visually prominent locations such as on ridgelines, hilltops or in prominent locations when viewed from public vantage points. b. Rural tourism buildings and structures are positioned on the land to limit the amount of clearing of any remnant native trees or other native understorey vegetation, especially along the perimeter of the site.
4. Access and Vehicles	
4.1 Safe vehicle access and manoeuvring areas are provided to service the rural tourism development.	a. Development is serviced by a practical and legal access that connects to the public road network. b. Development gains access to the public road network via the same entrance as the primary rural dwelling house on site, where applicable. c. Driveway locations, dimensions and finished levels comply with Austroads Guide to Road Design. d. All vehicle access and parking is designed and constructed to comply with the relevant Australian Standards. e. Where required by the function of the use, adequate vehicle manoeuvring space shall be provided for access, servicing, loading and unloading activities for the largest design vehicle.

Desired Outcome	Development Control Requirements
	f. Vehicles are capable of entering and exiting the site in a forward direction. g. Car parking is provided at the rates identified within **Part E – Appendix 4**.
5. Amenity and Environment	
Vegetation 5.1 Development preserves vegetation and is designed to retain and/or protect the natural topography, geographical features, water courses and riparian zones by being sited away from such elements on the site.	a. Where possible, development retains existing trees, vegetation and other environmental features such as natural watercourses etc. on site.
Noise 5.2 Development achieves a satisfactory level of amenity including noise control and acoustic privacy.	a. All noise generating equipment such as mechanical plant or equipment, air conditioning units, fixed vacuum systems, mechanical ventilation from car parks, driveway entry shutters, garbage collection areas or similar, as well as delivery areas, must be designed to protect the acoustic privacy of neighbouring uses. b. All such noise generating equipment must be acoustically treated/mitigated. c. Exterior facades are designed to minimise the opportunity for sound transmission. Depending on surrounding land uses and the nature of the proposal, an acoustic report may be requested demonstrating how sound transmission is minimised. d. Operation of/within the rural tourism buildings and structures complies with the NSW Industrial Noise Policy. e. Suppresses external noise sources likely to be generated in a rural setting. f. All stationary noise generating machinery is located within insulated and enclosed buildings. g. Deliveries and heavy vehicle transport are undertaken during reasonable hours and generally only between the hours of 7am to 6pm weekdays and 7am to 1pm Saturdays, unless otherwise approved by Council.
Light Pollution 5.3 Development protects adjoining sites from light intrusion.	a. Development complies with *AS 4282-2019 Control of the obtrusive effects of outdoor lighting*.
6. Stormwater Management	
Stormwater Management 6.1 Stormwater from development is managed onsite to an acceptable, practical level, or otherwise properly drained to a legal point of	a. All stormwater overflow generated by development must be managed on-site for an

Desired Outcome	Development Control Requirements
discharge or appropriate receiving waters, without causing adverse impacts on public drainage infrastructure, downslope properties or the quality of receiving waters.	AEP of 5%, or otherwise drained to a legal point of discharge or appropriate receiving waters. b. Stormwater drainage systems are designed using the relevant Australian Rainfall and Runoff standards, where the minor system shall be capable of carrying the controlling flows from frequent runoff events, while the major system shall provide safe, well-defined overland flow paths for rare and extreme storm runoff events. c. Stormwater volumes and characteristics are estimated in accordance with relevant Australian Rainfall and Runoff standards by a suitably qualified engineer. d. Stormwater management maximises the use of natural infiltration solutions to minimise the costs of maintaining man-made systems. e. Development that incorporates a water tank(s) and/or detention ponds, must comply with the following: i. The water tank system, including roof area, tank inlet pipe size, tank storage capacity and tank outlet pipe size, must be suitably sized to accommodate stormwater in a 5% AEP, with all overflow being directed to a legal point of discharge, suitably sized rubble drain or properly constructed drainage channel, at least 3 metres clear of buildings. ii. Stormwater from driveways and hardstand areas is directed away from the water tank(s) and is properly managed to a legal point of discharge in accordance with this Part. iii. Tanks and fittings comply with Planning for Bushfire Protection, as applicable. f. Development takes into account the stormwater management requirements of the whole site / stormwater drainage system, including stormwater from upslope areas in the catchment that is based on a fully developed scenario, and is based on the preexisting condition to provide and be the same volume of runoff at the lot outlet or less where possible.
7. Utilities	
7.1 Infrastructure is adequate to service the needs of the development and, where required, are upgraded or provide new infrastructure to meet the increase in demand generated by the development.	a. All utilities and services are to be designed in accordance with relevant statutory requirements, including KSC Infrastructure Delivery Guide and KSC AUS-SPECs.
7.2 Suitable water services are provided for the development.	a. Development is connected to a reticulated water supply main via a minimum service to KSC requirements and KSC Water Meter, where available.

Desired Outcome	Development Control Requirements
	b. Water tanks may be provided to service the development and must comply with relevant standards. c. Suitable easements are provided for public water infrastructure within properties. d. The developer meets the full cost of water reticulations, plus the cost of connecting to the existing services where these are available. e. Provision of bushfire mitigation complies with the requirements of **Part B – B1 - Natural Hazards** – Bushfire.
7.3 Suitable electricity services are provided for the development.	a. Electricity services are provided to the development in accordance with the requirements of the relevant authority and at the full cost of the developer. b. Electricity services are provided underground where possible.
7.4 Suitable sewerage services are provided for the development.	a. Development is connected to a reticulated sewer main where available. If unsewered, an on-site effluent management system is installed that complies with the following: i. Relevant Australian Standards for On-site Domestic Wastewater Management. ii. NSW Environment and Health Protection Guidelines. b. Suitable easements are provided for public sewerage infrastructure within properties. c. Where the development is in near proximity to an existing sewered area or where in the opinion of the State government or Council, the land is unsuitable for onsite disposal of effluent, connection to the existing sewerage system will be required. d. An On-site Sewage Management Assessment Report to support sewage treatment proposals is to accompany an application for this type of development. e. Development is designed so that an area remote from any watercourse and downhill of potential home sites is available for effluent disposal. f. The developer meets the full cost of sewer reticulations, plus the cost of connecting to the existing services.

D3.4 Rural Industries

Application

This section applies to rural industries on land zoned RU1 Primary Production, RU2 Rural Landscape and RU3 Forestry Lots under KLEP.

Objectives

1. To ensure the location, design and operation of rural industries makes a positive contribution to the economic growth and employment opportunities of Kempsey Shire.
2. Rural industries support rural production,
3. Rural industry is not detrimental to the rural landscape character, amenity and ecological diversity of the surrounding area.
4. Ensure appropriate environmental assessment of rural industries development permitted with consent, in accordance with KLEP.
5. Create effective site planning, layout, functionality and amenity for operators and users.
6. Appropriately manage amenity impacts such as noise, air and dust pollution, odour, waste dispersal, light intrusion and pest and weed proliferation.
7. Development minimises the risks from and impacts of natural hazards.

The following desired outcomes and development control requirements in **Table D3.5** prescribe how the above objectives can be met.

Table D3.5 – Rural Industries – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1. Site Design	
Site Coverage 1.1 Rural industries occupies a proportion of the site (lot) that is complementary to the immediate pattern of surrounding rural land use . 1.2 Rural industry ensures that the site's development coverage meets all required setbacks, space for screening/buffer treatments, on-site stormwater management, access and parking and ancillary development.	a. The total floor area of all buildings associated with rural industry uses does not exceed; i. For sites <4,000m^2 - 30% of site area ii. For sites >4,000m^2 - 25% of site area, or 2000 m^2 GFA, whichever is the lesser iii. For sites >8,000m^2, 20% of site area or 2,500m^2 GFA, whichever is the lesser.
Setbacks and Site Selection 1.3 Rural industries are designed and located to be complementary to the rural purposes, character and amenity of the surrounding area.	**Setbacks from Sensitive Land Uses** a. The location of the rural industry activity will not encroach any sensitive land use[1] on a neighbouring property by the relevant distances shown in **Table D3.6.** **Setbacks from Watercourses** b. Buildings, structures and operational areas are set back a minimum of 100 metres from permanent watercourses or water bodies and 40 metres from an ephemeral watercourse. **Setbacks from Roads and Side and Rear Boundaries**

[1] Sensitive land use has the meaning prescribed in Appendix 1 – Glossary of Part E

<table>
<tr><th>Desired Outcome</th><th>Development Control Requirements</th></tr>
<tr><td></td><td>c. Notwithstanding the setbacks from sensitive land uses outlined in Table D3.6, rural industries shall otherwise be setback from all roads and side and rear boundaries at the minimum required for the specific building typology (refer Part D), or as otherwise required by Council, and shall take into consideration the nature of the proposed use, the frequency of use of the road that it fronts, whether that road is sealed and whether landscape is proposed.

Table D3.6 - Setback Distances (measured from the boundary of the subject lot) to Sensitive Land Uses
<table>
<tr><th>Setback</th><th>Rural Industry Land Use Activity</th></tr>
<tr><td>1000m</td><td>Abattoirs, agricultural produce industries, livestock processing industries, composting facilities and works (including the production of mushroom substrate)</td></tr>
<tr><td>500m</td><td>Feedmill, stock and saleyards, sawmills or log processing works and mining / extractive industries</td></tr>
<tr><td>150m</td><td>Cropping and horticulture</td></tr>
<tr><td>Site specific</td><td>Other rural industries not listed. (refer also Table D3.2 – Setback Distances).</td></tr>
</table></td></tr>
<tr><td>Topography (Earthworks)
1.4 Development is sited and designed to accommodate the natural slope and orientation of the site and immediately adjacent land.
1.5 Earthworks associated with development does not negatively impact on the surrounding streetscape, adjoining properties or public assets.
1.6 Development siting and layout utilises natural grades of the land and minimises cut and fill.</td><td>a. Earthworks shall not alter the existing ground level/natural topography unless there are existing vegetation and trees to be preserved.
b. Where existing trees are preserved, no earthworks are permitted closer to the trunk or main stem than the drip-line (canopy extent) of the tree.
c. Earthworks must not exceed a cut or fill of greater than 1.50 metres depth/height from the existing ground level/natural topography of the site.
d. Cut and fill batters shall not exceed a slope of 1:3 (volume:height).
e. Cut and fill batters and retaining walls outside the building footprint must be landscaped to mitigate visual impacts.
f. Earthworks must comply with KSC Infrastructure Delivery Guide and KSC AUS-SPECS requirements.
g. Buildings, structures and operational areas are not constructed on land with a gradient exceeding 15%.</td></tr>
</table>

Desired Outcome	Development Control Requirements
	h. Cut or fill does not exceed +/-1 metre from natural ground level, within two (2.0) metres of any boundary. i. Cut or fill of +/- 3.0 metres must not be exceeded within the development envelope for buildings and/or basements. j. Excavation shall not expose or activate classes 1-4 Acid Sulfate Soils (refer also **Part B – B1 – Natural Hazards**).
2. Development Design	
Building Form 2.1 Rural industry structures appear as visually sympathetic architectural structures in the rural landscape when viewed from a public road.	a. The peak height of any building or structures associated with rural industries must not protrude above the ridgeline of the highest hill within 100 metres of the subject development. b. Buildings limit the amount of clearing of any remnant native trees or other native understorey vegetation, especially along the perimeter of the site, so as to retain a visual buffer from the rural industry to adjoining sites. c. Rural industry structures shall minimise any potential adverse visual impact upon the rural landscape or scenic environmental quality of the surrounding locality and incorporate limited and selective use of reflective building materials.
2.2 Rural industry is designed and sited to incorporate principles of sustainability.	a. Rural industry incorporates environmentally sustainable design, including measures which reduce resource consumption, waste, and pollution, while promoting energy efficiency, water conservation, and the use of sustainable materials.
Storage and Utility Function 2.3 Building design incorporates appropriate functional and storage spaces and areas for waste storage, transfer and disposal purposes.	a. Development is provided with suitable waste bin storage behind the building frontage . b. Waste storage and collection is to be managed wholly within the site. Waste bins and bulk waste storage areas are not to be located within the road reserve for collection purposes. c. Where collection is undertaken by a private contractor or bulk waste collection vehicle, the site is to provide suitable access and manoeuvring areas to allow vehicles to enter and leave the site in a forward direction. d. Building utilities components, such as solar panels and solar collectors are suitably incorporated into the roof design and hot water tanks are enclosed within the building fabric. e. Development is provided with a rural address number in accordance with Kempsey Shire Council's requirements.

Desired Outcome	Development Control Requirements
2.4 Development includes systems for waste management that ensures waste is collected, transported and/or disposed of in a lawful manner. 2.5 Development provides space, storage, amenity and management of waste management facilities. 2.6 Development includes waste management systems are compatible with collection services.	a. A development application must be accompanied by a Statement of Environmental Effects (SEE), which includes a Site Waste Management Plan (SWMP) as the information detailing compliance with waste management requirements. The SWMP is to outline measures to minimise and manage waste generated by and through ongoing use of the site/ premises/ development including: i. volume and type of waste and recyclables to be generated; ii. storage and treatment of waste and recyclables on site; iii. disposal of residual waste and recyclables; and iv. operational procedures for ongoing waste management for the completed development. b. The SWMP identifies the method of recycling or disposal and the waste management service provider. c. Waste management facilities proposed as part of the development shall be clearly illustrated on the plans of the proposed development, accompanying the development application (DA).
Appropriateness of Use 2.7 Rural industry is an appropriate use of the land which supports the primary function of the rural area for agricultural uses.	a. Site selection for rural industries avoids land that contains biodiversity values, high environmental values or wetlands as identified under the relevant SEPP.
3. Landscape and Public Realm	
3.1 Rural industries do not adversely impact on scenic qualities, views, environmental quality, biodiversity, landscape character or surrounding properties.	a. Existing vegetation and landscaping is provided to screen or minimise the visual impact of the development from surrounding properties and significant public vantage points. b. Rural industry buildings and structures are not located in visually prominent locations such as on ridgelines, hilltops or in prominent locations when viewed from public vantage points. c. Rural industry buildings and structures are positioned to limit the amount of clearing of any remnant native trees or other native understorey vegetation, especially along the perimeter of the site. d. Where new rural industry development adjoins a sensitive land use the design is to incorporate methods to protect visual privacy and acoustic amenity on the adjoining use. This may be achieved by using landscaping, mounding, barrier (solid mass) and/or screening, suitable location of delivery areas, appropriate delivery hours and/or limiting after hours deliveries.

Desired Outcome	Development Control Requirements
4. Access and Vehicles	
4.1 Safe vehicle access and manoeuvring areas are provided to service the rural tourism development.	a. Development is serviced by a practical and legal access that connects to the public road network. b. Development gains access to the local road network and not directly onto a classified road. c. Driveway locations, dimensions and finished levels comply with Austroads Guide to Road Design. d. All vehicle access and parking is designed and constructed to comply with the relevant Australian Standards. e. Adequate vehicle manoeuvring space shall be provided for access, servicing, loading and unloading activities for the largest design vehicle. f. Vehicles are capable of entering and exiting the site in a forward direction. g. Roads, parking, loading and manoeuvring areas are not within 100 metres of a dwelling on an adjoining property. h. Car parking is provided at the rates identified within **Part E – Appendix 4**.
5. Amenity and Environment	
Vegetation 5.1 Development preserves vegetation and is designed to retain and/or protect the natural topography, geographical features, water courses and riparian zones by being sited away from such elements on the site.	a. Where possible, development retains existing trees, vegetation and other environmental features such as natural watercourses etc. on site. b. Rural industries: i. make a positive contribution towards the protection of sensitive ecological habitats; ii. preserves/restores the site's natural topography and the riparian edges of watercourses; and iii. provide for mitigation through additional establishment of vegetation plantings.
Noise 5.2 Development achieves a satisfactory level of amenity including noise control and acoustic privacy.	a. All noise generating equipment such as mechanical plant or equipment, air conditioning units, fixed vacuum systems, mechanical ventilation from car parks, driveway entry shutters, garbage collection areas or similar, as well as delivery areas, must be designed to protect the acoustic privacy of neighbouring uses. b. All noise generating equipment must be acoustically treated/mitigated. c. Exterior facades are designed to minimise the opportunity for sound transmission. Depending on surrounding land uses and the nature of the

Desired Outcome	Development Control Requirements
	proposal, an acoustic report may be requested demonstrating how sound transmission is minimised. d. Operation of rural industries complies with the NSW Industrial Noise Policy. e. Suppresses external noise sources likely to be generated in a rural setting. f. All stationary noise generating machinery is located within insulated and enclosed buildings.
Light Pollution 5.3 The rural industry does not include external lighting which has the potential to cause adverse visual impacts on adjoining properties, or public spaces.	a. Development complies with *AS 4282-2019 Control of the obtrusive effects of outdoor lighting*.
Environment Management Plan 5.4 Development details and mitigates negative impacts on the amenity and environment of the immediate area.	a. An Environmental Management Plan detailing compliance with the relevant industry best practice guidelines for; i. noise pollution; ii. air pollution; iii. odour; iv. light spill/pollution; v. hazardous goods storage; and vi. contamination management must be provided for any rural industry development.
Environment - Storage of Hazardous Substances 5.5 Development avoids the storage of hazardous substances.	a. The storage of hazardous goods, materials or wastes is not carried out in areas that adjoin sensitive land-uses, or areas that are generally accessible to the public.
6. Stormwater Management	
Stormwater Management 6.1 Stormwater from development is managed onsite to an acceptable, practical level (1 in 20 year event), or otherwise properly drained to a legal point of discharge or appropriate receiving waters, without causing adverse impacts on public drainage infrastructure, downslope properties or the quality of receiving waters.	a. Development shall be accompanied by a Stormwater Management Plan. The plan shall adopt the Major/Minor Concept as well as conservation of pre-existing flows to post development flow. b. All stormwater overflow generated by development must be managed on-site for an AEP of 5%, or otherwise drained to a legal point of discharge or appropriate receiving waters. c. Stormwater drainage systems are designed using the relevant Australian Rainfall and Runoff standards, where the minor system shall be capable of carrying the controlling flows from frequent runoff events, while the major system shall provide safe, well-defined

Desired Outcome	Development Control Requirements
	overland flow paths for rare and extreme storm runoff events. d. Stormwater volumes and characteristics are estimated in accordance with relevant Australian Rainfall and Runoff standards by a suitably qualified engineer. e. Stormwater management maximises the use of natural infiltration solutions to minimise the costs of maintaining man-made systems. f. Development that incorporates a water tank(s) and/or detention ponds, must comply with the following: g. The water tank system, including roof area, tank inlet pipe size, tank storage capacity and tank outlet pipe size, must be suitably sized to accommodate stormwater in a 5% AEP, with all overflow being directed to a legal point of discharge, suitably sized rubble drain or properly constructed drainage channel, at least 3 metres clear of buildings. h. Stormwater from driveways and hardstand areas is directed away from the water tank(s) and is properly managed to a legal point of discharge in accordance with this Part. i. Tanks and fittings comply with Planning for Bushfire Protection, as applicable. j. Development takes into account the stormwater management requirements of the whole site / stormwater drainage system, including stormwater from upslope areas in the catchment that is based on a fully developed scenario, and is based on the preexisting condition to provide and be the same volume of runoff at the lot outlet or less where possible.
Water quality (sites > 2500m^2) 6.2 Point sources of pollution in the catchment are identified and their impacts minimised. 6.3 The stormwater management system optimises the interception, retention and removal of water borne pollutants before their discharge to receiving waters. 6.4 Water quality improvement devices are provided for the treatment of stormwater run-off before discharge from the site and are located to minimise negative impacts on both the natural and built (including traffic management) environments.	a. The development shall incorporate water quality treatment mechanisms designed in accordance with "Urban Stormwater Best Practice Management Guidelines" or equivalent to ensure targets for the following are met: i. Total Suspended Solids (TSS) ii. Total Nitrogen (TN) iii. Total Phosphorous (TP) iv. Litter (>50mm) b. Development complies with sediment and erosion control requirements. The design of any bio-swales, or similar green/blue stormwater infrastructure has regard to the ongoing operations, responsibility, maintenance and management required into the future.
7. Utilities	

Desired Outcome	Development Control Requirements
7.1 Infrastructure is adequate to service the needs of the development and, where required, are upgraded or provide new infrastructure to meet the increase in demand generated by the development.	a. All utilities and services are to be designed in accordance with relevant statutory requirements, including KSC Infrastructure Delivery Guide and KSC AUS-SPECs.
7.2 Suitable water services are provided for the development.	a. Development is connected to a reticulated water supply main via a minimum service to KSC requirements and KSC Water Meter, where available. b. Water tanks may be provided to service the development and must comply with relevant standards. c. Suitable easements are provided for public water infrastructure within properties. d. The developer meets the full cost of water reticulations, plus the cost of connecting to the existing services where these are available. e. Provision of bushfire mitigation complies with the requirements of **Part B – B1 - Natural Hazards** – Bushfire.
7.3 Suitable electricity services are provided for the development.	a. Electricity services are provided to the development in accordance with the requirements of the relevant authority and at the full cost of the developer. b. Electricity services are provided underground where possible.
7.4 Suitable sewerage services are provided for the development.	a. Development is connected to a reticulated sewer main where available. If unsewered, an on-site effluent management system is installed that complies with the following: i. Relevant Australian Standards for On-site Domestic Wastewater Management. ii. NSW Environment and Health Protection Guidelines. b. Suitable easements are provided for public sewerage infrastructure within properties. c. Where the development is in near proximity to an existing sewered area or where in the opinion of the State government or Council, the land is unsuitable for onsite disposal of effluent, connection to the existing sewerage system will be required. d. An On-site Sewage Management Assessment Report to support sewage treatment proposals is to accompany an application for this type of development. e. Development is designed so that an area remote from any watercourse and downhill of potential home sites is available for effluent disposal.

Desired Outcome	Development Control Requirements
	f. The developer meets the full cost of sewer reticulations, plus the cost of connecting to the existing services.

D3.5 Agriculture

Application

This section applies to agriculture, being agritourism, aquaculture, extensive agriculture, intensive livestock agriculture, and intensive plant agriculture where permitted with consent in the RU1 Primary Production, RU2 Rural Landscape, RU3 Forestry and RU4 Primary Production Small Lots under KLEP.

Objectives

1. To ensure the location, design and operation of agriculture makes a positive contribution to the economic growth and employment opportunities of Kempsey Shire.
2. Agriculture protects, manages and sustainably utilises productive land.
3. Support the rural amenity, landscape character and ecological diversity of the surrounding area.
4. Agriculture responds to, reinforces and sensitively relates to the natural environment and avoids or minimises the impacts of natural hazards.
5. Ensure appropriate environmental assessment of agriculture that is permitted with consent in accordance with KLEP.
6. Create effective development site planning, layout, functionality and amenity for operators and users.
7. Appropriately manage environmental and amenity impacts such as noise, air and dust pollution, odour, waste dispersal, light intrusion and pest and weed proliferation.
8. To ensure that buildings and structures/installations associated with agriculture do not create adverse impacts on the rural landscape, or nearby dwellings.
9. Preserve and maintain the rural amenity and landscape character by incorporating sustainable development principles in the design and operation.

The following desired outcomes and development control requirements in **Table D3.7** prescribe how the above objectives can be met.

Table D3.7 – Agriculture – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1. Site Design	
Site Coverage 1.1 Agriculture occupying the site ensures that the development coverage meets all required setbacks, space for buffer treatments, ground activities, operations and stormwater management are achieved.	a. The application must demonstrate the achievement of this Desired Outcome.
Setbacks and Site Selection 1.2 Agriculture is designed and located to be complementary to the rural purposes, character and amenity of the surrounding area.	**Setbacks from Sensitive Land Uses** a. The location of the agricultural activity will not encroach on any sensitive land use[2] on a neighbouring property by the relevant distances shown in **Table D3.8.** **Setbacks from Watercourses** b. Buildings, structures and operational areas are set back a minimum of 100 metres from permanent watercourses or water bodies and 40 metres from an ephemeral watercourse. **Setbacks from Roads and Side and Rear Boundaries**

[2] Sensitive land use has the meaning prescribed in Appendix 1 – Glossary of Part E

<table>
<tr><th>Desired Outcome</th><th>Development Control Requirements</th></tr>
<tr><td></td><td>c. Notwithstanding the setbacks from sensitive land uses outlined in Table D3.8, agriculture shall otherwise be setback from all roads and side and rear boundaries at the minimum required for the specific building typology (refer Part D), or as otherwise required by Council, and shall take into consideration the nature of the proposed use, the frequency of use of the road that it fronts, whether that road is sealed and whether landscaping is proposed.

Table D3.8 - Setback Distances (measured from the boundary of the subject lot) to Sensitive Land Uses
<table><tr><th>Setback</th><th>Agriculture Activity</th></tr><tr><td>1000m</td><td>Piggeries, feedlots, feedpad dairies, poultry farms</td></tr><tr><td>500m</td><td>Non-feedpad dairies</td></tr><tr><td>Site specific</td><td>Other agriculture operations not listed (refer also Table D3.2 – Setback Distances).</td></tr></table></td></tr>
<tr><td>Topography (Earthworks)
1.3 Development is sited and designed to accommodate the natural slope and orientation of the site and immediately adjacent land.
1.4 Earthworks associated with development does not negatively impact on the surrounding streetscape, adjoining properties or public assets.
1.5 Development siting and layout utilises natural grades of the land and minimises cut and fill.</td><td>a. Earthworks shall not alter the existing ground level/natural topography unless there are existing vegetation and trees to be preserved.
b. Where existing trees are preserved, no earthworks are permitted closer to the trunk or main stem than the drip-line (canopy extent) of the tree.
c. Earthworks must not exceed a cut or fill of greater than 1.50 metres depth/height from the existing ground level/natural topography of the site.
d. Cut and fill batters shall not exceed a slope of 1:3 (volume:height).
e. Cut and fill batters and retaining walls outside the building footprint must be landscaped to mitigate visual impacts.
f. Earthworks must comply with KSC Infrastructure Delivery Guide and KSC AUS-SPECS requirements.
g. Buildings, structures and operational areas are not constructed on land with a gradient exceeding 15%.
h. Cut or fill does not exceed +/-1 metre from natural ground level, within two (2.0) metres of any boundary.
i. Cut or fill of +/- 1.5 metres must not be exceeded within the development envelope for buildings and/or basements.
j. Excavation shall not expose or activate classes 1-4 Acid Sulfate Soils (refer also Part B – B1 – Natural Hazards).</td></tr>
<tr><td colspan="2">2. Development Design</td></tr>
</table>

Desired Outcome	Development Control Requirements
Building Form 2.1 Agriculture structures appear as visually sympathetic architectural structures in the rural landscape when viewed from a public road.	a. The peak height of any building or structures associated with agriculture must not protrude above the ridgeline of the highest hill within 100 metres of the subject development. b. Buildings and land development limit the amount of clearing of any remnant native trees or other native understorey vegetation, especially along the perimeter of the site, so as to retain a visual buffer from the agriculture or rural industry to adjoining sites. c. Agriculture structures shall minimise any potential adverse visual impact upon the rural landscape or scenic environmental quality of the surrounding locality and incorporate limited and selective use of reflective building materials.
2.2 Agriculture is designed and sited to incorporate principles of sustainability.	a. Agriculture incorporates environmentally sustainable design, including measures which reduce resource consumption, waste and pollution, while promoting energy efficiency, water conservation, and the use of sustainable materials.
Storage and Utility Function 2.3 Building design incorporates appropriate functional and storage spaces and areas for waste storage, transfer and disposal purposes.	a. Building utilities components, such as solar panels and solar collectors are suitably incorporated into the roof design and hot water tanks are enclosed within the building fabric. b. Development is provided with suitable waste bin storage behind the building frontage . c. Waste storage and collection is to be managed wholly within the site. Waste bins and bulk waste storage areas are not to be located within the road reserve for collection purposes. d. Where collection is undertaken by a private contractor or bulk waste collection vehicle, the site is to provide suitable access and manoeuvring areas to allow vehicles to enter and leave the site in a forward direction. e. Development is provided with a rural address number in accordance with Kempsey Shire Council's requirements.
3. Landscape and Public Realm	
3.1 Agriculture does not adversely impact on scenic qualities, views, environmental quality, biodiversity, landscape character or surrounding properties.	a. Existing vegetation and landscaping is provided to screen or minimise the visual impact of the development from surrounding properties and significant public vantage points. b. Agriculture buildings and structures are not located in visually prominent locations such as on ridgelines, hilltops or in prominent locations when viewed from public vantage points.

Desired Outcome	Development Control Requirements
	c. Agriculture buildings and structures are positioned on the land to limit the amount of clearing of any remnant native trees or other native understorey vegetation, especially along the perimeter of the site. d. Where new agriculture development adjoins a sensitive land use the design is to incorporate methods to protect visual privacy and acoustic amenity on the adjoining use. This may be achieved by using landscaping, mounding, barrier (solid mass) and/or screening, suitable location of delivery areas, appropriate delivery hours and/or limiting after hours deliveries.
4. Access and Vehicles	
4.1 Safe vehicle access and manoeuvring areas are provided to service the development.	a. Development is serviced by a practical and legal access that connects to the public road network. b. Development gains access to the local road network and not directly onto a classified road. c. d. Adequate vehicle manoeuvring space shall be provided for access, servicing, loading and unloading activities for the largest design vehicle. e. Vehicles are capable of entering and exiting the site in a forward direction. f. Roads, parking, loading and manoeuvring areas are not within 100 metres of a dwelling on an adjoining property. g. Car parking is provided at the rates identified within **Part E – Appendix 4**.
5. Amenity and Environment	
Vegetation 5.1 Development preserves vegetation and is designed to retain and/or protect the natural topography, geographical features, water courses and riparian zones by being sited away from such elements on the site.	a. Where possible, development retains existing trees, vegetation and other environmental features such as natural watercourses etc. on site. b. Agriculture: i. makes a positive contribution towards the protection of sensitive ecological habitats; ii. preserves/restores the site's natural topography and the riparian edges of watercourses; and iii. provides for mitigation through additional establishment of vegetation plantings.
Noise 5.2 Development achieves a satisfactory level of amenity including noise control and acoustic privacy.	a. All noise generating equipment such as mechanical plant or equipment, air conditioning units, fixed vacuum systems, mechanical ventilation from car parks, driveway entry shutters, garbage collection areas or similar, as well as delivery areas, must be designed to protect the acoustic privacy of neighbouring uses. b. All noise generating equipment must be

Desired Outcome	Development Control Requirements
	acoustically treated/mitigated. c. Exterior facades are designed to minimise the opportunity for sound transmission. Depending on surrounding land uses and the nature of the proposal, an acoustic report may be requested demonstrating how sound transmission is minimised. d. Operation of agriculture complies with the NSW Industrial Noise Policy. e. Suppresses external noise sources likely to be generated in a rural setting. f. All stationary noise generating machinery is located within insulated and enclosed buildings.
Light Pollution 5.3 Agriculture does not include external lighting which has the potential to cause adverse visual impacts on adjoining properties, or public spaces.	a. Development complies with *AS 4282-2019 Control of the obtrusive effects of outdoor lighting*.
Environment - Storage of Hazardous Substances 5.4 Development avoids the storage of hazardous substances.	a. The storage of hazardous goods, materials or wastes is not carried out in areas that adjoin sensitive land-uses, or areas that are generally accessible to the public.
6. Stormwater Management	
Stormwater Management 6.1 Stormwater from development is managed onsite to an acceptable, practical level, or otherwise properly drained to a legal point of discharge or appropriate receiving waters, without causing adverse impacts on public drainage infrastructure, downslope properties or the quality of receiving waters.	a. Development shall be accompanied by a Stormwater Management Plan. The plan shall adopt the Major/Minor Concept as well as conservation of pre-existing flows to post development flow. b. All stormwater overflow generated by development must be managed on-site for an AEP of 5%, or otherwise drained to a legal point of discharge or appropriate receiving waters. c. Stormwater drainage systems are designed using the relevant Australian Rainfall and Runoff standards, where the minor system shall be capable of carrying the controlling flows from frequent runoff events, while the major system shall provide safe, well-defined overland flow paths for rare and extreme storm runoff events. d. Stormwater volumes and characteristics are estimated in accordance with relevant Australian Rainfall and Runoff standards by a suitably qualified engineer. e. Stormwater management maximises the use of natural infiltration solutions to minimise the costs of maintaining man-made systems. f. Development that incorporates a water tank(s) and/or detention ponds must comply with the following:

Desired Outcome	Development Control Requirements
	i. The water tank system, including roof area, tank inlet pipe size, tank storage capacity and tank outlet pipe size, must be suitably sized to accommodate stormwater in a 5% AEP, with all overflow being directed to a legal point of discharge, suitably sized rubble drain or properly constructed drainage channel, at least 3 metres clear of buildings. ii. Stormwater from driveways and hardstand areas is directed away from the water tank(s) and is properly managed to a legal point of discharge in accordance with this Part. iii. Tanks and fittings comply with Planning for Bushfire Protection, as applicable. g. Development takes into account the stormwater management requirements of the whole site / stormwater drainage system, including stormwater from upslope areas in the catchment that is based on a fully developed scenario, and is based on the preexisting condition to provide and be the same volume of runoff at the lot outlet or less where possible.
Water quality (sites > 2500m^2) 6.2 Point sources of pollution in the catchment are identified and their impacts minimised. 6.3 The stormwater management system optimises the interception, retention and removal of water borne pollutants before their discharge to receiving waters. 6.4 Water quality improvement devices are provided for the treatment of stormwater run-off before discharge from the site and are located to minimise negative impacts on both the natural and built (including traffic management) environments.	a. The development shall incorporate water quality treatment mechanisms designed in accordance with "Urban Stormwater Best Practice Management Guidelines" or equivalent to ensure targets for the following are met: i. Total Suspended Solids (TSS) ii. Total Nitrogen (TN) iii. Total Phosphorous (TP) iv. Litter (>50mm) b. Development complies with sediment and erosion control requirements. The design of any bio-swales, or similar green/blue stormwater infrastructure has regard to the ongoing operations, responsibility, maintenance and management required into the future.
7. Utilities	
7.1 Infrastructure is adequate to service the needs of the development and, where required, are upgraded or provide new infrastructure to meet the increase in demand generated by the development.	a. All utilities and services are to be designed in accordance with relevant statutory requirements, including KSC Infrastructure Delivery Guide and KSC AUS-SPECs.
7.2 Suitable water services are provided for the development.	a. Development is connected to a reticulated water supply main via a minimum service to KSC requirements and KSC Water Meter, where available. b. Water tanks may be provided to service the development and must comply with relevant standards. c. Suitable easements are provided for public water

Desired Outcome	Development Control Requirements
	infrastructure within properties. d. The developer meets the full cost of water reticulations, plus the cost of connecting to the existing services where these are available. e. Provision of bushfire mitigation complies with the requirements of **Part B – B1 - Natural Hazards**.
7.3 Suitable electricity services are provided for the development.	a. Electricity services are provided to the development in accordance with the requirements of the relevant authority and at the full cost of the developer. b. Electricity services are provided underground where possible.
7.4 Suitable sewerage services are provided for the development.	a. Development is connected to a reticulated sewer main where available. If unsewered, an on-site effluent management system is installed that complies with the following: iii. Relevant Australian Standards for On-site Domestic Wastewater Management. iv. NSW Environment and Health Protection Guidelines. b. Suitable easements are provided for public sewerage infrastructure within properties. c. Where the development is in near proximity to an existing sewered area or where in the opinion of the State government or Council, the land is unsuitable for onsite disposal of effluent, connection to the existing sewerage system will be required. d. An On-site Sewage Management Assessment Report to support sewage treatment proposals is to accompany an application for this type of development. e. Development is designed so that an area remote from any watercourse and downhill of potential home sites is available for effluent disposal. f. The developer meets the full cost of sewer reticulations, plus the cost of connecting to the existing services.

D4 BUSINESS AND COMMERCIAL DEVELOPMENT

D4 BUSINESS AND COMMERCIAL DEVELOPMENT

Application of Part D4

Part D4.1 applies to development of land for business and commercial purposes, which will generally be on land zoned E1 Local Centre, E2 Commercial Centre, E3 Productivity Support, MU1 Mixed Use and RU5 Rural Village, under KLEP.

Objectives

1. To ensure the location, design and operation of business and commercial uses makes a positive contribution and enables a range of social, economic and employment opportunities within Kempsey Shire.
2. Facility is designed to support the character, amenity and safety of the site and surrounding area for all users.
3. Business and commercial development provides effective site planning, layout, functionality, and amenity for operators and users.
4. Development preserves and maintains the unique commercial main streets within Kempsey Shire's various towns and villages, supporting Kempsey CBD as the principal centre servicing the Shire.
5. Public safety and security is achieved through efficient and sustainable site design.

The following desired outcomes and development control requirements in **Table D4.1** prescribe how the above objectives can be met.

Table D4.1 – Business and Commercial Development Controls – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1. Site Design	
Site Coverage 1.1 The proportion of a lot that is occupied by buildings or structures ensures adequate space for vehicular and pedestrian movements, car parking, open space, landscaping and proper drainage of the site.	a. Development complies with the Floor Space Ratios (FSR) stipulated within the FSR Maps under KLEP. b. Where no FSR Map applies to land, buildings are permitted to occupy the whole of the allotment if used for the purpose of carrying out a commercial or business activity in commercial or business land zones.
Setbacks 1.2 Development enables the full functions of the business or commercial activity operations on the site.	**For the E1 Local Centre Zone and E2 Commercial Centre Zone** a. Buildings are constructed with frontages that extend to the street alignment (i.e. zero front setback) and provide for awnings over the footpath, except that the building should have a front setback that matches any on-site or adjacent heritage building. b. Buildings are constructed with setbacks that: i. Comply with the requirements of the Building Code of Australia. ii. Allow for adequate servicing of the development, including loading and unloading operations, vehicle manoeuvrability and waste storage to the side and rear. iii. Front setback areas are not used for the storage of equipment / merchandise, waste material, excessive advertising

Desired Outcome	Development Control Requirements
	signage or loading and unloading operations. **For the MU1 Mixed Use Zone** c. Buildings are constructed with a front setback that: i. Reinforces the dominant pattern, character and function of the immediately adjoining properties. ii. Is the average of the two nearest existing buildings on the immediately adjoining allotments, except that the building should have a front setback that matches any on-site or adjacent heritage building. iii. Is appropriate for the level of pedestrian activity and proposed land-use/ development activity. d. Front setback areas are not used for the storage of equipment / merchandise, waste material, excessive advertising signage or loading and unloading operations, unless otherwise approved by Council (e.g. licensed for footpath dining etc.). e. Buildings are constructed with setbacks that: i. Comply with the requirements of the Building Code of Australia. ii. Provide adequate room for the servicing of the development, including loading and unloading operations and waste storage, which is to be located within side or rear setbacks only. iii. Provide adequate room for the servicing of the development, including managing vehicle manoeuvrability and pedestrian circulation safely throughout the site. iv. Provide a minimum separation of six (6) metres from an adjoining property that is being used for a residential purpose. **For the RU5 Village Zone** f. Buildings are constructed with a front setback that: i. Reinforces the dominant existing street pattern, character and function. ii. Is five (5) metres from the front property boundary, or is the average of the two nearest existing buildings on the immediately adjoining allotments, except that the building should have a front setback that matches any on-site or adjacent heritage building.

Desired Outcome	Development Control Requirements
	g. Front setback areas are not used for the storage of waste material, more than one (1) advertising sign or loading and unloading operations. h. Buildings are constructed with setbacks that: i. Comply with the requirements of the Building Code of Australia. ii. Provide a minimum separation of six (6) metres from an adjoining property that contains an existing dwelling. i. Provide adequate room to the side and rear, for the servicing of the development, including loading and unloading operations, vehicle manoeuvrability and waste storage.
Setbacks from Sensitive Land Uses 1.3 Development is located to ensure there is adequate separation between business and commercial activities, environmentally sensitive areas and sensitive land uses.	a. Development provides a minimum separation of ten (10) metres from an adjoining property that is a sensitive land use.
Topography (Earthworks) 1.4 Buildings and structures are sited and designed to accommodate the natural slope and orientation of the site and immediately adjacent land. 1.5 Earthworks associated with development does not negatively impact on the surrounding streetscape, adjoining properties or public assets.	a. Earthworks shall not alter the existing ground level/natural topography unless there are existing vegetation and trees to be preserved. b. Where existing trees are preserved, no earthworks are permitted closer to the trunk or main stem than the drip-line (canopy extent) of the tree. c. Earthworks must not exceed a cut or fill of greater than 1.50 metres depth/height from the existing ground level/natural topography of the site. d. Cut and fill batters shall not exceed a slope of 1:3 (volume:height). e. Cut and fill batters and retaining walls outside the building footprint must be landscaped to mitigate visual impacts. f. Earthworks must comply with KSC Infrastructure Delivery Guide and KSC AUS-SPECS requirements.
1.6 Development siting and layout utilises natural grades of the land and minimises cut and fill.	a. Buildings, structures and operational areas are not constructed on land with a gradient exceeding 15%. b. Cut or fill does not exceed +/-1 metre from natural ground level, within two (2.0) metres of any boundary. c. Cut or fill of +/- 3.0 metres must not be exceeded within the development envelope for buildings and/or basements.

Desired Outcome	Development Control Requirements
2. Development Design	
Building Form 2.1 Development contributes positively to the streetscape in terms of building height, bulk and scale, streetscape, topography and character. 2.2 Building resilience and sustainability is enhanced through durable and vandal resistant materials and cladding.	a. Where a Height of Building Map applies, building height complies with the relevant height limit under the KLEP. b. Where there are significant variations in height between existing buildings on neighbouring properties, the new building has a height that transitions between the height of neighbouring buildings and/or follows the average roof line/height of adjoining premises. c. The height of new buildings is appropriate to minimise adverse overshadowing impacts on adjoining sites, particularly where used for a sensitive land use. d. Street elevations feature customer service areas and advertising/identification of public entrances towards the primary street frontage. e. Where appropriate for the proposed business or commercial use, provision is made for outdoor dining to enhance the amenity of external spaces. f. Development: i. incorporates a sensitive mix of colours, materials, treatments and finishes that are sympathetic to the site's business or commercial context and surrounds; ii. avoids visually dominating features; iii. uses durable and energy efficient materials; and iv. minimises noise transmission. g. Business or commercial buildings on corner allotments are designed to address both street frontages. h. Building entrances are in prominent and easily recognisable locations with directional signage and lighting used where necessary / appropriate. i. Long blank walls facing streets are avoided by incorporating one or more of the following techniques into the building facades: i. Wall place projections or recesses; ii. Windows; iii. Variation of wall heights; and iv. Material changes.
Accessibility and Legibility 2.3 Buildings and pathways are easily accessible and legible, making it easy for users to navigate their way from public areas to the building entrance.	a. Premises provide high levels of building accessibility, from on-site car parks and to the public footpath/street network in accordance with the access provisions of the Building Code of Australia.

Desired Outcome	Development Control Requirements
	b. Pathways are direct and follow pedestrian desired lines and avoid blind corners / dark spaces. c. Development complies with *Crime Prevention and the Assessment of Development Applications Guidelines under section 79C of the Environmental Planning and Assessment Act 1979 (Department of Urban Affairs and Planning)*.
Storage and Utility Functions 2.4 Building design incorporates appropriate functional and storage spaces and areas for waste storage, transfer and disposal purposes.	a. Development is provided with suitable waste bin storage behind the building frontage. b. Waste storage and collection is to be managed wholly within the site. Waste bins and bulk waste storage areas are not to be located within the road reserve for collection purposes. c. Where shared or bulk waste containers are proposed, the site is to provide suitable access and manoeuvring areas to allow waste collection vehicles to enter and leave the site in a forward direction.
2.5 Development includes systems for waste management that ensures waste is collected, transported and/or disposed of in a lawful manner. 2.6 Development provides space, storage, amenity and management of waste management facilities. 2.7 Development includes waste management systems are compatible with collection services.	a. A development application must be accompanied by a Statement of Environmental Effects (SEE), which includes a Site Waste Management Plan (SWMP) as the information detailing compliance with waste management requirements. The SWMP is to outline measures to minimise and manage waste generated by and through ongoing use of the site/ premises/ development including: i. volume and type of waste and recyclables to be generated; ii. storage and treatment of waste and recyclables on site; iii. disposal of residual waste and recyclables; and iv. operational procedures for ongoing waste management for the completed development. b. The SWMP identifies the method of recycling or disposal and the waste management service provider. c. Waste management facilities proposed as part of the development shall be clearly illustrated on the plans of the proposed development, accompanying the development application (DA).
Function of External Spaces 2.8 External spaces and areas are designed to maximise the function of the space that enhances the user experience on site.	a. Development features customer service areas, merchandise displays and advertising towards the primary street frontages. b. Sufficient space is provided on-site (side and rear) for the loading and unloading of materials and other stored items.

Desired Outcome	Development Control Requirements
	c. Loading and unloading activities are not carried out on any public space or within the front building line. d. Premises are clearly displayed with a street number that is made of durable materials (preferable reflective or luminous) in a position that is unobstructed from users in the public realm. External storage areas and yards are well lit and secured by fencing and lockable gates on side and rear access ways. e. Emergency access points on site are well lit and easily identifiable by all users.
Amenity of External Spaces 2.9 External building spaces and storage areas are designed to contribute towards high amenity of the overall development.	a. External storage areas are screened and not exposed to view from primary roads. b. Roof mounted air-conditioning units and solar panels are not visible from primary roads and are adequately screened. c. Wall mounted air-conditioning units are not located higher than 1.8 metres above existing ground level and are to be set back a minimum of 450 millimetres from any boundary. d. Building utilities components, such as solar panels and solar collectors are suitably incorporated into the roof design and hot water tanks are enclosed within the building fabric.
Environmental Safety 2.10 Development is designed and managed to prevent any spillages or emissions that could have an adverse impact on the environment.	a. The storage of hazardous goods, materials or wastes is not carried out in areas that adjoin residential land-use or other sensitive land-uses, or areas that are generally accessible to the public. b. Setbacks, buffers and/or distances must be in accordance **Part B – B2.6 - Conflicting Land Uses** and public health regulation.

Desired Outcome	Development Control Requirements
Signage 2.11 Advertising signage associated with the business or commercial development is compatible with the desired amenity and visual character of the locality.	a. Signage must only advertise the lawful use of the building or site. b. Where it is proposed to service multiple tenancies in the one building, advertising signage is appropriately co-ordinated and designed. c. Advertising signage is of a scale and form that is proportionate to the building, streetscape, setting or landscape on or within which it is proposed to be placed. d. Advertising signage is not to protrude above the apex roof height of the building on which it is located. e. Advertising signage is not illuminated to such an extent that will cause unacceptable glare for pedestrians, motor vehicles or aircraft, or that will significantly impact nearby residential areas. f. Signage structures are contained wholly within the site and do not overhang any public space or land. g. Freestanding signage is not permitted on a business or commercial development site.
3. Landscape and Public Realm	
Views and View Sharing 3.1 Where existing development enjoys desired views (e.g. water, ocean views, views of forest, hills and mountains etc), new development is designed and sited so that at least a part of the desired view is visible from the existing development, where practicable. 3.2 Development provides for reasonably equitable sharing of views, between neighbouring properties, of water, ocean, forest, hills/mountains.	a. Development is to allow for the reasonable sharing of views with neighbouring dwellings and/or development. b. The built form of development is to provide a transition to adjacent residential development, including reasonable setbacks from side and rear boundaries, particularly at the first floor level to allowed for view sharing. c. An assessment of current view(s), viewpoints and impact (refer **Part E – Appendix 1** "View Sharing") along with graphic / modelled simulations may be necessary to support the application to Council's requirements.
Landscape 3.3 Development provides landscape which softens the impact of scale and bulk of existing built forms and prevents over-dominance of buildings on the streetscape.	a. The landscape design is complementary to the building design and surrounding streetscape, and provides landscaping for at least ten (10) % of the site area. b. Business and commercial developments adjoining a property zoned for a residential purpose are to include a six (6) metre wide landscaping strip, between the shared boundary, that incorporate suitable vegetation to provide privacy, screening and dust suppression. c. All parts of the site not built upon or paved (i.e. the usable open space area) are to be landscaped with grass, groundcovers, shrubs and/or trees and comprise deep soil planting. d. Landscape is provided in accordance with a site specific landscape plan prepared by a suitably

Desired Outcome	Development Control Requirements
	qualified Landscape Architect. e. Detailed Landscape Plans are required with the development application, if determined by Council. f. Landscape must be installed prior to the issue of an Occupation Certificate. In the case of larger scale development, Council may require Works-as-Executed drawing prior to the issue of the relevant certificate or following a reasonable (to Council's discretion) maintenance period.
Deep Soil Zones 3.4 Deep soil zones are provided, to allow infiltration of rain water to the water table and reduce stormwater runoff.	a. Where the development site is on a lot of >650m^2, five (5) % of the site should be provided as a deep soil zone. b. Where the development site is on a lot of 650m^2 - 1,500m^2, 10% of the site should be provided as a deep soil zone. c. Where the development site is on a lot of >1,500m^2, 15% of the site should be provided as a deep soil zone.
Fencing 3.5 Development incorporates landscape features, including fencing, to enhance its function and appearance.	a. Front boundary fencing of business and commercial premises facing a primary or secondary road is restricted to businesses which primarily relate to the external display of goods and/or services. b. Where front fencing is permitted, it is to be visually permeable and finished in materials and colours that complement the building and streetscape. Solid sheet metal fencing, including Colourbond-style fencing, is not permitted along primary or secondary frontages. Front fences are to be no higher than 1.8 metres. c. Side and rear boundary security fencing of business and commercial premises shall be no higher than 2.4 metres.
Preservation and treatments 3.6 Existing landscape elements, mature trees and other vegetation should be preserved.	a. Existing trees on-site are retained where possible and are incorporated into the landscape design.
3.7 Landscape design is complementary to the building design and surroundings.	a. The landscape design includes species that are appropriate for site conditions such as soil, aspect, drainage and micro-climate.
Activation 3.8 Development creates active frontages to encourage positive business and commercial and community interactions.	a. Development provides a seamless connection with the adjoining premises, by creating an active frontage[1]. b. Business and commercial premises are highly visible and provide active frontages to allow

[1] Active Frontage refers to the street frontages or edges that allow a visual or physical engagement between the street users and the ground floors of buildings. Frequent openings and windows with few blank walls; narrow-frontage buildings that give vertical rhythm to the street edge; facade articulation; transparency that promotes eyes on the street; and uses spilling onto the street contribute to active frontages. Making building edges "active" to the street adds interest and vitality to the street environment (Key Terms - Global Designing Cities Initiative).

Desired Outcome	Development Control Requirements
	overlooking of the street (public realm footpath).
4. Access and Vehicle Parking	
Access 4.1 Development provides a safe and appropriate level of driveway access/es to service all vehicles using the site.	a. Driveway locations, dimensions and finished levels comply with Austroads Guide to Road Design. b. All vehicle access and parking is designed and constructed to comply with the relevant Australian Standards. c. Semi-circle driveways (i.e. drive-in / drive-out arrangements via separate accesses to a primary or secondary street) are to be assessed on merit and will generally be restricted to the following land-uses: i. Service stations. ii. Driveway take away food shops. iii. Vehicle sales and hire premises. iv. Childcare facility d. Where permitted, semi-circle driveways must comply with (a) above, and in a manner that allows for the turning radius on private property and not on the public road reserve. e. Driveways crossing an existing footpath are at right angles to the centre line of the road and kerb. f. Driveways adjoining a primary or secondary street are designed to avoid roadside stormwater encroaching onto private property. g. Driveways do not, wherever possible, require removal of established street trees.
Vehicle Parking 4.2 All vehicle parking areas and access ways are designed to facilitate ready access for all people with diverse mobility requirements.	a. All vehicle parking is constructed in accordance with KSC Infrastructure Delivery Guide and AUS-SPECs. b. Development provides on-site parking at the rate set out in **Part E – Appendix 4**, unless otherwise approved by Council. c. Where visitor / staff car parks are required to be provided as part of a development the vehicle parking must meet CPTED principles by: i. Being well illuminated to improve safety. ii. Avoiding the creation of hidden recesses, where intruders could hide. iii. Being capable of observation by adjoining users. iv. Being designed with the least number of entry and exit points as is practical. v. Incorporating the use of security cameras, where possible.

Desired Outcome	Development Control Requirements
	d. Car parks are not accessed directly from high volume and/or high speed roads unless there is no other practical means of gaining access to a public road and the car park's ingress and egress are appropriately designed. e. Car park design allowing queuing is eliminated by the provision of sufficient standing area for vehicles entering parking and loading areas. f. Car park design must allow vehicles to enter and leave the site in a forward facing direction. g. Car parks are line marked to indicate the layout and circulation pattern of traffic, and sign posted to indicate entry and exit locations. h. The potential for on-street gates provides appropriate lighting where it is anticipated that the area will receive night-time use by customers or staff. i. The car park design makes provision for the manoeuvring of rigid and articulated heavy vehicles, where necessary. j. Car park design incorporates the use of shade devices and/or shade trees to improve the amenity and visual appearance of large all weather surfaces, and improve the relationship of the site to adjoining uses. k. Car park design incorporates a rational circulation pattern. Dead-end parking aisles are not permitted except in areas reserved for a specific low turnover (e.g. staff parking areas).
Active Transport 4.3 Development maximises opportunities for walking, cycling and mobility devices.	a. Development creates pedestrian access from the street frontage and provides individual identity to buildings so that they are easily identified by the user. b. Development provides footpaths for the full width of any site frontage. The proposed footpath is to match the width of any existing, adjoining footpath width. c. Development of the footpath network complies with KSC Infrastructure Delivery Guide. d. Development provides access throughout the building and to the public footpath / street network in accordance with the Building Code of Australia. e. Development exceeding twenty (20) employees provides for end-of-trip facilities, which includes: i. Showers ii. Bike racks iii. Lockers

Desired Outcome	Development Control Requirements
Loading and Unloading Areas 4.4 All loading and unloading areas are contained wholly on-site and are sited and designed to minimise conflicts with pedestrians and other vehicles using the site.	a. The off-street car park incorporates appropriate loading and unloading facilities, which will have regard to the nature and scale of the proposed development, the estimated frequency of deliveries and/or receiving vehicles and the type of vehicles to be involved with deliveries and receiving. b. Where loading and unloading facilities are provided, they are designed to enable a service vehicle to stand entirely within the site during loading and unloading operations, and not over a Council footpath or roadway. c. Loading space and/or facility is designed for temporary waste storage and disposal.
5. Amenity and Environment	
Amenity 5.1 Development is designed to ameliorate any amenity impacts on adjoining development.	a. Where new business or commercial development adjoins a sensitive land use, the design is to incorporate methods to reduce visual privacy and acoustic impacts on the adjoining use. This may be achieved by using; i. landscape: ii. mounding, barrier (solid mass) iii. and/or screening, iv. a suitable location of delivery areas, v. appropriate delivery hours and/or limiting after hours deliveries. b. Building design achieves at least three (3) hours of solar access to key living spaces/ private open spaces of the adjoining dwellings at the winter solstice (21 June) between 9am and 3pm. c. Where there is likely to be an adverse impact as a result of overshadowing on adjoining dwellings, shadow diagrams showing solar access to dwellings, private open space and solar panels on land to which the development application relates to an adjoining properties must be submitted with the development application. **Note** - Such diagrams should be prepared by an architect, surveyor, engineer, or town planner and be based on a survey of the relevant site and adjoining development.
Privacy 5.2 Development maintains the visual privacy of neighbouring land uses.	a. Development does not directly overlook windows, balconies and decks of primary living rooms in any adjoining dwellings, unless the building design incorporates measures to reduce impacts. a. Roof mounted air-conditioning units are not located on the roof facing a primary street and are screened from view through the use of roof top parapets and/or other visual screening.

Desired Outcome	Development Control Requirements
Noise 5.3 Development achieves a satisfactory level of amenity including noise control and acoustic privacy.	a. All noise generating equipment such as mechanical plant or equipment, air conditioning units, fixed vacuum systems, mechanical ventilation from car parks, driveway entry shutters, garbage collection areas or similar, as well as delivery areas, must be designed to protect the acoustic privacy of neighbouring uses. b. All such noise generating equipment must be acoustically treated/mitigated. c. Noise levels at the property/unit boundary of residential development must not exceed a LAeq, 15 minute of 5dB above background noise. d. Exterior facades are designed to minimise the opportunity for sound transmission. Depending on surrounding land uses and the nature of the proposal, an acoustic report may be requested demonstrating how sound transmission is minimised.
Light Pollution 5.4 Development protects adjoining sites from light intrusion.	a. Development complies with *AS 4282-2019 Control of the obtrusive effects of outdoor lighting*.
Environment Management Plan 5.5 Development details and mitigates negative impacts on the amenity and environment of the immediate area.	a. An Environmental Management Plan detailing compliance with the relevant industry best practice guidelines for; i. noise pollution, ii. air pollution, iii. odour, iv. light spill/pollution, v. hazardous goods storage and vi. contamination management b. must be provided for any business or commercial development proposed to operate 24 hours a day, or as otherwise identified by Council.
Environment 5.6 Development protects the environmental features, values and amenity qualities of the site and immediate surrounds.	a. Development minimises the removal of existing trees and vegetation on site. b. Existing street trees are retained wherever possible (small trees may be relocated within the property frontage street verge, on approval of Council).
6. Stormwater Management	
Stormwater Management 6.1 Stormwater from development is managed onsite to an acceptable, practical level. Stormwater in excess of this level must be properly drained to a legal point of discharge without causing adverse impacts on public drainage infrastructure, downslope properties or the quality of receiving waters.	a. Development shall be accompanied by a Stormwater Management Plan. b. The plan shall adopt the Major/Minor Concept as well as conservation of pre-existing flows to post development flow. c. Stormwater drainage systems shall be designed using the relevant Australian Rainfall and Runoff standards, where the minor system shall be capable of carrying the controlling flows from frequent runoff events, while the major system shall provide safe, well-defined overland flow paths for rare and extreme storm runoff events.

Desired Outcome	Development Control Requirements
	d. All stormwater overflow generated by development must be managed on-site for up to an AEP of 10%. Stormwater from events in excess of that must be drained to a legal point of discharge. e. Where no legal point of discharge is available the development may need to provide infiltration design or on-site detention. f. Stormwater management should maximise the use of natural infiltration solutions to minimise the costs of maintaining man-made systems. g. The use of such infiltration solutions such as deep soils zones, rain gardens and soakaway pits, permeable surfaces or other similar treatments for stormwater management are encouraged. h. Development that incorporates a water tank(s), detention ponds, into the stormwater management system must comply with the following: i. The water tank system, including roof area, tank inlet pipe size, tank storage capacity and tank outlet pipe size, must be suitably sized to accommodate stormwater in a 5% AEP, with all overflow being directed to a legal point of discharge, suitably sized rubble drain or properly constructed drainage channel, at least 3 metres clear of buildings. ii. Stormwater from driveways and hardstand areas is directed away from the water tank(s) and is properly managed to a legal point of discharge in accordance with this Part. iii. Tanks and fittings comply with Planning for Bushfire Protection, as applicable. i. Suitable easements are provided for public stormwater infrastructure within properties.
Water quality (sites > 2500m^2) 6.2 Point sources of pollution in the catchment are identified and their impacts minimised. 6.3 The stormwater management system optimises the interception, retention and removal of water borne pollutants before their discharge to receiving waters. 6.4 Water quality improvement devices are provided for the treatment of stormwater run-off before discharge from the site and are located to minimise negative impacts on both the natural and built (including traffic management) environments.	a. The development shall incorporate water quality treatment mechanisms designed in accordance with "Urban Stormwater Best Practice Management Guidelines" or equivalent to ensure targets for the following are met: i. Total Suspended Solids (TSS) ii. Total Nitrogen (TN) iii. Total Phosphorous (TP) iv. Litter (>50mm) b. Development complies with sediment and erosion control requirements. The design of any bio-swales, or similar green/blue stormwater infrastructure has regard to the ongoing operations, responsibility, maintenance and management required into the future.

Desired Outcome	Development Control Requirements
7. Utilities	
7.1 Infrastructure is adequate to service the needs of the development and, where required, are upgraded or provide new infrastructure to meet the increase in demand generated by the development.	a. All utilities and services are to be designed in accordance with relevant statutory requirements, including KSC Infrastructure Delivery Guide and AUS-SPECs.
7.2 Suitable water services are provided for the development.	a. Development is connected to a reticulated water supply main via a minimum 25mm service and KSC Water Meter, where available. b. Suitable easements are provided for public water infrastructure within properties. c. The developer meets the full cost of water reticulations, plus the cost of connecting to the existing services. d. Provision of bushfire mitigation which comply with the requirements of **Part B – B1 - Natural Hazards**.
7.3 Suitable electricity services are provided for the development.	a. Electricity services are provided to the development in accordance with requirements of the relevant authority and at the full cost of the developer. b. Electricity services are provided underground where possible.
7.4 Suitable water and sewerage services are provided for the development.	a. Development is connected to a reticulated sewer main where available. If unsewered, an on-site effluent management system is installed that complies with the following: i. Relevant Australian Standards for On-site Domestic Wastewater Management. ii. NSW Environment and Health Protection Guidelines. b. Suitable easements are provided for public sewerage infrastructure within properties. c. Where the development is in near proximity to an existing sewered area or where in the opinion of the State government or Council, the land is unsuitable for onsite disposal of effluent, connection to the existing sewerage system will be required. d. An On-site Sewage Management Assessment Report to support sewage treatment proposals is to accompany an application for this type of development. e. Development is designed so that an area remote from any watercourse and downhill of potential home sites is available for effluent disposal. f. The developer meets the full cost of sewer reticulations, plus the cost of connecting to the existing services.

Desired Outcome	Development Control Requirements
7.5 Suitable telecommunication services are provided for the development.	a. Telecommunication services are provided, where available. b. Where a telecommunications network is available to the site, applicants provide written confirmation from the relevant network provider stating that satisfactory arrangements have been made for connection, prior to the commencement of the use.

D5 INDUSTRIAL DEVELOPMENT

D5 INDUSTRIAL DEVELOPMENT

Application of Part D5

Part D5 applies to development of land for industrial purposes, which will generally be on land zoned E3 Productivity Support, E4 General Industry, MU1 Mixed Use and SP2 Infrastructure, under KLEP.

Objectives

1. To ensure the location, design and operation of industrial development makes a positive contribution to the economy and enables a range of employment opportunities within Kempsey Shire.
2. Industrial development is designed to support and protect the character and amenity of the surrounding area without having negative impacts on sensitive land uses.
3. Effective site planning, layout and functionality achieves a high level of amenity for industrial operators and users.
4. Development preserves and maintains the industrial areas across Kempsey Shire, and in particular, supports Kempsey South as the principal industrial area servicing the entire Shire and beyond.

The following desired outcomes and development control requirements in **Table D5.1** prescribe how the above objectives can be met.

Table D5.1 – Industrial Development Controls – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1. Site Design	
Site Coverage 1.1 The proportion of a lot that is occupied by buildings or structures ensures adequate space for vehicular and pedestrian movements, car parking, open space, landscaping and proper drainage of the site.	a. Where a Floor Space Ratio (FSR) Map applies, development complies with the applicable FSR Map under KLEP.
Setbacks from Other Industrial Uses 1.2 Development enables the full functions of the industrial activity operations on the site.	a. Buildings are constructed with a front setback that: i. Reinforces the existing industrial street pattern, character and function. ii. Is the average of the two nearest existing buildings on the immediately adjoining allotments. iii. Is appropriate for the level of pedestrian activity and proposed industrial land-use. b. Front setback areas are not used for the storage of equipment / merchandise, waste material, excessive advertising signage or loading and unloading operations. c. Buildings are constructed with side and rear setbacks that: i. Comply with the requirements of the Building Code of Australia. ii. Provide adequate room for the servicing of the development, including loading and unloading operations, vehicle manoeuvrability and waste storage.

<table>
<tr><th>Desired Outcome</th><th>Development Control Requirements</th></tr>
<tr><td></td><td>d. Development has regard to Planning for Bushfire Protection and any required asset protection measures, as applicable.</td></tr>
<tr><td>Setbacks – Particular Industrial Areas
1.3 Development provides appropriate setbacks in accordance with the specific location of the industrial use within Kempsey Shire.</td><td>a. Industrial development provides the following front boundary setbacks:
i. South Street, South Kempsey fifteen (15) metres;
ii. Akubra Place, South Kempsey six (6) metres;
iii. Woolford Crescent South Kempsey four (4) metres;
iv. Nance Road, South Kempsey twelve (12) metres;
v. Sandstock Road, South Kempsey twelve (12) metres; and
vi. Six (6) metres where not otherwise specified above.</td></tr>
<tr><td rowspan="10">Setbacks from Sensitive Land Uses
1.4 Development is located to ensure there is adequate separation between industrial activities, environmentally sensitive areas and sensitive land uses.</td><td>a. Development provides a minimum separation distance of ten (10) metres from an adjoining property that is a sensitive land use, unless the industrial use is identified in Table D5.2 below.
b. Where identified in Table D5.2 below, development is setback from sensitive land uses and environmentally sensitive areas.</td></tr>
<tr><td>Table D5.2 -Setback Distances</td></tr>
<tr><td>Setback from environmentally sensitive area or sensitive land use | Industrial Land Use Activity</td></tr>
<tr><td>1000m | Abattoirs, potentially hazardous or offensive industries, mines and extractive industries that involve blasting</td></tr>
<tr><td>400m | Rural industries, sewerage treatment plants, mines and extractive industries that don’t involve blasting.</td></tr>
<tr><td>500m | Industries involving wet plant or potentially noisy operations</td></tr>
<tr><td>100m | Railway corridor</td></tr>
<tr><td>50m | Heritage items KLEP or State Heritage Register.</td></tr>
<tr><td>40m | Effluent management ponds, open storage areas or the like that may pose a potential chemical contamination risk as a result of past activities.</td></tr>
</table>

Desired Outcome	Development Control Requirements	
	20m	Road corridors.
	Note: The separation distances represent best practice minimum buffer distances. Where there is more than one type of industrial activity included in the setback tables in this section, then the greatest of the setback distances is to be implemented. Development applications involving a variation to the minimum setback distances shown in the setback tables in this section will be considered by Council if they are accompanied by appropriate studies/ investigations/ justification provided by an appropriately qualified and experienced practitioner to confirm that the development could be appropriately located without causing significant constraint on nearby sensitive land uses.	
Topography (Earthworks) 1.5 Earthworks associated with development does not negatively impact on the surrounding streetscape, adjoining properties or public assets.	a. Earthworks shall not alter the existing ground level/natural topography unless there are existing vegetation and trees to be preserved. b. Where existing trees are preserved, no earthworks are permitted closer to the trunk or main stem than the drip-line (canopy extent) of the tree.	
1.6 Development siting and layout utilises natural grades of the land and minimises cut and fill.	a. Buildings, structures and operational areas are not constructed on land with a gradient exceeding 15%. b. Cut or fill does not exceed +/- 6.0 metres from natural ground level within the development (building) envelope. c. Cut or fill does not exceed +/_ 1.0 metre within two (2) metres of any boundary. d. Cut and fill batters shall not exceed a slope of 1:3 (volume:height). e. Cut and fill batters and retaining walls outside the building footprint must be landscaped to mitigate visual impacts. f. Earthworks must comply with KSC Infrastructure Delivery Guide and KSC AUS-SPECS requirements.	
2. Development Design		
Building Form 2.1 Development contributes positively to the streetscape in terms of building height, bulk and scale, streetscape, topography and character. 2.2 Development resilience and sustainability is enhanced through durable and vandal resistant materials and cladding.	a. Where a Height of Building Map applies, building height complies with the relevant height limit under the KLEP. b. Where there are significant variations in height between existing buildings on neighbouring properties, the new building has a height that transitions between the height of neighbouring buildings and/or follows the average roof line/height of adjoining premises. c. The height of new buildings is appropriate to minimise adverse overshadowing impacts on adjoining sites, particularly where used for a sensitive land use.	

Desired Outcome	Development Control Requirements
	d. Street elevations feature customer service areas and advertising/identification of public entrances towards the primary street frontage. e. Development: i. incorporates a sensitive mix of colours, materials, treatments and finishes that are sympathetic to the site's industrial context and surrounds; ii. avoids visually dominating features; iii. uses durable and energy efficient materials; and iv. minimises noise transmission. f. Industrial buildings on corner allotments are designed to address both street frontages. g. Building entrances are in prominent and easily recognisable locations with directional signage and lighting used where necessary / appropriate. h. Building materials are vandal resistant. i. Long blank walls facing streets are avoided by incorporating one or more of the following techniques into the building facades: i. Wall place projections or recesses; ii. Windows; iii. Variation of wall heights; and iv. Material changes.
Accessibility and Legibility 2.3 Buildings and pathways are easily accessible and legible, making it easy for users to navigate their way from public areas to the building entrance	a. Premises provide high levels of building accessibility, from on-site car parks and to the public footpath/street network in accordance with the access provisions of the Building Code of Australia. b. Pathways are direct and follow pedestrian desired lines and avoid blind corners / dark spaces. c. Development complies with *Crime Prevention and the Assessment of Development Applications Guidelines under section 79C of the Environmental Planning and Assessment Act 1979 (Department of Urban Affairs and Planning)*.
Storage and Utility Functions 2.4 Building design incorporates appropriate functional and storage spaces and areas for waste storage, transfer and disposal purposes.	a. Development is provided with suitable waste bin storage behind the building frontage. b. Waste storage and collection is to be managed wholly within the site. Waste bins and bulk waste storage areas are not to be located within the road reserve for collection purposes. c. Where collection is undertaken by a private contractor or bulk waste collection vehicle, the site is to provide suitable access and manoeuvring areas to allow vehicles to enter and leave the site in a forward direction.

Desired Outcome	Development Control Requirements
2.5 Development includes systems for waste management that ensures waste is collected, transported and/or disposed of in a lawful manner. 2.6 Development provides space, storage, amenity and management of waste management facilities. 2.7 Development includes waste management systems are compatible with collection services.	a. A development application must be accompanied by a Statement of Environmental Effects (SEE), which includes a Site Waste Management Plan (SWMP) as the information detailing compliance with waste management requirements. The SWMP is to outline measures to minimise and manage waste generated by and through ongoing use of the site/ premises/ development including: i. volume and type of waste and recyclables to be generated; ii. storage and treatment of waste and recyclables on site; iii. disposal of residual waste and recyclables; and iv. operational procedures for ongoing waste management for the completed development. b. The SWMP identifies the method of recycling or disposal and the waste management service provider. c. Waste management facilities proposed as part of the development shall be clearly illustrated on the plans of the proposed development, accompanying the development application (DA).
Function of External Spaces 2.8 External spaces and areas are designed to maximise the function of the space that enhances the user experience on site.	a. Development features customer service areas, merchandise displays and advertising towards the primary street active frontages. b. Sufficient space is provided on-site (side and rear) for the loading and unloading of materials and other stored items. c. Loading and unloading activities are not carried out on any public space or within the front building line. d. Premises are clearly displayed with a street number that is made of durable materials (preferable reflective or luminous) in a position that is unobstructed from users in the public domain. e. External storage areas and yards are well lit and secured by fencing and lockable gates on side and rear access ways. f. Emergency access points on site are well lit and easily identifiable by all users.
Amenity of External Spaces 2.9 External building spaces and storage areas are designed to contribute towards high amenity of the overall development.	a. External storage areas are screened and not exposed to view from primary roads. b. Roof mounted air-conditioning units and solar panels are not visible from a primary roads and are adequately screened. c. Wall mounted air-conditioning units are not located higher than 1.8 metres above existing ground level and are to be set back a minimum of 450 millimetres from any boundary.

Desired Outcome	Development Control Requirements
	d. Building utilities components, such as solar panels and solar collectors are suitably incorporated into the roof design and hot water tanks are enclosed within the building fabric.
Environmental Safety 2.10 Development is designed and managed to prevent any spillages or emissions that could have an adverse impact on the environment.	a. The storage of hazardous goods, materials or wastes is not carried out in areas that adjoin residential land-use or other sensitive land-uses, or areas that are generally accessible to the public. b. Set backs, buffers and/or distances must be in accordance **Part B - B2.6 Conflicting Land Uses** and public health regulation.
Signage 2.11 Advertising signage associated with the industrial development is compatible with the desired amenity and visual character of the locality.	a. Signage must only advertise the lawful use of the building or site. b. Where it is proposed to service multiple tenancies in the one building, advertising signage is appropriately co-ordinated and designed. c. Advertising signage is of a scale and form that is proportionate to the building, streetscape, setting or landscape on or within which it is proposed to be placed. d. Advertising signage is not to protrude above the apex roof height of the building on which it is located. e. Advertising signage is not illuminated to such an extent that will cause unacceptable glare for pedestrians, motor vehicles or aircraft, or that will significantly impact nearby residential areas. f. Signage structures are contained wholly within the site and do not overhang any public space or land. g. Freestanding signage is not permitted on an industrial development site.
3. Landscape and Public Realm	
Views and View Sharing 3.1 Where existing development enjoys desired views (e.g. water, ocean views, views of forest, hills and mountains etc), new development is designed and sited so that at least a part of the desired view is visible from the existing development, where practicable. 3.2 Development provides for reasonably equitable sharing of views, between neighbouring properties, of water, ocean, forest, hills/mountains.	a. Development is to allow for the reasonable sharing of views with neighbouring dwellings and/or development. b. The built form of development is to provide a transition to adjacent residential development, including reasonable setbacks from side and rear boundaries, particularly at the first floor level to allowed for view sharing. c. An assessment of current view(s), viewpoints and impact (refer **Part E – Appendix 1** "View Sharing") along with graphic / modelled simulations may be necessary to support the application to Council's requirements.
Landscape 3.3 Development provides landscape which is	a. The landscape design is complementary to the building design and surrounding streetscape, and

Desired Outcome	Development Control Requirements
used to soften the impact of scale and bulk of existing built forms and to prevent over-dominance of buildings on the streetscape.	provides landscaping for at least 10% of the site area. b. Industrial developments adjoining a property zoned for a residential purpose are to include a 6 metre wide landscaping strip, between the shared boundary, that incorporate suitable vegetation to provide privacy and noise / dust suppression. c. All parts of the site not built upon or paved (i.e. the usable open space area) are to be landscaped with grass, groundcovers, shrubs and/or trees and comprise deep soil planting. d. Landscaping is provided in accordance with a site specific landscape plan prepared by a suitably qualified Landscape Architect. e. Detailed Landscape Plans are required with the development application, if determined by Council. f. Landscaping will need to be installed prior to the issue of an Occupation Certificate. In the case of larger scale development, Council may ask for a Works-as-Executed drawing prior to the issue of the relevant certificate or following a reasonable maintenance period.
Deep Soil Zones 3.4 Deep soil zones are provided, to allow infiltration of rain water to the water table and reduce stormwater runoff.	a. Where the development site is on a lot of >650m2, 5% of the site should be provided as a deep soil zone. b. Where the development site is on a lot of 650m2 - 1,500m2, 10% of the site should be provided as a deep soil zone. c. Where the development site is on a lot of >1,500m2, 15% of the site should be provided as a deep soil zone.
Fencing 3.5 Development incorporates landscaping features, including fencing, to enhance its function and appearance.	a. Front boundary fencing of industrial premises facing a primary or secondary road is restricted to businesses which primarily relate to the external display of goods and/or services. b. Where front fencing is permitted, it is to be visually permeable and finished in materials and colours that complement the building and streetscape. Solid sheet metal fencing, including Colourbond-style fencing, is not permitted along primary or secondary frontages. Front fences are to be no higher than 1.8 metres. c. Side and rear boundary security fencing of industrial premises shall be no higher than 2.4 metres.
Preservation and Treatments 3.6 Existing landscape elements, mature trees and other vegetation should be preserved.	a. Existing trees on-site are retained where possible and are incorporated into the landscape design.
3.7 Landscape design is complementary to the building design and surroundings.	a. The landscape design includes species that are appropriate for site conditions such as soil, aspect, drainage and micro-climate.

Desired Outcome	Development Control Requirements
Activation 3.8 Development creates active frontages to encourage positive business and commercial and community interactions.	a. Development provides a seamless connection with the adjoining premises, by creating an active frontage[1]. b. Industrial premises are highly visible and provide active frontages to allow overlooking of the street.
4. Access and Vehicle Parking	
Access 4.1 Development provides a safe and appropriate level of driveway access/es to service all vehicles using the site.	a. Driveway locations, dimensions and finished levels comply with Austroads Guide to Road Design. b. All vehicle access and parking is designed and constructed to comply with the relevant Australian Standards. c. Semi-circle driveways (i.e. drive-in / drive-out arrangements via separate accesses to a primary or secondary street) are to be assessed on merit and will generally be restricted to the following land-uses: i. Service stations. ii. Driveway take away food shops. iii. Vehicle sales and hire premises. c. Where permitted, semi-circle driveways must comply with (a) above, and in a manner that allows for the turning radius on private property and not on the public road reserve. d. Driveways crossing an existing footpath are at right angles to the centre line of the road and kerb. e. Driveways adjoining a primary or secondary street are designed to avoid roadside stormwater encroaching onto private property. f. Driveways do not require removal of established street trees.
Vehicle Parking 4.2 All vehicle parking areas and access ways are designed to facilitate ready access for all people with diverse mobility requirements.	a. All vehicle parking is constructed in accordance with KSC Infrastructure Delivery Guide and AUS-SPECs. b. Development provides on-site parking at the rate set out in **Part E – Appendix 4**, unless otherwise approved by Council. c. Car parks are not accessed directly from high volume and/or high speed roads unless there is no other practical means of gaining access to a public road and the car park's ingress and egress are appropriately designed.

1 Active Frontage refers to the street frontages or edges that allow a visual or physical engagement between the street users and the ground floors of buildings. Frequent openings and windows with few blank walls; narrow-frontage buildings that give vertical rhythm to the street edge; facade articulation; transparency that promotes eyes on the street; and uses spilling onto the street contribute to active frontages. Making building edges "active" to the street adds interest and vitality to the street environment (Key Terms - Global Designing Cities Initiative).

Desired Outcome	Development Control Requirements
	d. Car park design allowing queuing is eliminated by the provision of sufficient standing area for vehicles entering parking and loading areas. e. Car park design must allow vehicles to enter and leave the site in a forward facing direction. f. Car parks are line marked to indicate the layout and circulation pattern of traffic, and sign posted to indicate entry and exit locations. g. The potential for on-street gates provides appropriate lighting where it is anticipated that the area will receive night-time use by customers or staff. h. The car park design makes provision for the manoeuvring of rigid and articulated heavy vehicles, where necessary. i. Car park design incorporates the use of shade devices and/or shade trees to improve the amenity and visual appearance of large all weather surfaces, and improve the relationship of the site to adjoining uses. j. Car park design incorporates a rational circulation pattern. Dead-end parking aisles are not permitted except in areas reserved for a specific low turnover (e.g. staff parking areas). k. Where visitor / staff car parks are required to be provided as part of a development the vehicle parking must meet CPTED principles by: i. Being well illuminated to improve safety. ii. Avoid the creation of hidden recesses, where intruders could hide. iii. Being capable of observation by adjoining users. iv. Being designed with the least number of entry and exit points as is practical. v. Incorporates the use of security cameras, where possible.
Active Transport 4.3 Development maximises opportunities for walking and cycling.	a. Development creates pedestrian access from the street frontage and provides individual identity to buildings so that they are easily identified by the user. b. Development provides footpaths for the full width of any site frontage. The proposed footpath is to match the width of any existing, adjoining footpath width. c. Development of the footpath network complies with KSC Infrastructure Delivery Guide. d. Development provides access throughout the building and to the public footpath / street

Desired Outcome	Development Control Requirements
	network in accordance with the Building Code of Australia. e. Development exceeding twenty (20) employees provides for end-of-trip facilities, which includes: i. Showers ii. Bike racks iii. Lockers
Loading and Unloading Areas 4.4 All loading and unloading areas are contained wholly on-site and are sited and designed to minimise conflicts with pedestrians and other vehicles using the site.	a. The off-street car park incorporates appropriate loading and unloading facilities, which will have regard to the nature and scale of the proposed development, the estimated frequency of deliveries and/or receiving vehicles and the type of vehicles to be involved with deliveries and receiving. b. Where loading and unloading facilities are provided, they are designed to enable a service vehicle to stand entirely within the site during loading and unloading operations, and not over a Council footpath or roadway.
5. Amenity and Environment	
Amenity 5.1 Development is designed to ameliorate any amenity impacts on adjoining development.	a. Where new industrial development adjoins a sensitive land use the design is to incorporate methods to reduce visual privacy and acoustic impacts on the adjoining use. This may be achieved by using landscaping, mounding, barrier (solid mass) and/or screening, suitable location of delivery areas, appropriate delivery hours and/or limiting after hours deliveries. b. Building design achieves at least 3 hours of solar access to key living spaces/ private open spaces of the adjoining dwellings at the winter solstice (21 June) between 9am and 3pm. c. Where there is likely to be an adverse impact as a result of overshadowing on adjoining dwellings, shadow diagrams showing solar access to dwellings, private open space and solar panels on land to which the development application relates to an adjoining properties must be submitted with the development application. **Note** - Such diagrams should be prepared by an architect, surveyor, engineer, or town planner and be based on a survey of the relevant site and adjoining development.
Privacy 5.2 Development maintains the visual and acoustic privacy of neighbouring land uses.	a. Development does not directly overlook windows, balconies and decks of primary living rooms in any adjoining dwellings, unless the building design incorporates measures to reduce impacts. b. Roof mounted air-conditioning units are not located on the roof facing a primary street and are

Desired Outcome	Development Control Requirements
	screened from view through the use of roof top parapets and/or other visual screening.
Noise 5.3 Development achieves a satisfactory level of amenity including noise control and acoustic privacy.	a. All noise generating equipment such as mechanical plant or equipment, air conditioning units, fixed vacuum systems, mechanical ventilation from car parks, driveway entry shutters, garbage collection areas or similar, as well as delivery areas, must be designed to protect the acoustic privacy of neighbouring uses. b. All such noise generating equipment must be acoustically treated/mitigated. c. Noise levels at the property/unit boundary of residential development must not exceed a LAeq, 15 minute of 5dB above background noise. d. Exterior facades are designed to minimise the opportunity for sound transmission. Depending on surrounding land uses and the nature of the proposal, an acoustic report may be requested demonstrating how sound transmission is minimised.
Light Pollution 5.4 Development protects adjoining sites from light intrusion.	a. Development complies with *AS 4282-2019 Control of the obtrusive effects of outdoor lighting*.
Environment Management Plan 5.5 Development details and mitigates negative impacts on the amenity and environment of the immediate area	a. An Environmental Management Plan detailing compliance with the relevant industry best practice guidelines for; i. noise pollution, ii. air pollution, iii. odour, iv. light spill/pollution, v. hazardous goods storage and vi. contamination management must be provided for any business or commercial development proposed to operate 24 hours a day, or as otherwise identified by Council.
Environmental Safety 5.5 Development is designed and managed to prevent any spillages or emissions that could have an adverse impact on the environment.	a. The storage of hazardous goods, materials or wastes is not carried out in areas that adjoin sensitive land-uses, or areas that are generally accessible to the public.
Environment – existing values 5.6 Development protects the environmental features, values and amenity qualities of the site and immediate surrounds.	a. Development minimises the removal of existing trees and vegetation on site. b. Existing street trees are retained wherever possible (small trees may be relocated within the property frontage street verge, on approval of Council).

Desired Outcome	Development Control Requirements
6. Stormwater Management	
Stormwater Management 6.1 Stormwater from development is managed onsite to an acceptable, practical level. Stormwater in excess of this level must be properly drained to a legal point of discharge without causing adverse impacts on public drainage infrastructure, downslope properties or the quality of receiving waters.	Development shall be accompanied by a Stormwater Management Plan. a. The plan shall adopt the Major/Minor Concept as well as conservation of pre-existing flows to post development flow. i. Development is designed to accommodate all stormwater in the 10% Annual Exceedance Probability (AEP) (as a minimum) via underground drainage infrastructure. ii. Development is designed to accommodate all stormwater above the 10% AEP up to the 1% AEP via roads and drainage reserves. b. Stormwater drainage systems shall be designed using the relevant Australian Rainfall and Runoff standards, where the minor system shall be capable of carrying the controlling flows from frequent runoff events, while the major system shall provide safe, well-defined overland flow paths for rare and extreme storm runoff events c. Development complies with the relevant Australian Standards for Plumbing and Drainage, unless otherwise specified in this Part. d. All stormwater overflow generated by development must be managed on-site for up to an AEP of 10%. Stormwater from events in excess of that must be drained to a legal point of discharge. e. Where no legal point of discharge is available the development may need to provide infiltration design or on-site detention. f. Stormwater management maximises the use of natural infiltration solutions to minimise the costs of maintaining man-made systems. g. The use of such infiltration solutions such as deep soils zones, rain gardens and soakaway pits, permeable surfaces or other similar treatments for stormwater management are encouraged. h. Development that incorporates a water tank(s), detention ponds, into the stormwater management system must comply with the following: i. The water tank system, including roof area, tank inlet pipe size, tank storage capacity and tank outlet pipe size, must be suitably sized to accommodate stormwater in a 5% AEP, with all overflow being directed to a legal point of discharge, suitably sized rubble drain or properly constructed drainage channel, at least 3 metres clear of buildings. ii. Stormwater from driveways and hardstand areas is directed away from the water tank(s) and is properly managed to a legal point of discharge in accordance with this Part. iii. Tanks and fittings comply with Planning for Bushfire Protection, as applicable.

Desired Outcome	Development Control Requirements
	i. Suitable easements are provided for public stormwater infrastructure within properties. j. The use of rain gardens and infiltration deep wells or other similar treatments for stormwater managements are encouraged. k. Stormwater drainage systems are designed using the relevant Australian Rainfall and Runoff standards, where the minor system shall be capable of carrying the controlling flows from frequent runoff events, while the major system shall provide safe, well-defined overland flow paths for rare and extreme storm runoff events. l. Stormwater volumes and characteristics are estimated in accordance with relevant Australian Rainfall and Runoff standards by a suitably qualified engineer. m. Development takes into account the stormwater management requirements of the whole site / stormwater drainage system, including stormwater from upslope areas in the catchment that is based on a fully developed scenario, and is based on the preexisting condition to provide and be the same volume of runoff at the lot outlet or less where possible. n. Existing stormwater management infrastructure abutting the development, including road drainage and drainage reserves are upgraded / replaced where they do not meet the requirements of the KSC Infrastructure Delivery Guide and AUS-SPEC #2 Stormwater Drainage.
Water quality (sites > 2500m^2) 6.2 Point sources of pollution in the catchment are identified and their impacts minimised. 6.3 The stormwater management system optimises the interception, retention and removal of water borne pollutants before their discharge to receiving waters. 6.4 Water quality improvement devices are provided for the treatment of stormwater run-off before discharge from the site and are located to minimise negative impacts on both the natural and built (including traffic management) environments.	a. The development shall incorporate water quality treatment mechanisms designed in accordance with "Urban Stormwater Best Practice Management Guidelines" or equivalent to ensure targets for the following are met: i. Total Suspended Solids (TSS) ii. Total Nitrogen (TN) iii. Total Phosphorous (TP) iv. Litter (>50mm) b. Development complies with sediment and erosion control requirements. The design of any bio-swales, or similar green/blue stormwater infrastructure has regard to the ongoing operations, responsibility, maintenance and management required into the future.
7. Utilities	
7.1 Infrastructure is adequate to service the needs of the development and, where required, are upgraded or provide new infrastructure to meet the increase in demand generated by the development.	a. All utilities and services are to be designed in accordance with relevant statutory requirements, including KSC Infrastructure Delivery Guide and AUS-SPECs.

Desired Outcome	Development Control Requirements
7.2 Suitable water services are provided for the development.	a. Development is connected to a reticulated water supply main via appropriately sized service with KSC Water Meter to KSC requirements. b. Suitable easements are provided for public water infrastructure within properties. c. The developer meets the full cost of water reticulations, plus the cost of connecting to the existing services. d. Provision of bushfire mitigation which comply with the requirements of **Part B – B1 - Natural Hazards**.
7.3 Suitable electricity services are provided for the development.	a. Electricity services are provided to the development in accordance with requirements of the relevant authority and at the full cost of the developer. b. Electricity services are provided underground where possible.
7.4 Suitable sewerage services are provided for the development.	a. Development is connected to a reticulated sewer main where available. If unsewered, an on-site effluent management system is installed that complies with the following: i. Relevant Australian Standards for On-site Domestic Wastewater Management. ii. NSW Environment and Health Protection Guidelines b. Suitable easements are provided for public sewerage infrastructure within properties. c. Where the development is in near proximity to an existing sewered area or where in the opinion of the State government or Council, the land is unsuitable for onsite disposal of effluent, connection to the existing sewerage system will be required. d. An On-site Sewage Management Assessment Report to support sewage treatment proposals is to accompany an application for this type of development. e. Development is designed so that an area remote from any watercourse and downhill of potential home sites is available for effluent disposal. f. The developer meets the full cost of sewer reticulations, plus the cost of connecting to the existing services.
7.5 Suitable telecommunication services are provided for the development.	a. Telecommunication services are provided, where available. b. Where a telecommunications network is available to the site, applicants provide written confirmation from the relevant network provider stating that satisfactory arrangements have been made for connection, prior to the commencement of the use.